

FD PRRS as of
01/01/2025



Personnel Rules and Regulations for Commissioned Fire Fighters

* These Fire Department Personnel Rules and Regulations (FDPRRs) apply to “Fire Fighters,” which, for purposes of these rules and regulations are sworn and commissioned Fire Department employees who are employed in regular, full-time positions and are a member of the City’s retirement fund. The terms “part-time,” “seasonal,” and “temporary” do not apply to Fire Fighters. The terms “Fire Fighter” and “employee” are used interchangeably in these FDPRRs.

Preface

The Personnel Rules and Regulations for Fire Fighters (“FDPRRs”) of the City of Fort Worth (“City”) are authorized under the City of Fort Worth City Code, Chapter 2, Article V, section 2-184. They are based upon the merit principles outlined in that Article. These “FDPRRs,” (also referred to as “policy” or “policies” in this document) do not confer legal rights to employees. They are established in good faith and are intended to comply with applicable federal, state and local law and be read in conjunction with any then-applicable labor agreement, the Local Rules of the Fort Worth Fire Fighters’ and Police Officers’ Civil Service Commission; and the Fire Department’s Standard Operating Procedures, Information Bulletins and Rules and Regulations (referred to collectively in the FDPRRs as “S.O.P.s”).

These FDPRRs apply to sworn and commissioned Fire Fighters, whether or not they have completed, their probationary period under the civil service laws, the then-current Collective Bargaining Agreement, labor agreement, or these FDPRRs. This includes Fire Fighters who are in appointed positions, such as the position immediately below the department head or Fire Chief (called “Assistant Chief”) and the position immediately below Assistant Chief (called “Deputy Chief”). Unless otherwise stated, these FDPRRs do not apply to general employees, including Fire Fighter trainees. The Fire Chief, as Department Head of the Fire Department, is a general employee to whom these FDPRRs do not apply. The PRRs for general employees apply to the terms and conditions of the Fire Chief’s employment and Fire Fighter trainees.

Based on federal and state laws, regulations, and the then-applicable labor agreement, many of the Personnel Rules and Regulations that apply to general employees may not relate or fully apply to Fire Fighters. Therefore, these FDPRRs have been written to mirror the General Employee PRRs as much as possible and to address those situations where deviations are necessary.

The City’s personnel policies DO NOT CONSTITUTE A CONTRACT. Any compensation and/or benefit policies explained in these regulations are subject to review at least annually by City Council and are subject to change at any time. If the then-applicable labor agreement expires or is terminated, City Council reserves the right to implement any compensation and/or benefits that it considers appropriate at that time.

Work performed by Fire Fighters is deemed to be performed pursuant to the duties and obligations set forth in these FDPRRs.

Mission, Values, and Vision

The City of Fort Worth’s mission is “*Working together to build a strong community.*” To accomplish this mission, employees at the City of Fort Worth provide municipal services to over 950,000 residents. Each day these employees are moving about the city, doing work that helps make Fort Worth a strong community and a great place to live. There are six values that guide our employees as they go about this work. They are:

- *Exceptional Customer Experience*
- *Accountability*
- *Ethical Behavior*
- *Diversity*
- *Mutual Respect*
- *Continuous Improvement*

As Fort Worth continues to grow and change, these principles help keep employees on point, providing the best service to citizens, businesses and fellow employees. City employees are guided by the City's mission and values to work toward the vision that “***Fort Worth will be the most livable and best managed city in the country.***” The City's mission, values, and vision serve as the foundation for information contained in the FDPRRs.

Chapter 143 of the Texas Local Government Code

As permitted by the Texas Civil Service laws, Chapter 143 of the Texas Local Government Code (“Chapter 143”), the City of Fort Worth elected to have many of the terms and conditions of its sworn police and fire personnel's employment be governed by the provisions of that chapter. On issues where a then-applicable labor agreement or the Fort Worth Civil Service Commission Rules do not apply, Chapter 143 may provide guidance. Otherwise, these FDPRRs and the Fire Department's S.O.P.s should be relied upon.

Chapters 141 and 142 of the Texas Local Government Code

Chapters 141 and 142 of the Texas Local Government Code contain some rules about work hours and compensation for Fire Fighters in Texas. On issues in which a then-applicable labor agreement or Chapter 143 of the Texas Local Government Code does not apply, these statutes may provide guidance.

Fire Department S.O.P.s

The S.O.P.s contain detailed information, work rules, procedures, regulations and directives about employment in the Fire Department. The S.O.P.s are intended to be read in harmony with the FDPRRs. Current versions of the S.O.P.s are available on the Fire Department intranet site.

Collective Bargaining Labor Agreement

A contract entered into under the TLGC, Chapter 174, entitled “Fire and Police Employee Relations,” preempts and controls over any contrary personnel rule or regulation herein, unless otherwise provided for in such contract. Because these labor agreements are typically negotiated on a four-year cycle and can change with time, any reference to such a contract in these FDPRRs will refer to it as the “then-applicable labor agreement” or “the Collective Bargaining Agreement” or “the CBA.”

As of the effective date of these FDPRRs, a Collective Bargaining Agreement (“CBA”) exists between the Fort Worth Professional Fire Fighters Association, IAFF Local 440 (“the Association”) and the City of Fort Worth. The CBA was entered into in compliance with TLGC Chapter 174. The Association is the sole, exclusive bargaining agent for Fire Fighters employed by the City. The CBA governs certain enumerated pay, benefits and working conditions for City Fire Fighters. Any provision in the CBA controls over any conflicting provision in these FDPRRs, to the extent there is a conflict. Any use of the term “Collective Bargaining Agreement” or “CBA” or “labor agreement” or “the then-applicable labor agreement” in these FDPRRs means the Collective Bargaining Agreement, if any, that is in effect between the City and the Association.

If the then-applicable labor agreement does not address a specific issue that is addressed in these FDPRRs, then a general provision, or general language, in the then-applicable labor agreement will not control over a specific provision, or specific language, in these FDPRRs.

If no CBA exists between the City and the Association, then these FDPRRs, and Texas civil service laws, will control the working conditions for the City’s Fire Fighters and any provision in the City’s PRRs for general (non-civil-service) employees will control over a conflicting provision in these FDPRRs, to the extent of the conflict.

Fire Fighter(s)

Fire Fighter(s) means any full time, permanent, paid member of the Fort Worth Fire Department who was hired in substantial compliance with Chapter 143 of the Texas Local Government Code, as modified by the provisions of the Collective Bargaining Agreement. This definition excludes the Fire Chief, non-certified employees, retirees and Fire Fighter Trainees.

Fort Worth Fire Fighters’ and Police Officers’ Civil Service Commission

Under Chapter 143 of the Texas Local Government Code, the City of Fort Worth maintains a Civil Service Commission (the “Commission”). In accordance with section 143.008, the Commission promulgates its own rules which can be found on the City’s Human Resources website. These rules control many aspects of hiring, promotion, and discipline when not in conflict with the then-applicable labor agreement. Any reference to the Fort Worth Fire Fighters’ and Police Officers’ Civil Service Commission Rules in these FDPRRs will refer to them as the “FW Civil Service Commission Rules.”

Management Rights

Except as provided for by federal or state law or as expressly modified, delegated, or abridged by the provisions of any applicable labor agreement or FW Civil Service Commission Rules, Department management with input from the City Council and the City Manager’s Office, shall retain the sole, exclusive, and vested right and prerogative to manage the Department and its workforce and assets in all respects, including, but not limited to: the right to hire, train, promote, demote, discipline, suspend, discharge, assign, transfer, retain, or lay off employees; the right to establish, eliminate, or modify the qualifications and

minimum requirements for hiring, training, promotions, transfers, and job assignments; the right to establish, eliminate, classify, reclassify, or modify the number and types of positions and job classifications; the right to assign and direct the work of Fire Fighters, including the scheduling and assignment of duties, responsibilities, and hours of work; the right to establish, eliminate, or modify the methods, processes, means, and personnel by which operations are to be carried out; the right to establish, eliminate, modify, review, and enforce rules and standards governing job performance, personal conduct and appearance, uniforms and equipment, safety, training, education, attendance, discipline, and efficiency; the right to establish, abolish, or modify processes and procedures for investigating and reviewing Fire Fighter conduct and complaints relating to that conduct; and the right to determine the wages, hours of work, benefits, and working conditions of the Fire Fighters in the Department.

The exclusive rights and prerogatives of management not expressly mentioned or described in this statement of management rights or FDPRRs are nevertheless retained by the City and are not to be interpreted as having been diminished, waived, or ceded in any respect. If the then-applicable labor agreement or these FDPRRs do not, by their terms, expressly and specifically restrict, modify, or abridge a particular right or prerogative of management, then the City retains such right or prerogative of management, solely and exclusively subject to federal, state or local law. Moreover, the City's retained rights and prerogatives of management shall not be restricted, diminished, waived, or ceded by any purported past practice, purported condonation or ratification of prior acts of employees, or by prior arbitration decisions or civil service hearing decisions, unless otherwise provided for in any then-applicable labor agreement.

Amendments

The City Manager, or his or her designee, with advice and assistance from the Human Resources Department, develops, adopts, and promulgates Personnel Rules and Regulations for all City employees who are, directly or indirectly, under the City Manager's supervision and control. From time to time, the FDPRRs are amended to maintain good and efficient business practices and comply with changes in federal, state or local law.

Department Rules and Regulations

The Fire Department, with approval of the Fire Chief, may establish additional rules and regulations for the Fire Department that are not specifically addressed in these FDPRRs. The Fire Chief may generally approve departmental policies, Information Bulletins, or standard operating procedures ("S.O.P.s") that are more restrictive or controlling than policies in these FDPRRs so long as they do not conflict with federal, state or local law, or any then-applicable labor agreement. The Human Resources Department Director may require a department policy to be changed or retracted if it inappropriately conflicts with these FDPRRs.

Waivers

Application of a specific provision of the FDPRRs may only be waived by the Human Resources Department Director or his or her authorized designee. To obtain a waiver, a written request must be sent from the Fire Chief to the Human Resources Director. The request should identify the applicable rule or regulation to be waived and the justification for the waiver. The Human Resources Director or his or her designee reviews each waiver request on a case-by-case basis and approves or denies the request.

Clarifications

In situations not covered specifically by the FDPRRs, employees of the Human Resources Department authorized by the Human Resources Director may provide an interpretation or clarification based on the perceived intent of the FDPRRs. Individuals with questions or requests for clarifications must verify that the contacted employee is authorized to provide an official response. The Human Resources Department also publishes Human Resources Advisories on various topics. These Human Resources Advisories are intended to assist with the clarification or interpretation of the FDPRRs, provide guidelines on procedures, provide additional detail or information on a rule, describe best practices or serve as a teaching resource.

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1. Hiring

1.1 Purpose and Introduction

This chapter describes how the City of Fort Worth provides employment opportunities for persons who are interested in and qualified to work for the City in commissioned Fire Fighter positions. The City seeks to hire and retain competent employees who are honest, technically competent, show respect for fellow members of the City team, and who recognize the responsibility that public employees have to our customers and the general public. Although the FDPRRs do not apply to fire recruits or trainees, these policies are included so that supervisors and other Fire Department employees can carry out the requirements of this chapter.

The City's hiring and employment practices for Fire Fighters are primarily determined by:

- (1) state statute;
 - (a) Chapter 143 of the Texas Local Government Code (also called "Chapter 143" or "civil service law");
 - (b) Texas Local Government Code Chapters 141 and 142; and
 - (c) Texas Commission on Fire Protection Standards and Education, Texas Government Code, Chapter 419 ("TCFPSE")
- (2) the Collective Bargaining Agreement (an agreement between the City and the then-applicable bargaining entity for Fire Fighters, sometimes also called the "then-applicable labor agreement");
- (3) the Local Rules of the Fort Worth Fire Fighters' and Police Officers' Civil Service Commission (also called "the Commission" or "the Civil Service Commission"); and
- (4) City policy:
 - (a) the Fire Department Personnel Rules and Regulations (this document); and
 - (b) the Fire Department S.O.P.s.

Fire Fighters are sometimes referred to as "civil service employees" because their employment is subject to the civil service rules of Chapter 143.

For questions about this chapter, please call the Fort Worth Fire Department Recruiting Unit or the Talent Acquisition Manager in the Human Resources Department.

1.2 General Hiring Guidelines

All applicants for Fire Fighter positions must take a written entrance examination that is administered by the City in accordance with Chapter 143 and the then-applicable labor agreement.

The City posts entrance examination notices for beginning positions in the Fire Department on the City's official website in accordance with the requirements of Chapter 143 and the then-current labor agreement. Job applications and other official paper or electronic forms that are used in the selection process are provided by the Human Resources Department and available on the Internet. The City uses valid, job-related selection procedures and methods to hire employees on the basis of their qualifications and suitability for employment with the intent to hire candidates that are most qualified. Employment decisions are based on job-related factors, including the candidate's suitability and qualifications as those traits are related to the essential functions of the job.

The then-applicable labor agreement and the FW Civil Service Commission Rules may contain additional requirements related to the hiring of Fire Fighter Trainees, including requirements concerning the posting of vacancy announcements. Those additional sources provide guidance regarding the testing and selection of candidates to be Fire Fighters.

1.2.1 Pre-Employment Process

The Fire Department will work cooperatively with the Human Resources Department during the application process to ensure that applicants are treated equitably and fairly, regardless of race, color, national origin, sex, pregnancy, transgender, gender identity, gender expression, religious affiliation, political affiliation or belief, age (over 40), sexual orientation, genetic information, veteran status, and disability status. Please see further information in the Equal Opportunity section above.

1.2.2 Applicant Evaluation

The criteria used for applicant evaluation and the minimum standards for hiring entry-level Fire Fighters are outlined in the then-applicable labor agreement and the FW Civil Service Commission Rules.

1.2.3 Applicant Packet Documentation

The Fire Department shall maintain a complete file for all applicants for civil service positions to comply with any criteria outlined in the then-applicable labor agreement, Chapter 143 and the FW Civil Service Commission Rules.

1.2.4 Conditional Offer of Employment

The Fire Department may extend a conditional offer of employment to applicants for a Fire

Trainee position who have met the established criteria and requirements outlined in the then-applicable labor agreement, the FW Civil Service Commission Rules, and Chapter 143.

1.3 Equal Opportunity

City recruitment is inclusive so that all individuals have an equal opportunity for employment. All artificial, arbitrary, and non-job-related barriers to employment such as race, color, national origin, sex, pregnancy, transgender, gender identity, gender expression, religious affiliation, political affiliation or belief, age (over 40), sexual orientation, genetic information, veteran status, and disability status (including contagious diseases such as tuberculosis in the non-contagious state and HIV) are eliminated to ensure equal access to employment. This policy is practiced in all personnel actions and conditions of employment, including, but not limited to: recruitment, employment, training, promotion, transfer, demotion, termination, layoff, discipline, compensation, and benefits.

1.4 Employment Verification

The information that job candidates provide during the employment application process is subject to verification. Individuals who falsify or omit material information may be disqualified from consideration for the position or, if already hired, may be disciplined up to and including indefinite suspension, which is equivalent to dismissal.

1.4.1 Employment Verification and References

Employees should not release information about current or former employees without proper authorization. Information given in response to requests from outside employers or businesses to verify employment shall generally be limited to a Fire Fighter's hire date, job title, and current or last salary. External requests for employment information should be directed to the City's automated Job Verification system unless a release signed by the Fire Fighter has been provided.

In those instances where a Fire Fighter has signed a release, individuals should consult with the Fire Chief's Office, Human Resources, or the legal department to determine what specific information may be released. Supervisors who provide reference information must provide only objective information (not opinions) in writing that can be supported by documentation and avoid allowing personal perceptions of the individual to be communicated.

1.4.2 Verification of Education/Certification/License Qualifications

The Fire Department is responsible for verifying education. If an applicant's claimed education cannot be verified, it is the applicant's responsibility to submit required documents such as high school or GED diploma, college degree, or transcript. Failure of the applicant to comply with requests for documents may delay the hiring process, or result in the termination of the applicant's hiring process.

Failure to submit verification documents will not disqualify an applicant from consideration for employment unless the documents are required for verification of minimum hiring standards as established in the Local Civil Service Commission Rules. However, failure to provide the documents by the stated deadlines may prevent the timely addition of points that would otherwise be awarded under the Local Civil Service Commission Rules or any then-applicable agreement.

1.5 Minimum and Maximum Employment Age

Fire Trainee candidates must be at least 18 years of age and cannot yet be 36 years of age on the date his or her entry-level exam is administered. This requirement may be changed pursuant to any then-applicable labor agreement, the FW Civil Service Commission Rules, or Chapter 143.

1.6 Authorization to Work in the USA

Individuals seeking employment with the City must be eligible to work in the United States and provide requested documentation upon hire. New hires must complete Form I-9, *Employment Eligibility Verification*, during orientation. Form I-9 requires original documents establishing identity and employment eligibility to be shown at the time employees complete their new hire paperwork. Form I-9 lists acceptable documents for establishing eligibility to work in the United States on the back of the form. Human Resources personnel will review documentation provided and verify eligibility to work.

Federal law requires that new hires who fail to provide acceptable documents at orientation or within three (3) days of their hire date cannot be employed or must be terminated, if hired.

1.7 Driver's License Verification and Record Check for New Hires and Current Employees

Fire Fighters must have an appropriate and valid Texas Driver's License. Entry-level applicants must have a suitable driving record that meets the minimum hiring standards outlined in the FW Civil Service Commission Rules.

The City of Fort Worth has defined criteria to identify if an employee occupies a position that requires Driver's License Verification:

Driver's License Verification Criteria:

Job Description: Valid Driver's License requirement;

Vehicle Use Form: Use City Vehicle and/or Use Personal Vehicle for City business;

Receive Executive Car Allowance

To ensure compliance with this policy, the Risk Management Division of the Human Resources Department periodically checks the validity of driver's licenses of those employees who drive on City business, maintains a list of employees whose driver's licenses are no longer valid. If the check reveals that the employee's license is not showing a clear status (i.e., expired, suspended, DUI), the employee's City driving privileges shall be suspended and the employee shall not be allowed to drive any vehicle on City business. Upon receipt of notification from the Risk Management Division that an employee's City driving privileges have been suspended, the Fire Department Professional Standards Office will notify the employee in writing of the suspension of driving privileges and the procedures to follow to clear the employee's driving record with the Texas Department of Public Safety (DPS) and to subsequently have his or her driving privileges reinstated by the City. The Department may contact the Risk Management Division for assistance with drafting such a communication. The affected employee's City driving privileges shall be suspended on his or her receipt of the notification from the Fire Chief or his or her designee. The notification should be made in-person with a signed employee acknowledgement or via certified mail.

For an employee's City driving privileges to be reinstated, the steps below must be followed:

1. The employee should contact the DPS Driver Improvement Office at (512) 424- 2600 to determine his or her driver's license status. DPS will disclose the employee's driver's license status and explain what he or she must do to clear it.
2. The employee must obtain from DPS a copy of his or her DPS Status Record (Type 1 or higher) and provide the copy to the Fire Department's Professional Standards Office or the Department's Human Resources Coordinator. A copy of the DPS Status Record (Type 1) can be obtained for a fee at the DPS website www.dps.texas.gov/DriverLicense/driverrecords.htm. The employee is responsible for paying this fee. The DPS Status Record (Type 1 or higher) is the only acceptable verification document.
3. Verbal assurances and/or explanations from the employee will not be accepted. Driver's licenses in the possession of those on the DPS suspension/revocation list shall be considered invalid until receipt of the DPS Status Record (Type 1 or higher) indicating the driving record has been cleared.
4. The employee will be allotted ten (10) working days from the date of their notification

to provide the Driver Record to their supervisor. Failure to timely complete these requirements may result in disciplinary action, up to and including termination.

5. The Professional Standards Office or the Department Human Resources Coordinator shall forward a copy of the DPS Status Record verification received from the employee to the Risk Management Division.
6. The Risk Management Division will review and approve the DPS Status Record verification and will send an e-mail reinstating the employee's City driving privileges.
7. The Risk Management Division will coordinate approved DPS Status Record verification records with the Human Resources Records Division.

1.8 Criminal Records Check

The Fire Department is responsible for conducting criminal background checks on fire trainee applicants to ensure that applicants possess a suitable criminal history as outlined in the FW Civil Service Commission Rules. An applicant should be given the opportunity to respond to discrepancies on the criminal records check before they are removed from the hiring process.

In accordance with Chapters 5 and 6 of the FW Civil Service Commission Rules, the intentional falsification or omission of information during the application and/or hiring process will result in removal from consideration for the position or, if already hired, may lead to indefinite suspension. State law, including Chapter 143, the FW Civil Service Commission Rules, and any then-applicable labor agreement may outline the types of criminal history an applicant may have and still be considered for hire.

1.9 Employment Testing

Any then-applicable labor agreement, the FW Civil Service Commission Rules, and Chapter 143 may contain requirements for testing applicants for Fire Trainee jobs.

The selection of a candidate to be a Fire Fighter shall be based primarily on the candidate's suitability to serve as a Fire Fighter, as determined by the Fire Chief or designee. All testing and selection procedures shall be designed and intended to identify the most suitable candidates for selection from those who apply and to exclude those candidates who are deemed not likely to possess the characteristics and abilities to be successful as a Fire Fighter.

1.10 Hiring Salary

Compensation for civil service positions is determined by either the then-applicable labor agreement or the City's current salary schedule approved by the City Council during the annual budget process. Compensation for trainees in the Fire Training Academy will be set by the City Manager, or designee, as trainees are general employees subject to the PRRs for general employees.

1.11 New Employee Orientation

All employees who are scheduled to work for twenty hours per week or more must attend a City orientation session (also called New Employee Orientation Program or NEOP) before starting work at their assigned location. In addition, rehired, reemployed, and/or reinstated employees, as well as individuals moving from a temporary or seasonal status to a full-time or reduced schedule position, must attend NEOP. Temporary or seasonal employees are not required to attend NEOP.

Basic employment policies are discussed at the orientation. Employee benefits, including but not limited to retirement, leave privileges, and group health benefits are also covered during orientation. The employee's eligibility to work in the USA is confirmed before or as part of this process. (See [Eligibility to Work in the USA above for further information.](#))

An authorized member of the Fire Department will contact the employee for details regarding when and where to report prior to their start date.

1.12 Direct Deposit or Alternative Payment Method

Employees are paid by the City through direct deposit. Employees must set up a payment method when completing new-hire paperwork; this payment method may be changed at a later date by contacting the payroll division. The City is not responsible for any transaction fees incurred in connection with the use of debit or pay cards.

2. Compensation and Personnel Actions

2.1 Purpose and Introduction

The purpose of this chapter is to ensure the City's compliance with the Fair Labor Standards Act ("FLSA"), Texas Local Government Code Chapters 141, 142, and 143, and any then-applicable labor agreement; demonstrate efforts to attract and retain qualified candidates and employees; provide a level of compensation that is equitable and will motivate employees to do their best work; and communicate the City's basic compensation and personnel action procedures.

It is the policy of the City of Fort Worth to accurately compensate Fire Fighters in compliance with all applicable state and federal laws. To ensure that Fire Fighters are properly paid for all time worked and that no improper deductions are made, Fire Fighters must correctly report all work time and review their pay advice to identify any errors.

Fire Fighter pay is established in the Salary Schedules approved by the City Council during the annual budget implementation or the then-applicable labor agreement. Personnel actions are used to change a Fire Fighter's status or pay. Personnel actions are implemented using an electronic Personnel Action Request (ePAR) form sent by departments to the Human Resources Records Division. See the Human Resources Advisory: *Personnel Action Requests* for more information regarding ePARs.

Some of the sections in this chapter are specific to either "exempt" or "nonexempt" Fire Fighters. These designations relate to application of the Fair Labor Standards Act to the respective employee's position/pay. Exempt employees are exempt from the overtime pay requirements of the FLSA. Exempt employees are paid the same weekly salary regardless of the number of hours worked. Non-exempt employees are paid by the hour and must be paid overtime pay when they work more than 40 hours in a work week. To determine whether you are working in an exempt or nonexempt position, contact your Human Resources Coordinator in the department or refer to your status in PeopleSoft.

The City's personnel policies, including the compensation policies in Chapter 2, **DO NOT CONSTITUTE A CONTRACT**. Any compensation and/or benefit policies explained in these regulations are subject to review at least annually by City Council and are subject to change at any time. If any labor agreement expires or is terminated, City Council reserves the right to implement any compensation and/or benefits that it considers appropriate at that time.

Questions regarding this chapter should be directed to the Human Resources Classification and Compensation Manager.

2.2 Fair Labor Standards Act (FLSA)

The FLSA establishes standards for minimum wages, maximum hours, overtime pay, recordkeeping, and child labor. The overtime pay requirements are relevant to Fire Fighters' employment. Pursuant to the then-applicable labor agreement, the City compensates Suppression Fire Fighters as allowed in 20 U.S.C § 107(k) ("Section 7(k)") of the Fair Labor Standards Act, as amended. Regular Overtime for a Suppression Fire Fighter is defined as hours worked in excess of 106 hours in a 14-day pay cycle. Regular Overtime for a Staff Fire Fighter is defined as hours worked in excess of 40 hours in a 7-day work week.

It is important for Fire Fighters to accurately report their work hours and for supervisors and other employees to keep accurate records of the hours worked to ensure overtime is correctly paid. The FLSA is administered by the Wage and Hour Division of the United States Department of Labor ("USDOL" or "DOL"). All employees at every level in the City are responsible for compliance with the FLSA, as amended. The Human Resources Department is responsible for the administration and interpretation of the FLSA, with input from the City Attorney's Office ("the Law Department"). These responsibilities include: determining the existence of an employer-employee relationship; determining an employee's exempt or non-exempt status under the FLSA; and interpreting and applying minimum wage, work time, coded hours, overtime, work schedules, special residency agreements, and other FLSA provisions such as child labor standards.

The Human Resources Department and the Law Department are responsible for negotiations and serve as the liaison with the Wage and Hour Division of the U.S. Department of Labor on FLSA matters affecting employees.

The Fire Chief or designee is responsible for ensuring that Fire Fighters adhere to and comply with established work schedules. Fire Fighters must obtain proper authorization before working outside their established work schedules. Fire Fighters who fail to obtain authorization to perform work that is in addition to their established work schedules may be disciplined for failure to obtain authorization but must nevertheless be compensated for all the time they worked.

Work time (hours worked) must be recorded exactly as it is worked by both exempt and non-exempt employees. The dates worked and the number of hours recorded as being worked each day must accurately reflect what actually occurred. Fire Fighters who fail to accurately record all time worked or who falsify time records may be subject to disciplinary action, up to and including indefinite suspension.

Supervisors who approve timesheets which do not accurately reflect hours worked may also be subject to disciplinary action.

The City operates in accordance with its compensation policy and in compliance with the FLSA, as amended. All Fire Fighters are encouraged to ask questions about their status as exempt or nonexempt Fire Fighters and their rights under the FLSA. Questions should be directed to the Fire Fighters' departmental staff person(s) who handles payroll matters. The Human Resources Department Classification and Compensation Manager may also be consulted on such matters.

The FLSA prohibits retaliation against a Fire Fighter for filing a complaint, cooperating in an investigation, or initiating any proceeding under, or related to, the FLSA.

2.3 Fire Fighters Step Pay Plan

Fire Fighters are compensated using a negotiated Step Plan found in the then-applicable labor agreement. The base pay rate for new Fire Fighter candidates (Fire Trainee) is at the entry level step for the Fire Trainee Classification. Movement from step-to-step is based upon the timeframes established in the then-applicable labor agreement. If there is no labor agreement in place, then individuals should consult the City salary schedule most recently adopted by the City Council as part of the annual budget process.

2.3.1 Promotional Pay

The base pay rate after a promotion is controlled by either the then-applicable labor agreement or the City's salary schedule most recently adopted by the City Council as part of the annual budget process.

2.3.2 Pay Rate Following Lateral Transfer

A Fire Fighter's base pay rate does not change on the basis of a lateral transfer within the department. However, lateral transfers may result in assignment to a position or shift which warrants assignment pay or some other sort of special pay.

2.3.3 Pay Rate Following Demotion

Demotions may occur on a voluntary or involuntary basis pursuant to Chapter 143 of the Texas Local Government Code or any then-applicable labor agreement. The pay rate after a demotion is to a step in the lower rank based on the Fire Fighter's service time as a Fort Worth Fire Fighter unless otherwise dictated by the Fire Chief, agreed to by the Fire Fighter, ordered by the Civil Service Commission or Hearing Officer in an appeal decision, or called for in any then-applicable labor agreement.

2.4 Appointed Fire Fighter's Pay Plan

Compensation for the ranks of Assistant Chief and Deputy Chief may be controlled by any then-applicable labor agreement, the executive pay plan, or the current salary schedule adopted by the City Council and these FDPRRs. Such personnel shall also be exempt from overtime compensation to the extent permitted by state and federal law, unless allowed by the Fire Chief.

2.4.1 Appointment Resulting in Promotion

Pay for Fire Fighters who are appointed to non-tested positions (also called “appointed positions”) by the Fire Chief is controlled by any then-applicable labor agreement, the executive pay plan, or the current salary schedule adopted by the City Council and these FDPRRs.

Generally, the pay rate for Fire Fighters appointed to the ranks of Assistant Chief and Deputy Chief is at the entry-level of the first quartile of the Appointed Fire Fighter’s job classification. The Fire Chief may appoint a Fire Fighter to an appointed position at a higher rate, up to the maximum rate for the second quartile, based on qualifications beyond the minimum qualifications listed in the job description. If the appointed Fire Fighter is already earning a salary that is in the second quartile at the time of his or her appointment, the Fire Chief can increase the salary up to 10 percent.

The Fire Chief must conduct equity evaluations (*please see Glossary*) of the salaries of similarly situated employees in appointed positions before hiring or promoting someone at a higher than normal rate and should work with the Classification and Compensation Division of the Human Resources Department to accomplish this.

Information related to demotions of appointed Fire Fighters may be found in any then-applicable labor agreement and is also addressed in Chapter 143 of the Texas Local Government Code and the FW Civil Service Commission Rules. The pay rate after a demotion from an appointed position is to a step in the lower rank based on the Fire Fighter’s service time as a Fort Worth Fire Fighter unless otherwise dictated by the Fire Chief, agreed to by the Fire Fighter, ordered by the Civil Service Commission or Hearing Officer in an appeal decision, or called for in any then-applicable labor agreement.

2.5 Exceptions to General Guidelines for Employee Pay - Appointed Positions

With the approval of the Human Resources Director, performance pay, merit pay, the pay for a promotion, or any other type of pay increase may be less than the recommended standard pay increase for those types of changes. Factors such as internal pay equity, budget issues, work performance, minor changes in the work performed, advertised salary amount, or other valid reasons may justify less than normal or no pay increase for Fire Fighters in Appointed Positions.

2.6 Travel Time

Commute time between a Fire Fighter’s home and worksite is not compensable unless the Fire Fighter is performing work during the commute. If a Fire Fighter is allowed the privilege of driving a City vehicle home, to an off-site parking facility, or to another location along the Fire Fighter’s reasonable commute route, the time spent driving the City vehicle is commute time and is not compensable. If, however, a Fire Fighter is required as part of his or her job duties to park a City

vehicle at a remote parking facility, the time spent driving the vehicle between a remote parking facility and the Fire Fighter's worksite is compensable. A remote parking facility is a City facility or other approved location at which the Fire Fighter is directed to park a City vehicle due to limitations at the primary site or for the operational convenience of the City. Selection of a remote parking facility is made without regard to the convenience of the Fire Fighter.

Time spent traveling between worksites as part of a Fire Fighter's regular work assignments is normal work time and is compensable. Time spent traveling to and from out-of-town training or work-related meetings is compensable if it occurs during the Fire Fighter's regularly-scheduled work hours. Travel time that occurs outside of a Fire Fighter's regularly-scheduled work hours may or may not be compensable, depending on whether or not the Fire Fighter is performing work while traveling. If the Fire Fighter is, for instance, reviewing documents related to his or her job while traveling, the time is compensable. If the Fire Fighter is driving, the time is compensable. If the Fire Fighter is merely riding in a car or on a plane, and is not engaged in work for the City, the time is not compensable.

For work-related travel outside of Fort Worth, when a Fire Fighter has the option of flying or driving and chooses and is approved to drive based on the Fire Fighter's preference rather than cost or other considerations, compensation will only be for the amount of time that would have been spent flying, including the time spent driving to and from the airport, parking, checking baggage, and the time elapsing between the check-in deadline and actual boarding.

2.7 Training Time

Generally, hours that Fire Fighters spend in training are compensated as hours worked if the training is for the benefit of the employer (examples of such include: enhancing an employee's work-related skills; training on a new work-related computer system or software; attending a conference for professional development). Training that occurs during the Fire Fighter's regular work hours is compensable.

However, attendance outside of regular working hours at specialized or follow-up training that is required by law for certification of the employee's professional or occupational credentials does not necessarily constitute compensable hours of work. This is true even if the City pays for the training. Training is only payable as work time when the training is approved in advance by the Fire Fighter's supervisor. Training time **IS NOT** compensable if the following factors are all met:

- Attendance is outside of the employees regular working hours,
- Attendance is voluntary,
- The program, lecture, or meeting is not directly related to the employee's job, and
- The Fire Fighter does not perform concurrent work for the City during such attendance.

It is important to note that attendance is not considered to be "voluntary" if it is required by the employer.

The Fire Department, depending upon particular circumstances, may choose to compensate Fire Fighters for travel or training time, even it is not legally required to do so. Please contact the Human

Resources Classification and Compensation Manager with questions regarding whether a Fire Fighter's training time is compensable.

2.8 Overtime Pay and Compensatory Time for Fire Fighters

Fire Fighters who are regularly scheduled to work 40 hours per week (Staff Fire Fighters) are eligible to receive one and one-half times their regular hourly rate in overtime pay or compensatory time credited at the rate of one and one-half times for hours worked over 40 in a work week. In addition, the City compensates Fire Fighters who are regularly scheduled to work 56 hours per week (Suppression Fire Fighters) as allowed in 29 U.S.C. § 207(k) ("Section 7(k)") of the Fair Labor Standards Act, as amended. Regular Overtime for a Suppression Fire Fighter is defined as hours worked in excess of 106 hours in a 14-day pay cycle. Regular Overtime for a Staff Fire Fighter is defined as hours worked in excess of 40 hours in a 7-day work week.

Fire Fighters may not accrue more than 120 hours of compensatory time. If a Fire Fighter works overtime hours that cause them to exceed the 120-hour compensatory time limit, all hours over 120 hours must be paid as overtime at the rate of one-and-one-half times the Fire Fighter's regular rate of pay. For example, if a Staff Fire Fighter works 44 hours in a week, four of those hours are "overtime" hours. If these hours are to be compensated with compensatory time, six hours would be added to the Fire Fighter's compensatory leave balance.

If the 120-hour limit is exceeded, all compensatory time hours over 120 hours are paid at the Fire Fighter's straight time rate (the four "overtime" hours have already been converted to six hours of compensatory time). Additional information regarding compensatory time may be found in the then-applicable labor agreement.

Generally, leave time used does not count as hours worked for the basis of calculating overtime eligibility. An exception to this rule is holiday leave and personal holiday leave, which count as hours worked. Additional exceptions (e.g., vacation leave) may be granted in a then-applicable labor agreement. Only those hours actually worked (or treated under City policy or a then-applicable labor agreement as hours worked) are compensated at the one-and-one-half overtime rate (either in pay or compensatory time) when applicable overtime thresholds are reached.

Fire Fighters whose employment with the City is terminated for any reason are paid for all accrued compensatory time.

2.8.1 Appointed Fire Fighters

Fire Fighters in appointed positions earn compensatory time for hours worked that are in excess of 40 in a work week. Fire Fighters who are Suppression employees earn FLSA overtime for hours worked that are in excess of 56 hours in a work week.

Fire Fighters in an appointed position cannot accrue more than 120 hours of compensatory time at any time during the calendar year. Appointed Fire Fighters are paid for unused, accrued

compensatory time, subject to the 120-hour limit, when their employment with the City ends.

2.8.2 Promotions and Demotions and Paying Out Compensatory Time

If a Fire Fighter moves to an appointed position, any unused compensatory time accumulated while the Fire Fighter was nonexempt will not be paid out at the nonexempt rate at the time of the change in position. Fire Fighters are paid for unused, accrued compensatory time, subject to the 120-hour limit, when their employment with the City ends.

2.9 Special and Premium Pays

2.9.1 Fire Fighter Holiday Pay, Holiday Premium Pay, and Holiday Leave Accrual

Time accrued for all holidays shall be based on either a Fire Fighter's eight (8) hour schedule for staff personnel or a twelve (12) hour schedule for suppression personnel. Fire Fighters shall be paid Holiday Premium Pay for hours worked (eight or sixteen depending on shift) on a holiday at time-and-one-half (1 ½) the Fire Fighter's regular rate.

Additional terms and conditions regarding Holiday Pay, Holiday Premium Pay, and Holiday Leave Accrual may be found in the then-applicable labor agreement.

2.9.2 Other Rules affecting Holiday Pay, Holiday Premium Pay, and Holiday Leave Accrual

In connection with holiday pay, holiday premium pay, and holiday leave accrual policies, the City recognizes holidays on both the actual calendar day of the holiday or the "observed" holiday. Suppression Personnel and any Staff Personnel who are required by their position to work on the actual holiday shall receive Holiday Premium Pay and accrue Holiday Leave for work on that actual holiday, regardless of when it is recognized by the City. Suppression Personnel and those Staff Personnel not included above shall follow only the official City-recognized holiday schedule.

Fire Fighters may not use paid leave such as vacation, sick/family, holiday, personal holiday, or compensatory time on the holiday to accrue the holiday. Any leave scheduled on a holiday will not be deducted from a Fire Fighter's leave balance. A Fire Fighter will receive holiday pay instead of using leave time.

Fire Fighters whose last day of work/date of termination is the day before an observed holiday do not receive pay for the holiday. Fire trainees who begin employment on the day after a holiday do not receive pay for the holiday.

Additional terms and conditions may be found in the then-applicable labor agreement.

2.9.3 Healthy Challenge Payout

Fire Fighters and their dependents cannot participate in the City's Wellness Program. Thus, they are not eligible to receive the Healthy Challenge Payout available to other City employees and their dependents.

2.9.4 Education/Certification Incentive Pay for Fire Fighters

Eligible Fire Fighters must complete their initial probation to be eligible for Education Incentive Pay unless otherwise provided in a then-applicable labor agreement. See the *Glossary* for definitions of "education incentive pay" and "certification incentive pay."

The requirements for certifications established by the Texas Commission on Fire Protection Personnel Standards and Education (TCFPPSE) are used as guidelines for education/certification pay. Pay is based on the number of college hours, or a degree plus years of service, or the level of certification plus years of service.

Education/certification payments are based on the following criteria:

- Completion of basic or advanced courses at an accredited college or university resulting in an Associate's Degree, a Bachelor's Degree, a Master's Degree or a Ph.D
- Attainment of higher-level state certification.

When a Fire Fighter qualifies for an education incentive pay, he or she must send the verifying transcripts and other pertinent documentation to the Fire Department's Professional Development Division before the Fire Fighter will be eligible for education incentive pay. The Professional Development Coordinator is responsible for reviewing the documentation and submitting the incentive/assignment pay authorization paperwork required by the Human Resources Department to change a Fire Fighter's education or certification level.

Education/certification payments are included in the first paycheck of each month, with appropriate retirement and tax deductions withheld. Education/certification payments start within one month after the Human Resources Department is notified of a Fire Fighter's qualification for such pay. In the event there is a time lapse between qualification and notification, there are no retroactive payments. The Education/Certification Pay Schedule for Fire Fighters is outlined in the then-applicable labor agreement and is subject to change.

For Fire Fighters holding more than one degree or certification, he or she may receive education or certification pay only for the highest degree or certification he or she has obtained unless otherwise permitted by the then-applicable labor agreement. For example, if a Fire Fighter holds an Associate's Degree and a Bachelor's Degree, the Fire Fighter may receive education pay only for the Bachelor's Degree as it is the highest degree the Fire Fighter has obtained.

2.9.5 Review and Evaluation of Incentive Plans

Investigations or audits may be performed when deemed necessary by the Internal Audit Department, the Human Resources Director, or any other party designated by the City Manager.

2.9.6 Special Merit Increases for Appointed Positions

Fire Fighters in appointed positions, may be eligible to receive a special merit increase. Special merit increases are a valuable tool available to reward or recognize a truly exceptional Fire Fighter outside the pay-for-performance cycle. The purpose of a special merit increase is twofold:

- To retain valuable Fire Fighters; and
- To recognize the long-term valuable contribution of a Fire Fighter.

A special merit increase request must be submitted by the Fire Chief to the Human Resources Director for consideration. The request should provide sufficient detail to allow for an objective assessment of the justification for the request.

The long-term financial impact of a special merit increase must be considered in light of the accomplishments of the Fire Fighter. The cost/benefit ratio of the special merit increase should be considered by the Fire Department before making a request.

Alternatives with significantly less financial impact are:

- One-time special merit lump-sum awards, discussed in the section titled “Incentive and Lump Sum Awards; and”
- Prospective merit increases limited to a specific period of time.

If the Human Resources Director denies a request for a special merit pay increase, the Fire Chief may request the Department’s Assistant City Manager to review the request and either approve or deny the request after receiving input from both the Fire Chief and the Human Resources Director.

2.9.7 Equity Pay for Appointed Positions

With the approval of the Fire Department’s Assistant City Manager, the Fire Chief may request the Human Resources Director to evaluate the need for equity pay adjustments for Appointed Positions. The request for an equity pay evaluation must be based on department-wide operational needs and not on the perceived needs or fairness of individual Fire Fighters. The Fire Chief must avoid creating inequity issues, when possible, in the appointment and selection of Fire Fighters to appointed positions.

2.9.8 Acting Pay

Unless otherwise specified by a then-applicable labor agreement, Fire Fighter acting pay will be paid at the base pay rate for the higher rank, or at the Fire Fighter’s current step rate, plus 5%, whichever is more.

2.9.9 Bilingual Skills Pay

Fire Fighters whose job duties require the use of bilingual skills may be eligible for additional compensation. To be eligible for bilingual skills pay, Fire Fighters must take and pass a language proficiency test administered by the Human Resources Department. However, Fire Fighters must

receive approval to take the test through the appropriate chain of command before scheduling a test date. If a language proficiency test is not available through Human Resources, Fire Fighters must provide an appropriate certification from an accredited agency or institution to be eligible for bilingual skills pay.

Use of verbal and writing skills is compensated as prescribed in the then-applicable agreement. Bilingual pay is included in the first paycheck of each month, with appropriate retirement and tax deductions withheld.

The Human Resources Department has a list of employees who receive bilingual skills pay. This list is available on the intranet (<http://www.cfwnet.org/hr/>). Upon request, Fire Fighters receiving bilingual pay are expected to assist other departments with translation. Refusal to assist may result in the loss of bilingual pay. Bilingual pay can be discontinued at any time at the discretion of the Fire Chief or his or her designee, as long as the Fire Fighter no longer uses bilingual skills in the performance of their essential job functions.

2.9.10 Emergency Call Back Overtime

Fire Fighters who are called back to duty for emergency situations during the Fire Fighter's off-duty hours shall be paid a minimum of four (4) hours overtime and paid as a premium pay at 1 ½ of the Fire Fighter's regular rate. Fire Fighters shall be paid in this manner for all hours worked during the callback until the Fire Fighter's duty day begins, in which case, the additional compensation will cease. Hours worked that are paid as Emergency Call Back overtime premium pay do not count as hours worked for the purpose of calculating eligibility for regular overtime.

Provisions regarding emergency call-back and other types of department overtime may be modified by the terms and conditions of the then-applicable labor agreement.

2.9.11 Longevity Pay

As authorized and permitted by section 141.032 of the Texas Local Government Code, a Fire Fighter is eligible for longevity pay after completion of one year of service. Each year, a Fire Fighter will receive longevity pay in the amount of forty-eight dollars (\$48.00) per year of service, in addition to their regular pay. For example, a Fire Fighter with five (5) years of service as a Fire Fighter will receive an additional two hundred and forty dollars (\$240.00) a year. A twenty-five (25) year Fire Fighter will receive an additional twelve hundred dollars (\$1,200.00) a year. Twelve hundred dollars (\$1,200.00) a year is the maximum a Fire Fighter can receive in longevity pay.

Longevity payments will be distributed evenly over the pay periods in the respective calendar year. In some instances, there may be a minimal variation in the total annual amount due to rounding, but in no instances shall the total annual amount be less than the amounts stated above. In any year that has a 27th pay period, the per period amount will be adjusted, but the annual amount will remain the same.

2.9.12 Assignment Pay

Fire Fighters whose job duties require the use of specific skills may be eligible for additional

assignment pay as authorized by the then-applicable labor agreement, state law, or City ordinance.

2.10 Conditions of Pay

General Provisions

It is the policy of the City of Fort Worth to accurately compensate Fire Fighters in compliance with all applicable state and federal laws. To ensure that they are properly paid for all time worked, and so that no improper deductions are made, Fire Fighters must correctly report all work time and review their pay advices to identify any errors.

If a Fire Fighter believes that an improper deduction has been taken from his or her pay, he or she should use the following reporting procedure. If the Fire Fighter discovers an improper deduction within seven calendar days after the date of the relevant pay advice, he or she should contact his or her designated time clerk. If the error is not corrected within 20 days of submission, the Fire Fighter or the HRC should contact the department's payroll unit.

All improper reductions of pay in exempt/appointed Fire Fighters' compensation should be reported, regardless of when they are discovered. Any act of retaliation against a Fire Fighter who questions his or her pay is strictly prohibited.

Reports of improper deductions will be reviewed as quickly as possible. If it is determined that an improper deduction has occurred, any underpayment will be reimbursed and efforts will be made to ensure that further improper deductions do not occur in the future.

2.10.1 Payroll Deductions

If authorized by the employee or an order or writ of withholding, automatic payroll deductions can be made to pay for certain items, including but not limited to (1) voluntary membership dues for Fire Fighter organizations and associations; (2) other City-offered services; (3) legally-mandated deductions; and (4) voluntary deductions associated with City-sponsored programs and charitable organizations.

See Human Resources Advisory: *Payroll Deductions* for guidelines and approval requirements for payroll deductions.

2.10.2 Recovery of Inaccurate Pay or Benefits

It is the Fire Fighter's responsibility to review his or her payroll information and deductions for accuracy. If a Fire Fighter is overpaid, given more leave benefits than he or she is due, or receives any other benefit or compensation to which he or she is not entitled, whether due to error for any reason, a Fire Fighter's misrepresentation, the misapplication of a policy, or an error in processing, the Fire Fighter is expected to notify the Department's payroll unit promptly. The City will take steps to recover the benefits or compensation. Likewise, any form of payroll deduction that results in an

underpayment should be reported as well.

Fire Fighters are required to repay the City upon notification of an overpayment error. Generally, Fire Fighters are given the same amount of time to complete repayment to the City as the time during which the error or overpayment was made, unless otherwise provided for by agreement. For example, if a Fire Fighter was overpaid for three pay periods, the Fire Fighter would normally have up to three pay periods from the date of notification to complete repayment. However, such repayment period will not cross over into another calendar year.

The City's Human Resources department, and/or the Fire department will attempt to establish with the Fire Fighter a mutually-agreeable method to recover overpayments. Failure to agree on a method may result in appropriate action initiated by the City to correct the issue, including the use of payroll deductions, with or without the Fire Fighter's agreement on the amount of the periodic payments, or the period of time the deductions will occur. A Fire Fighter's failure to cooperate in the recovery process could also result in disciplinary action up to and including indefinite suspension. Before deducting from a Fire Fighter's pay for an overpayment, the Department should consult with Human Resources and the Law Department to ensure that an anticipated repayment agreement or schedule complies with wage and hour laws, the then-applicable labor agreement, or other rules or regulations.

2.10.3 Deductions from Exempt/Appointed Fire Fighters' Pay

Exempt/Appointed Fire Fighters receive a salary that is intended to compensate them for all hours worked for the City. While it may be subject to modification from time to time, such as during salary reviews, an Exempt/Appointed Fire Fighters salary will be a predetermined amount that is not subject to reduction due to variations in the quality or quantity of the work performed, except as specifically allowed by law. The City prohibits the improper pay deductions specified in 29 C.F.R. Section 541.602(a).

Under the following circumstances, however, the City will deduct from an exempt/appointed Fire Fighter's pay:

- For absences from work due to sickness, disability or personal reasons when the Fire Fighter has no paid leave to use;
- To offset amounts received by a Fire Fighter for jury fees, witness fees or military pay;
- For unpaid disciplinary suspensions of one or more full days;

- For weeks in which an exempt/appointed Fire Fighter takes unpaid leave under the Family and Medical Leave Act;
- For unworked days in the terminal week of employment; and
- Pursuant to a repayment agreement of one or more overpayments as set out in Section 2.10.2, above.

Fire Fighters' salaries may also be reduced for certain types of deductions such as their portion of health, dental, or life insurance premiums; state, federal or local taxes; Medicare; or contributions to a 457 or pension plan. Further, reducing a Fire Fighter's accrued vacation, personal, sick or other form of paid time off for full-or-partial-day absences for personal reasons, sickness, or disability

does not constitute an improper deduction.

2.10.4 Final Pay at Termination or Retirement

Final pay for hours worked in a pay period before termination is directly deposited into the Fire Fighter's primary designated account or pay card account on the pay day after the termination ePAR is processed.

Fire Fighters who terminate during the pay period are not paid for vacation and sick/family leave accrued during that final pay period. The maximum amount of sick leave payout is capped by the Texas Local Government Code, or by the then-applicable labor agreement.

If a pay rate change occurs during the pay period in which the Fire Fighter terminates, the Fire Fighter is paid his or her terminal leave pay (including appropriate leave balances) at the pay rate on the date of their separation. Fire Fighters are paid for accrued compensatory time at termination regardless of the reason for the termination.

The City can collect any money from the Fire Fighter's final pay or terminal leave payout that is owed to the City for benefits or overpayments. If the pay for the hours worked on the final paycheck is reduced to below the minimum wage, the Law Department needs to be consulted to ensure that FLSA regulations are not violated.

2.10.5 Prior Pay Period Adjustments for Pay or Leave Corrections

Pay, leave, and other adjustments should be made to timesheets immediately after the pay period and up to 28 days after the pay period begin date. The reasons for adjustments must be documented by the timekeeper/person making adjustments, notice the Fire Fighters supervisor is required and maintained with payroll records for the pertinent time reporting period. Any adjustments 28 days or later after the pay period begin date require the review and approval of the supervisor and the Human Resources Director or designee to adjust the leave balances. The review request is submitted by the Fire Chief or designee to the Human Resources Director or designee. Corrections or adjustments due to "clerical" or timekeeper error do not require a waiver.

3. Classification

3.1 Purpose and Introduction

Classifications for civil service positions are managed in compliance with the Texas Local Government Code and any then-applicable labor agreement. Chapter 141 of the Texas Local Government Code requires that covered municipalities classify all civil service positions and specify the duties and prescribe the salary for each classification. Chapter 143 of the Texas Local Government Code requires that the civil service commission provide for the classification of all civil service employees, and that city council prescribe by ordinance the number of positions in each classification. Otherwise classifications can only be added, deleted, or changed through a then-applicable labor agreement.

This chapter provides guidelines on Fire classifications. The City of Fort Worth groups budgeted positions into classifications (also called ranks). The positions within a classification have similar duties and responsibilities. The City treats the positions in a classification as equivalent with regard to personnel and salary administration.

The Human Resources Department provides the classification specifications. The specifications describe the range of duties that are performed by employees in the class. The specifications include essential and other duties and responsibilities statements, qualifications, and working conditions of the classification. Classification specifications describe only the major duties and functions and are not intended to exhaustively describe specific positions in detail.

Official classification titles are used in all personnel, payroll, accounting, budget appropriations, and functional records and transactions. "Working" or "functional" job titles may be used at the discretion of individual Department directors; however, official class titles must be used when processing personnel action requests (PARs). A coding system designates each classification.

The Human Resources Director (acting as Civil Service Director) administers and maintains the classification system and may initiate studies of individual positions, a series of positions, classifications, occupational groupings, or organizational units to maintain the integrity of the classification system. When the need for a new classification arises, either through the above-described process or because of a then-applicable labor agreement, the Human Resources Director establishes a new classification title and develops classification specifications for the new classification.

For questions about this chapter, contact the Classification and Compensation Manager in the Human Resources Department.

4. Employment

4.1 Purpose and Introduction

This chapter provides to Fire Fighters information about the types of personnel actions and outlines the processes and requirements of employment with the City of Fort Worth.

For questions about this chapter, call the Human Resources Manager for Talent Acquisition and/or Classification/Compensation/Civil Service.

4.2 Personnel Actions

All transfers and assignments are the sole prerogative of the Fire Chief and are not subject to the grievance procedure. Additional requirements regarding personnel transfers may be found in the Department S.O.P.s

4.3 Conditions of Employment

4.3.1 Initial Probation

The initial probation is a period when new Fire Fighters become familiar with their jobs. During this period, the Fire Fighter determines whether he or she can perform the duties of the job. Likewise, the Fire Chief determines whether the new Fire Fighter can perform assigned tasks satisfactorily and comply with work rules and regulations.

Fire Fighters will serve a probation period as determined by the then-applicable labor agreement, or Chapter 143, whichever is applicable. General employees enrolled in the Fire Training Academy (“Fire Trainees”) remain in initial probationary status for the entire duration of their Academy enrollment and any additional period of time, as specified by Chapter 143 or the then-applicable labor agreement.

A probationary Fire Fighter is an at-will employee during the initial probation, subject to the provision of applicable state and federal law, including but not limited to equal opportunity and anti-discrimination laws. Initial probation Fire Trainees are “at will” general employees. Fire Fighters and Fire Trainees who have not completed the initial probationary period may be disciplined and terminated without Chapter 143 civil service appeal rights.

Sick leave is available for use during initial probation subject to supervisory approval. Earned holiday leave hours accrued can be used during the initial probation with supervisory approval.

Other accrued leave benefits such as vacation are available for use with supervisory approval only after successfully completing the initial probation period. Personal holidays are subject to the use-or-lose date of December 31st annually. If the initial probation is extended, the use of accrued leave and personal holiday is at the discretion of the Fire Chief.

4.3.2 Secondary Employment

Secondary employment, including in a self-employed capacity, requires annual approval from the Fire Chief or designee prior to engaging in any such employment. Any request for secondary employment may be refused or, if approved, rescinded, if the Fire Chief or designee determines that it is incompatible with City employment or presents a conflict of interest. A Fire Fighter may request the reason/rationale for the denial from the Fire Chief. A Fire Fighter already working a secondary job at time he or she applies with the City must obtain approval from the Fire Chief or designee to continue working the secondary job if hired. Additional terms and conditions governing secondary employment may be located in any then-applicable labor agreement or the Fire Department S.O.P.s.

Failure to disclose off-duty employment may lead to disciplinary action up to and including indefinite suspension, which is equivalent to dismissal from the Department. Furthermore, Fire Fighters shall not engage in secondary employment while on-duty or use City resources, including work time, supplies, or equipment to perform secondary work.

Should secondary employment end and the Fire Fighter apply for unemployment benefits, it is the responsibility of the Fire Fighter to report City wages to the Texas Workforce Commission. The City will not be responsible to pay any unemployment benefits for a Fire Fighter's loss of their secondary employment, for any reason. Any money required to be paid by the City for such unemployment benefits because of the loss of a Fire Fighter's secondary employment will be repaid to the City by the Fire Fighter pursuant to Section 2.10.2, above.

4.3.3 Fire Fighter Personnel Records

The City maintains a personnel file for Fire Fighters pursuant to sections 143.089(a) ("A" files) and 143.089(g) ("G" files) of the Texas Local Government Code.

As outlined in the Texas Local Government Code, "A" files are maintained by the City of Fort Worth Human Resources Director/Civil Service Director and consist of, but are not limited to, employment records, periodic evaluations, commendations/honors, misconduct and disciplinary action, civil service files/commission records, notices of promotion, TCFPPSE licensing certificates, and notice of commission as a Fire Fighter. The Department shall forward all "A" files to the Civil Service Director.

As outlined in the Texas Local Government Code, "G" files are maintained by the Fire Department. These files may consist of, but are not be limited to, records of disciplinary action that did not result in a disciplinary suspension, disciplinary action that was later appealed and overturned, and documents for the Department's own use relating to the employment relationship. Except in limited circumstances, the information contained in the "G" file is confidential by

law under the Texas Public Information Act.

Any Fire Fighter may inspect and review his or her Human Resources personnel file (“A” file), except “G” files, during regular business hours by submitting a request in writing by fax, mail, email, in person, or over the online public information portal maintained by the Records and Information Management Office.

Confidential information contained in a Fire Fighter’s personnel file, other than “G” file material, is open for inspection by the Fire Fighter themselves or the Fire Fighter’s authorized agent. Fire Fighters shall schedule time, currently 36 business hours in advance, to view their file in accordance with the guidelines provided in the then-applicable labor agreement. Fire Fighters can also review some personal information through employee self-service in PeopleSoft.

The Human Resources Director or designee shall notify a Fire Fighter within 30 days of a negative letter, memorandum, document, or other negative notation that is included in a Fire Fighter’s personnel file. The Fire Fighter may, on or before the 15th day after the date of receipt of the notification, file a written response to the negative letter, memorandum, document, or other negative notation.

Additionally, a Fire Fighter who objects to information or material in his or her permanent personnel file because it is inaccurate or misleading can file a complaint with the Human Resources Director or designee. A Fire Fighter should make a request within 30 days of the date that the Fire Fighters knew, or should have known, that the disputed information was in the personnel file. The Human Resources Director, or designee, will determine if the information in the personnel file should be changed, and this decision is final and cannot be appealed. This complaint process does not apply to simple factual inaccuracies in a Fire Fighter’s personnel file, such as address and phone number or to disciplinary actions or performance appraisals.

The City may, at its discretion, modify a Fire Fighter’s personnel record if, after an indefinite suspension, additional information becomes available that impacts a Fire Fighter’s eligibility for rehire. This additional information shall be maintained in the Fire Fighter’s “G” file.

4.3.4 Nepotism (Employment of Relatives) and Personal Relationships

Employment of relatives is permitted; however, employees may not use their position to influence their appointment or employment or any terms and conditions of the relative’s appointment or employment.

A personal relationship between employees in and of itself is not inappropriate. The Department shall exercise due respect for the right of personal associations and privacy of Fire Fighters. However, all decisions by a supervisor must be fair, objective, and impartial.

Therefore, when a personal relationship exists or develops between a supervisor and subordinate who are in the same chain of command or within the same workgroup, the involved supervisor shall immediately inform their immediate supervisor. The Fire Chief or his designee shall also be notified and shall ensure one of the involved employees is immediately reassigned to a position in which the supervisor/subordinate relationship conflict no longer exists.

4.3.5 Searches of Work Areas and Employee Belongings on City Property

Fire Fighters do not have an expectation of privacy with respect to items related to their work, for example, passwords, combinations, desk drawers, file cabinets, work areas, city vehicles, and lockers. Fire Fighters will be required to provide supervisors with passwords and keys upon request. Fire Fighters may only use personal locks on City property if approved by their supervisor or the Fire Chief. Fire Fighter ownership of a lock is not determinative of privacy or a private space.

Fire Fighters should limit the amount of personal belongings that are carried or kept on City premises and the Fire Fighter retains the responsibility and liability for any personal belongings brought to the workplace that are lost, stolen, or damaged.

4.3.6 Global Positioning Devices

The City may equip some or all of its vehicles used by Fire Fighters with Global Positioning System (GPS) devices (e.g., Automatic Vehicle Locators or AVLs) or internal cameras to track and monitor workplace conduct and/or the location of City vehicles, including those vehicles that are assigned to specific Fire Fighters.

4.3.7 Uniforms and Dress Code

While on duty, Fire Fighters in the department shall only wear such uniform and insignia as the Fire Chief may prescribe. Other specific details on the approved department dress code and personal appearance for assignments and different occasions may be found in the Department S.O.P.s.

4.3.8 Use of Fragrances in the Workplace

Fire Fighters are expected to be sensitive to others in the use of fragrances on their person and/or in their work spaces (e.g. perfumes, cologne, air fresheners, etc.). If a fragrance negatively affects another person in the workplace or a person visiting City facilities, the Fire Fighter may be required to remove the source of the fragrance. If it is necessary to leave work to do so, Fire Fighters are required to use their own leave time. If no leave time is available, the absence will be without pay.

4.3.9 Participation in City-Sponsored Events

If a Fire Fighter attends an official City-sponsored event during scheduled work time, it is considered work time. Supervisor approval is necessary for a Fire Fighter to attend such events. If a Fire Fighter attends a City-sponsored event while off work, it is not work time and the time will not be compensated. Examples include City-sponsored health fairs, donating blood, retirement preparation meetings, and open enrollment benefit meetings.

4.3.10 Purchase of City Property and Services

The Fort Worth City Code prohibits City employees from either directly or indirectly purchasing any property or services from the City, with the exception of those that are provided to City residents, such as water and sewer services. In addition, the Fort Worth City Charter prohibits City employees from having a direct or indirect financial interest in a contract with the City. There are certain narrow exceptions to these rules. For example, a City employee is entitled to participate in some City grant programs that are funded by the United States Department of Housing and Urban Development, but only if that employee is not connected in any way with oversight of those programs. If you and/or any member of your immediate family are contemplating a business transaction that could be connected with the City, you should contact your supervisor or the Law Department for direction. Any employee who knowingly violates these rules may be subject to disciplinary action up to and including termination.

4.3.11 Smoke-free Workplace

In accordance with Chapter 29.5 of the City Code, all City of Fort Worth buildings and facilities are smoke free. Fire Fighters must adhere to this ordinance and bring it to the attention of persons visiting City buildings and facilities. City vehicles are considered designated work areas under this policy and are "smoke free." This prohibition includes the use of cigarettes, pipes, and cigars. The use of electronic cigarettes, e-cigarettes, or personal vaporizers, is also prohibited. Smokeless tobacco, unlit cigarettes, or chewing tobacco products are also be prohibited in buildings, facilities, and vehicles due to hygiene or professional appearance concerns.

Fire Fighters who take "smoke breaks" must comply with the break policy. No additional breaks or rest periods are granted to Fire Fighters who smoke.

4.3.12 Religious Expression and Prayer in the Workplace

The City of Fort Worth is prohibited from discriminating against employees on the basis of belief in any religion or nonbelief in religion. The City is required to allow its employees to individually express their religious beliefs to the greatest extent possible, consistent with the requirements of the law and workplace efficiency. The expression of religious beliefs should not cause a disruption to other employees or the work environment and should not interfere with the performance of essential job functions. Any requests for religious accommodation should be made by contacting the Employee and Labor Relations Division of the Human Resources Department. Additionally, religious harassment will not be permitted.

The City is prohibited from requiring its employees to participate in religious expression, such as prayer, as a condition of employment. This includes situations such as employee meetings, conferences, holiday luncheons, retirement receptions, and office parties. In lieu of a prayer, employees may begin holiday luncheons with a moment of silence.

This does not prohibit employees from engaging in religious practices on an individual basis, such as reading a religious book at the employee's desk during a break.

Invocations at City Council Meetings are excluded from this policy.

4.3.13 Political Activity

Political Activities of Fire Fighters are governed by Section 2-186 of the City Code and the Texas Local Government Code Section 143.086. Fire Fighters excluding the Fire Chief, Assistant City Managers, the City Attorney, and the City Manager, may take an active part in another person's political campaign for City Council while off duty. Fire Fighters are prohibited from taking an active part in their own, or any other person's, political campaign for an elected position during working hours or while wearing a City uniform. The term "taking an active part" includes, but is not limited to, wearing campaign-related clothing or accessories (e.g., buttons, nametags); posting political items in or around the employee's office or workspace (e.g., stickers, posters, cartoons figurines, or signs); making a political speech; making financial contributions; distributing, or displaying on City premises, campaign or campaign related literature, signs, bumper stickers or insignia; writing a letter; signing a petition; or actively soliciting votes. Political campaign includes a candidate or political party. City premises includes City owned and/or leased buildings, parking lots and parking garages.

The City does not prohibit a Fire Fighters from becoming a candidate for public office. No disciplinary action shall be taken against a Fire Fighter, including indefinite suspension, solely because the Fire Fighter becomes a candidate for public office. A Fire Fighter who becomes a candidate for public office must fulfill all the duties and responsibilities associated with his or her employment.

Fire Fighter may actively campaign in any national, state, county, city (as excepted above) or school board election on their own time and away from their job site. All Fire Fighters are encouraged to exercise their constitutional rights and vote. For complete information, see City Code Section 2-186.

4.3.14 Nursing Mothers

A Fire Fighter is entitled to express breast milk at the workplace for up to one year for the birth of an employee's child. The City supports the practice of expressing breast milk and will make reasonable accommodations for the needs of all employees, including Fire Fighters, who express breast milk. The City provides a reasonable amount of break time for a Fire Fighter to express breast milk each time a Fire Fighter has a need to express the milk. The Fire Department shall provide a place, other than a bathroom, that is shielded from view and free from intrusion from co-workers and the public which may be used by the Fire Fighter to express breast milk. Breastfeeding Fire Fighters shall have access to a sink with hot water and soap for washing hands and rinsing breast pump parts. Expressed milk can be stored in workplace refrigerators in the break room or the Fire Fighter's personal cooler. All expressed milk must be labeled with the Fire Fighter's name. As with any personal food item, handling and supervision of the expressed milk is the sole responsibility of the Fire Fighter.

The City will not discipline, take an adverse action against, or otherwise discriminate against a Fire Fighter because the Fire Fighter has asserted the right to express breast milk at the workplace. Fire Fighters who plan to express milk during work hours need to communicate with their supervisors regarding space and scheduling needs. Supervisors or a department-designated coordinator should promptly work with the Fire Fighter to find a suitable place in compliance with this policy. For informational materials about breastfeeding or for assistance in setting up a suitable temporary location to express breast milk, supervisors and Fire Fighters should contact the Human Resources Wellness Division. The Fire Department is only required to maintain a location for expressing breast milk when a Fire Fighter has a need to do so, however,

department staff are also encouraged to plan ahead and consider where a suitable location might be designated quickly in the event the need arises.

To the extent that it is feasible, Fire Fighters should use the amount of time normally allotted for breaks and lunch periods to express breast milk. If the Fire Fighter uses a break that would otherwise be compensated, the Fire Fighter must be compensated in the same way that other Fire Fighters are compensated for that break time. If, however, a Fire Fighter uses a break that would otherwise not be compensated, the Fire Fighter will not be compensated for the break time. There may occasionally be times when a Fire Fighter needs more than the usual amount of time to express breast milk. On such occasions, supervisors may, depending on the needs of the individual worksite, allow the Fire Fighter additional paid time, allow the Fire Fighter to make up the additional time at the end of the work day, or use compensatory time or available leave that can be used for such purposes, e.g., vacation leave, holiday leave, or personal holiday leave.

4.3.15 Parent/Teacher Conferences

Attending parent/teacher conferences is an important event for Fire Fighters with school-age children. Supervisors should be flexible and attempt to revise work schedules or duties to allow Fire Fighters the time to attend these conferences. Fire Fighters may use available vacation leave, compensatory time, holiday leave or personal holiday leave to attend these conferences. Leave requests shall be made as outlined in the Department S.O.P.s.

The Fire Chief may establish departmental guidelines for allowing Fire Fighters to attend parent/teacher conferences while minimizing work disruption or loss of productivity. The Fire Chief may also require documentation that a Fire Fighter has attended a parent/teacher conference.

4.3.16 Fire Fighter Organizations and Associations

Fire Fighters can join, organize, or maintain membership in an employee or labor organization if desired. The City neither encourages nor discourages these activities, nor does membership or non-membership in an employee or labor organization affect the Fire Fighter's standing or rights as a City employee. The policy herein stated is in accordance with the provisions of the laws of the State of Texas and the Charter of the City of Fort Worth, Texas.

Under Texas law, it is illegal for Fire Fighters to strike, slow down, picket, or take any action that interferes with the ordinary and orderly conduct of the City government's business. Strike means failing to report for duty in concerted action with others; willfully being absent from one's position as a Fire Fighter; stopping work; abstaining from the full, faithful, and proper performance of the duties of employment; or interfering with the operation of the City of Fort Worth in any manner, to induce, influence, or coerce a change in the conditions, compensation, rights, privileges, or obligations of employment.

The City is currently authorized to participate in the collective bargaining process with the sole and exclusive bargaining agent for all covered Fire Fighters pursuant to Chapter 174 of the Texas Local Government Code.

The City of Fort Worth deducts dues when specifically authorized by the Fire Fighter and

where the deductions comply with City policy and state law. The terms and conditions of certain dues deductions may be modified pursuant to the then-applicable labor agreement. Membership in such organizations and/or any related payroll deductions do not affect a Fire Fighter's job or standing as a City employee.

4.3.17 Employee Identification Badge

Fire Fighters are issued an Employee Identification Badge with photo and employee number when hired. The Employee Identification Badge is City property. It must only be used for identification purposes and employee access to City buildings. The Fire Fighter must have the badge in his or her possession when engaged in City business.

If a Fire Fighter loses his or her Employee Identification Badge, the Fire Fighter should immediately contact the Department's Human Resources Coordinator or designee for a replacement badge and so the lost badge can be deactivated.

When a Fire Fighter's employment ends, he or she must return the Employee Identification Badge and other City property to the Department during out-processing. If a Fire Fighter terminates employment without notice, the Department's Training Division will facilitate the cancellation of any access codes associated with the Employee Identification Badge. The department will attempt to contact the terminated Fire Fighter to retrieve the Employee Identification Badge and other City property in his or her possession. The City may charge a former Fire Fighter a reasonable fee if the Fire Fighter does not return City property after the Fire Fighter's employment ends, and may deduct that reasonable fee from the former Fire Fighter's final paycheck.

4.3.18 Reductions in Force and Reinstatement List

Occasionally, a reduction in force is necessary because of changes in the organization or the availability of funds. The criteria utilized to evaluate a workforce reduction for Fire Fighters are based on seniority as defined in the then-applicable labor agreement or as outlined section 143.085 of the Texas Local Government Code, Force Reduction and Reinstatement List.

4.3.18.1 Reemployment Salary and Benefits for Laid-Off Fire Fighters

A laid-off Fire Fighter reemployed as a Fire Fighter will be paid a salary as required in the then-applicable labor agreement or as outlined in the current salary schedule approved by City Council. A Fire Fighter reemployed as a General Employee within one year of the layoff, is placed into a salary range of the new position that minimizes his or her loss, if any, in salary.

A Fire Fighter who has completed his or her probationary period at the time he or she is laid off will be compensated for unused leave as required in the then-applicable labor agreement. A rehired Fire Fighter will receive an adjusted service date as determined by the then-applicable labor agreement. If no labor agreement is in effect, the service date will be determined by the applicable retirement ordinance, which is subject to change.

A Fire Fighter who is laid off and later reemployed by the City as a general employee will have his or her pension benefits determined by the terms of the applicable retirement ordinance, which is subject to change.

4.3.19 Furloughs

Subject to the then-applicable labor agreement, Fire Fighter furloughs may be declared by the City Manager when necessary for financial issues or other reasons that may require a monetary reduction in the City's expenses. A furlough may be declared for all employees or for specific groups of employees. Furloughs can be declared by the day or partial days.

When a mandatory furlough is implemented, all furloughed Fire Fighters shall be paid on an hourly basis during that workweek. Subject to the exceptions described below, furloughed Fire Fighters shall neither be required nor allowed to work more than the number of allowable work hours in that workweek. If an individual works more than the number of allowable hours during a furlough week, the number of hours worked over the allowable hours, up to 40 hours, must be taken as a furlough during another workweek.

Fire Fighters whose regular day off falls on a furlough day will be furloughed on a different day during that workweek. If an individual's wages are reduced in lieu of a furlough day, those wages shall not fall below the federal minimum wage.

Definition – A furlough is a temporary layoff from work during which a Fire Fighter is without duties or pay because of a lack of work or funds or for other non-disciplinary reasons. For the purpose of calculating deadlines under the FD Personnel Rules and Regulations, a day that has been declared by the City Manager as a mandatory furlough day shall not be considered a working day. Allowable work hours are determined by reducing a 40 hour workweek by the number of mandated furlough hours for that week.

Non-exempt Fire Fighters – During the week in which a furlough is mandated, non-exempt Fire Fighters shall have their normal workweek reduced to the allowable number of hours in the workweek.

Appointed Fire Fighter/Exempt Employees – When a furlough is mandated, Appointed/exempt Fire Fighters will be considered non-exempt during the week in which a furlough has been ordered and shall work only the allowable hours in that workweek. A mandatory furlough and the resulting deductions from pay shall not disqualify an exempt employee from being paid on a salary basis except in the workweek during which the furlough occurs and for which the employee's pay is accordingly reduced.

Exceptions – Situations may arise which will require exceptions to the furlough policy. The Fire Chief is authorized to use discretionary authority to require Fire Fighters to work more than the

allowable work hours during a furlough week or modify an individual's furlough schedule because of operational needs.

If a situation occurs that requires a Fire Fighter to work more hours than the allowable work hours in a workweek in which a furlough has been mandated, the additional hours will be compensated at straight time for hours worked up to 40 and at time and one-half for hours over 40.

During a furlough week, an employee who is called back to work on an emergency basis after regular working hours and after having left the job site, or who is called to work a double shift, shall earn callback pay at 1½ times for a minimum of 2 hours. The employee must limit total hours worked during the furlough week, including emergency callback hours, to the maximum allowable work hours if at all possible. If the emergency callback causes the employee's total hours worked to exceed the allowable hours, the number of hours worked over the allowable hours and up to 40 must be furloughed in another workweek.

Leave Benefits – Benefit leave accruals shall be reduced during the pay period in which a furlough is taken in proportion to the reduction in the number of hours worked. If a Fire Fighter's wages are reduced in lieu of a furlough day, the employee's leave accruals shall similarly be reduced in proportion to the reduction in pay. Accrued leave benefits, such as vacation or compensatory time, cannot be taken or used in lieu of a furlough.

Worker's Compensation Benefits – Worker's compensation weekly benefits (temporary income benefits) will not be affected by furlough days. Worker's compensation supplements will not be paid on furlough days.

Violations of Policy – Intentional violations of this policy may result in disciplinary action up to and including a prospective reduction in pay, days off without pay, and/or discharge.

Cancellation of Furlough Days – The City Manager or designee has the right to cancel a scheduled furlough day and reschedule it for another day as necessary.

4.3.20 Jury Duty and Court Duty

Fire Fighters called to jury duty shall receive regular pay ("C" Court time on T&A's). Fire Fighters must verify their time spent at jury duty. Any money received by the Fire Fighter for jury service must be paid to the City or donated by the Fire Fighter to one of the charitable organizations or funds allowed by the county official's office that administers jury service.

Fire Fighters who are subpoenaed or required to participate in a City-related legal matter will be compensated for their time ("C" Court time on T&A's). Fire Fighters will not be compensated to conduct personal or private legal business.

4.3.21 Fire Fighter Resignations

Resignations should be in writing, signed by the employee, and preferably submitted at least two (2) weeks before their effective date. A brief, signed statement identifying the effective date of the resignation is adequate. The reason(s) for resigning may be presented but is not necessary.

Persons who want to withdraw their resignation must submit a written request to the Fire Chief explaining the reasons for the desired withdrawal. If the Fire Chief decides to rescind a resignation, the City's Re-Employment policy will be followed.

4.3.22 Involuntary Termination

Indefinite suspension is equivalent to dismissal from the department. When a Fire Fighter is indefinitely suspended, the Fire Fighter's employment with the City is terminated effective the date of the indefinite suspension. Upon an indefinite suspension, the Fire Fighter receives terminal leave pay for unused vacation leave, compensatory time, and accumulated holiday leave. As required by section 143.045 of the Texas Local Government Code, the Fire Fighter is paid for unused sick leave, up to a certain amount. Unused family leave, personal holiday leave or wellness leave is not paid at termination. A Fire Fighter who is vested in the City's retirement system may also request to withdraw their contributions from the retirement system.

A non-probationary Fire Fighter who is indefinitely suspended for disciplinary reasons shall have appeal rights afforded pursuant to the then-applicable labor agreement and/or Chapter 143. Chapter 143 and the then-applicable labor agreement address the procedures and appeal rights of a Fire Fighter who is indefinitely suspended. If a Fire Fighter is reinstated after an appeal with full or partial back pay, the back pay shall be offset by wages that the Fire Fighter earned during the suspension. Terminal leave pay amounts must be repaid to the City upon reinstatement and the Fire Fighter's applicable leave balances will be restored, according to the procedures set out in the City's Human Resources written policy. After filing an appeal, a Fire Fighter must make reasonable efforts to search for and obtain replacement employment, and the Fire Fighter's failure to fulfill this duty may reduce or eliminate any back pay for the Fire Fighter if reinstated. Other withholdings may also be made pursuant to the then-applicable labor agreement, income tax withholdings, and other laws and judgments that may apply. Paid leave that would have accrued during the reinstated time will be entered into the Fire Fighter's accrual subject to then-applicable caps.

Fire Fighters in the probationary period of employment may be terminated by the Fire Chief with or without cause if in the Fire Chief's determination they fail to meet the minimum standards of employee performance, or when they violate the S.O.P.s, Civil Service Rules and Regulations, these FDPRRs, charter provisions, ordinances, or other laws. Such Fire Fighters have no right of appeal under the provisions of the Texas Local Government Code, and the Fire Chief's decision shall be final.

5. Leave

5.1 Purpose and Introduction

This chapter provides general guidelines for accruing, using, and administering the different types of leave available to Fire Fighters. Fire Fighters who misuse or abuse any leave benefit are subject to appropriate disciplinary action up to and including indefinite suspension.

The City's personnel policies, including the leave policies in Chapter 5 of these FDPRRs, **DO NOT CONSTITUTE A CONTRACT**. Any compensation and/or benefit policies explained in these FDPRRs are subject to review at least annually by City Council and are subject to change at any time. If the then-applicable labor agreement expires or is terminated, City Council reserves the right to implement any compensation and/or benefits that it considers appropriate at that time.

For questions about this chapter, call Fire Department Administration, the Human Resources Department Manager for Benefits, or Human Resources Records Division.

5.2 Vacation Leave

The City of Fort Worth provides paid vacation leave to Fire Fighters. Fire Fighters begin accruing vacation leave after they have worked a full pay period. Unless allowed by the then-applicable labor agreement, a Fire Fighter cannot use vacation leave during the initial probation period.

If a City holiday occurs while a Fire Fighter is on approved paid leave, it is counted as a paid holiday and no time is deducted from the Fire Fighter's leave balance for that day.

The operational needs of the department may require supervisors to request that Fire Fighters explain the circumstances of their requested leave, so the supervisor can decide whether to approve the leave request. If requested, failure to provide information or documents concerning the requested leave could result in the denial of leave. Supervisors may rescind previously approved vacation leave because of work issues. The supervisor must consider the consequences to the Fire Fighter of which the supervisor is aware (prepaid travel expenses, family issues, Fire Fighter morale) compared to the operational needs of the department in deciding whether to deny or rescind requested leave.

Fire Fighters may request time vacation leave and have the associated leave time available or will have leave time available on the date the Fire Fighter would like to be off, except as provided below in Section 5.7, Leave Without Pay.

Limits on the maximum amount of accrued vacation leave as of the beginning of the calendar year (January 1) may be found in the then-applicable labor agreement, or, if no agreement is in effect, in the vacation accrual rules adopted by City Council.

Staff Fire Fighters who have completed the initial probation period must use at least 80 hours of vacation before the end of the calendar year (December 31). Suppression Fire Fighters who have completed the initial probation period must use at least 120 hours of vacation before the end of the calendar year (December 31). Failure to use at least 80 or 120 hours will result in the loss of accrued vacation leave in an amount equal to the difference between 80 or 120 hours and the total number of hours of vacation the Fire Fighter used during the calendar year. This is generally referred to as the "use it or lose it" rule. In addition to the 80 or 120 hour usage requirement, Fire Fighters will also forfeit any additional accrued vacation leave that is over the maximum allowable amount at the beginning of the calendar year.

The Fire Chief may approve a waiver of a specific "use it or lose it" provision as related to vacation hours. The requests should identify the business or work-related reasons why a Fire Fighter was not able to use the leave that would be lost without the waiver. Special assignments, critical projects, or the Fire Fighter being assigned to serve in a higher or unfamiliar capacity represent situations that may be acceptable business reasons for waivers. Time off work because of injury, illness, or any type of extended absence is generally not an acceptable basis for a waiver. The Fire Chief's decision whether to grant or deny the waiver is final. The Fire Chief's decision resulting in a waiver to the use it or lose it requirement will be forwarded to the City Human Resources Department for implementation.

Fire Fighters who retire, resign, or are indefinitely suspended (after completion of their initial probation) will be paid for all unused vacation leave subject to any limits outlined in the then-applicable labor agreement. Fire Fighters whose employment ends during a pay period will not be paid for vacation leave accrued during their final pay period. A Fire Fighter whose employment ends at the end of a pay period (and who worked or was on approved leave during the entire pay period) will be paid for vacation leave accrued during that pay period.

The chart below demonstrates the rates of vacation leave accrual for Fire Fighters:

	Staff or 8-Hour Day Fire Fighter		Suppression or 12-Hour Day Fire Fighter	
Sworn Service Time	Maximum Accrual Per Year (Hours)	Accrual Rate Per Pay Period (Hours)	Maximum Accrual Per Year (Hours)	Accrual Rate Per Pay Period (Hours)
Fire Fighter with 1 year of service	120	4.62	180	6.93
Fire Fighter with 5 years of service	136	5.23	204	7.85
Fire Fighter with 10 years of service	144	5.54	216	8.31
Fire Fighter with 15 years of service	160	6.15	240	9.23
Fire Fighter with 20 years of service	184	7.08	276	10.62

5.3 Sick Leave

Sick Leave (SL) is available to any Fire Fighter who is employed in a Full-Time or Reduced Schedule position and is a member of the Fort Worth Employees' Retirement Fund beginning January 1, 2021, and moving forward. SL that has been accrued by Probationary employees can be used as long as the other documentation requirements (below) are met.

SL can be used if a Fire Fighter:

- Cannot perform assigned duties because of an illness or injury.
- Has a medical, dental, ocular, or other health care appointment.
- Needs to access major medical sick leave or workers' compensation benefits.
- Needs to provide care for an immediate family member

“Immediate family member” under this policy is defined in the *Glossary*.

Fire Fighters have unlimited sick leave accrual, with the City paying up to 1080 hours of accrued sick leave.

Supervisors may require documentation to verify the need for SL. All documentation should be submitted to the department's Medical Records Custodian (MRC). If the documentation is determined to be inadequate, the employee will be given a reasonable amount of time to provide

adequate documentation. Failure to timely provide documentation could result in the denial of leave and disciplinary action up to and including termination.

Use of Sick Leave will not count towards any annual “use or lose” requirement for vacation leave.

Employees will only accrue SL for the last complete pay period prior to their termination or resignation effective date. Employees will accrue SL for the pay period in which their termination or resignation is effective if the entire pay period is worked and their termination/resignation date is the last day of the full pay period.

All full-time 40-hour Fire Fighters will accrue 4.62 hours of SL per pay period and all full-time 56 our Fire Fighters will accrue 6.93 hours of SL per pay period (i.e. 80 hours in a full calendar year). Reduced schedule employees accrue SL in the proportion that their work time compares to a regular 40-hour workweek. For example, a Reduced Schedule employee who works 20 hours in a work week will accrue half as much SL as an employee who is scheduled to work 40 hours in a work week.

5.3.1 Funeral and Bereavement

An employee can use up to 24 hours of accrued SL per occurrence to attend or plan funerals for, or mourn the death of, an immediate family member who has died. SL can be used for funeral or bereavement, including related activities, only in connection with the death of an immediate family member. See the *Glossary* for the definition of “immediate family member”. Probationary period employees can request use of SL or other accrued leave for funerals/bereavement.

5.4 Family Illness Leave

After completion of the initial probation period, Fire Fighters are eligible to use Family Illness Leave. Family Illness Leave allows Fire Fighters time off with pay when their presence is required to assist an immediate family member due to an illness and/or injury, doctor’s, dentist, or other medical appointments, or for a death in the immediate family. See the *Glossary* for the definition of “immediate family member”. Family Illness leave shall be granted only as necessary under the following circumstances:

1. To enable the Fire Fighter to provide care for a member of the immediate family when such member is seriously ill or injured requiring the care or attendance of the Fire Fighter.
2. For the Fire Fighter to be present during the hospitalization of an immediate family member.

When a Fire Fighter becomes aware they will be unable to report for work due to circumstances justifying Family Illness Leave, the Fire Fighter shall contact their station and company officer

or alternative staff as outlined in the Department SOPs.

Supervisors may require a Fire Fighter to submit proof of illness, injury, or death of an immediate family member when circumstances indicate a necessity to do so. If proof cannot be provided as required, the request to use Family Illness Leave shall be denied. If the leave has already been used and the required proof is not provided, appropriate disciplinary action may be initiated.

A Fire Fighter shall, on a daily basis, keep his or her supervisor informed of the Fire Fighter's need to continue on Family Illness Leave unless prior arrangements or FMLA leave was authorized for a specific period of time.

In cases where three (3) or more days of Family Illness Leave will be used, supervisors must notify the Medical Records Custodian (MRC) so FMLA forms can be sent to the Fire Fighter.

Family Illness Leave cannot be banked. At the beginning of each payroll year, any unused leave from the previous payroll year is deleted from the records. New Family Illness Leave is allotted to each eligible Fire Fighter in accordance with the table below:

Years of service	Maximum per Year (hours) 40-hr FF	Maximum per Year (hours) 56-hr FF
1	56	84
5	40	60
10	32	48
15	16	24
20	0	0

5.5 Family and Medical Leave Act

The Family and Medical Leave Act (FMLA) entitles eligible employees to take up to twelve weeks of unpaid, job-protected leave for specified family and medical reasons. The Support for Injured Service Members Act of 2007 (also known as Military Family Leave) allows eligible employees to take up to 26 work weeks of leave in any 12-month period. Applicable paid leave must be used concurrently with FMLA leave unless none is available.

The 12-month period begins with the first day of FMLA leave. It is not based on the calendar year. The City measures the 12-month period as a rolling 12-month period measured backward from the date an employee uses leave under this policy. When an employee takes FMLA leave, the City subtracts the time taken during the last 12 months from the available leave (12 weeks, or 26 weeks for the care of an injured or ill service member) to determine the balance remaining.

5.5.1 Eligibility

Only eligible employees are entitled to take FMLA leave. An eligible employee is one who:

- Has worked for the City for at least 12 months; the 12 months of employment do not have to be consecutive. That means any time previously worked for the City (including temporary or seasonal work) could, in most cases, be used to meet the 12-month requirement. If the employee has a break in service that lasted seven years or more, the

time worked before the break will not count unless the break is due to service covered by the Uniformed Services Employment and Reemployment Rights Act (USERRA), or there is a written agreement, including a then-applicable labor agreement, outlining the employer's intention to rehire the employee after the break in service.

- and, has worked at least 1,250 hours of service for the City during the 12-month period immediately preceding the leave.

Both of the requirements listed above must be met before an employee is eligible for job-protected leave under the Family and Medical Leave Act.

5.5.2 Leave Entitlement

Eligible Fire Fighters may take up to 12 workweeks of leave in a 12-month period for one or more of the following reasons:

- The birth of a son or daughter or placement of a son or daughter with the employee for adoption or foster case;
- To care for the spouse, son, daughter, or parent who has a serious health condition;
- For a serious health condition that makes the employee unable to perform the essential functions of his or her job; or
- For any qualifying exigency arising out of the fact that spouse, son, daughter, or parent is a military member on covered active duty or call to covered active duty status.

An eligible employee may also take up to 26 work weeks of leave during a single 12-month period to care for a covered service member with a serious injury or illness, when the employee is the spouse, son, daughter, parent, or next of kin of the service member. The single 12-month period for military caregiver leave is different from the 12-month period used for other FMLA leave reasons.

For FMLA purposes, a serious health condition means an illness, injury, impairment, or physical or mental condition that involves inpatient care or continuing treatment by a health care provider.

5.5.3 Intermittent or Reduced-Schedule Leave

Under some circumstances, employees may take FMLA leave on an intermittent or reduced schedule basis that means an employee may take leave in separate blocks of time or by reducing the time he or she works each day or week for a single qualifying reason. When leave is needed for planned medical treatment, the employee must make a reasonable effort to schedule treatment so as not to unduly disrupt the employer's operations. Examples of intermittent leave include leave taken on an occasional basis for medical appointments, or leave taken several days at a time spread over a period of six months, such as for chemotherapy. The employee must provide notice of their anticipated intermittent or reduced schedule in advance.

If FMLA leave is for the birth, adoption, or foster placement of a child, use of intermittent or reduced schedule leave requires the employer's approval and notice of their anticipated schedule.

Employees taking intermittent leave are required to comply with the department's call-in procedures before taking unscheduled intermittent leave, except in certain emergency cases.

Only the time taken as FMLA leave may be charged against the employee's entitlement when leave is taken intermittently or on a reduced leave schedule. Leave charges are in hours. The hours charged should be cumulative until such time as the total is equivalent to 12 normal workweeks.

The City can temporarily transfer an employee to an available alternative position with equivalent pay and benefits if the alternative position better accommodates the employee's need for intermittent leave or reduced schedule. The temporary transfer may occur in instances when leave for the employee or the employee's family member is foreseeable and for planned medical treatment, including recovery from a serious health condition or to care for a child after birth or placement for adoption or foster care.

5.5.4 City Leave and the FMLA

Fire Fighters who are absent due to an FMLA-covered reason must use accrued paid leave (e.g. Vacation, Sick Leave, Family Illness Leave, and Compensatory Time), if any, that is applicable to the reason for the FMLA. FMLA leave is used concurrently with appropriate, accrued City leave. For example, if a Fire Fighter uses FMLA leave to care for a family member, the Fire Fighter cannot use sick leave or any other leave that can only be used for the Fire Fighter's illness.

It is the Fire Fighter's responsibility to correctly choose the type of leave that he or she wishes to use to run concurrently with his or her FMLA leave. The reason for this requirement is so that the Fire Fighter will continue to be paid while on FMLA leave, to the extent that the Fire Fighter has sufficient applicable accrued leave available. Fire Fighters cannot choose to have their FMLA leave be unpaid if they have sufficient applicable accrued leave available to cover all or a portion of the time they are on FMLA leave.

Fire Fighters approved for continuous FMLA leave who have no accrued paid leave are carried in a without-pay status and will not accrue leave benefits. Fire Fighters must use all appropriate, accrued paid leave before being allowed to take FMLA leave without pay.

Fire Fighters who are off work for FMLA leave may not work secondary employment or engage in any activity, that is inconsistent with restrictions as prescribed by the FMLA certification.

5.5.5 Spouses Employed by the City

If spouses are employed by the City, and each wishes to take leave, the combined total leave that the spouses can take to care for a parent (but not a parent in-law) with a serious health condition, is limited to 12 weeks. This limitation does not apply to leave for either spouse's own serious health condition or the serious health condition of a child.

If both spouses work for the City and each wishes to take leave to care for a covered injured or ill service member, the spouses may only take a combined total of 26 weeks of leave.

5.5.6 Healthcare Benefits Continuation

Pursuant to the then-applicable labor agreement, health insurance coverage for Fire Fighters is provided through a Trust and the Healthcare Agreement between the City and the bargaining representative for Fire Fighters (“the Association’s Healthcare Plan”). Those agreements provide that the City does not provide health insurance coverage for Fire Fighters and the Association’s Healthcare Agreement sets out the respective roles and responsibilities of the Trust and the City with respect to healthcare for active and retired Fire Fighters and their dependents.

The City maintains its responsibilities towards the Fire Fighters’ group health coverage during FMLA leave, including payroll deduction of healthcare premiums that are forwarded to the Association and/or Trust. The City and Fire Fighters maintain the same coverage under the same conditions that they would had the Fire Fighter been working. When the Fire Fighter is on paid leave, the City will continue to collect healthcare premiums through payroll deduction.

When a Fire Fighter is on unpaid FMLA leave, the Fire Fighter must pay his or her required group health contributions to keep his or her coverage in effect through the Association’s Healthcare Plan. Fire Fighters should make payment arrangements with the Association.

Failure to make required contributions can result in cancellation of the Fire Fighter’s and his or her dependents’ (if any) coverage. The Fire Fighter is also solely responsible for making payment arrangements directly with any other entity (dental coverage, optional life insurance, employee association dues, Credit Union, etc.) for which payroll deductions are in place. The cost will be deducted from the Fire Fighter’s final paycheck, or billed to the Fire Fighter if the Fire Fighter fails to return to work for a reason other than the continuation, recurrence, or onset of the Fire Fighter’s own serious health condition or because of other circumstances beyond the Fire Fighter’s control.

5.5.7 FMLA Leave Process

If possible, employees should notify the City’s third-party FMLA administrator or their departmental Medical Records Custodian (MRC) of the need to take leave prior to FMLA leave beginning. When the MRC receives such notification, if the employee has been off work for three consecutive days, without approved leave, or if the MRC, HRC, or management learns that an employee absence may be for an FMLA-qualifying reason, the MRC should:

- Instruct the employee to contact the City’s third-party FMLA administrator

OR

- Contact the City’s third-party FMLA administrator on the employee’s behalf to initiate the leave process
- The City’s third-party FMLA administrator will inform the employee if their leave has been

designated as FMLA protected. The notification must be given within five business days from the time it is determined that the employee's absence would qualify under FMLA. If the certification or supporting information submitted by the employee is incomplete or insufficient, the City's third-party FMLA administrator will notify the employee in writing what additional information is necessary to make the certification complete and sufficient. Failure to submit adequate certification within seven calendar days may result in a denial of leave.

5.5.8 FMLA Leave Exhaustion

Fire Fighters who qualify for the protections of the Americans with Disabilities Act Amendments Act of 2008 (ADAAA), as amended, may request an extension (either paid or unpaid) of their leave of absence after FMLA leave is exhausted, as a reasonable accommodation. The City's third-party FMLA administrator will make a recommendation to Human Resources.

The Fire Chief or designee will review each such request on a case-by-case basis and confer with the City's Human Resources Employee and Labor Relations Division before deciding whether the request for accommodation is reasonable.

If a Fire Fighter with a non-occupational injury or illness has exhausted available FMLA leave and will not be able to return to work with or without a reasonable accommodation, the Fire Fighter may be placed on temporary leave after exhausting available leave pursuant to Tex. Loc. Govt. Code § 143.073(d).

5.5.9 FMLA Fitness-for-Duty Certification

As a condition of restoring a Fire Fighter whose FMLA leave was occasioned by the employee's own serious health condition that made the Fire Fighter unable to perform his or her job, the City may require a Fire Fighter to obtain and present a certification from the Fire Fighter's health care provider, at the Fire Fighter's expense, that the Fire Fighter is able to resume work pursuant to section 143.081 of the Texas Local Government Code and the FW Civil Service Commission Rules. Additionally, the City will require that the certification specifically address the Fire Fighter's ability to perform the essential functions of the Fire Fighter's job.

To require such a specific certification, the City will provide the Fire Fighter with a list of the essential functions of the Fire Fighter's job and the City will indicate in the designation notice that the certification must address the Fire Fighter's ability to perform those essential functions. The Fire Fighter will then be required to provide a certification from the Fire Fighter's health care provider that the Fire Fighter can perform all of the identified essential functions of his or her job.

A Fire Fighter has the same obligations to participate and cooperate (including providing a complete and sufficient certification or providing sufficient authorization to the health care

provider to provide the information directly to the City) in the fitness-for-duty certification process as in the initial certification process.

5.6 Holidays

The City of Fort Worth observes a regular holiday schedule and also provides Fire Fighters with personal holidays.

5.6.1 Scheduled Holidays

The City of Fort Worth observes the following scheduled holidays:

- New Year's Day – January 1
- Martin Luther King, Jr. Day– the third Monday in January
- Memorial Day – the fourth Monday in May
- Juneteenth Day – June 19
- Independence Day – July 4
- Labor Day/September 11th Remembrance Day – the first Monday in September
- Thanksgiving Day and Thanksgiving Friday-the fourth Thursday in November and the following day – Friday
- Christmas Day – December 25

City-recognized holidays that may not always align with the actual holiday day are: New Year's Day, Juneteenth Day, Independence Day, and Christmas Day.

Suppression Personnel and any Staff Personnel who are required by their position to work on the actual holiday shall receive Holiday Premium Pay and accrue Holiday Leave for work on that actual holiday, regardless of when it is recognized by the City. Suppression Personnel and those Staff Personnel not included above shall follow only the official City-recognized holiday schedule.

5.6.2 Holiday Leave Accrual

Holiday leave accrual and the maximum payment upon termination is unlimited for Fire Fighters.

5.6.3 Personal Holidays

In addition to scheduled holidays, Fire Fighters receive two personal holidays (PHL) at the beginning of the calendar year. A personal holiday is 8 hours for a staff Fire Fighter and 12 hours for a suppression Fire Fighter. With supervisory approval, a personal holiday can be taken on any scheduled work day, and it may be taken in less than eight- or twelve-hour increments. If the Fire Fighter does not use the personal holiday leave before the end of the calendar year, the personal holidays are forfeited.

New Fire Trainees and Fire Fighters may not take a personal holiday during their initial probation. Fire Fighters whose initial probationary period ends during pay period 26 do not receive a personal holiday until the next calendar year.

Fire Fighters who resign their employment or are involuntarily terminated will not be paid for unused personal holidays upon separation from employment with the City.

5.7 Leave of Absence Without Pay

The Fire Chief can authorize a Fire Fighter to take a leave of absence without pay for reasons that benefit both the City and the Fire Fighter or in cases where an employee has an urgent need for time off (e.g. personal or family member illness or injury or catastrophic damage to residence) and does not have available leave. The Fire Fighter must submit a written request for leave of absence without pay to the Fire Chief or designee. It must outline the reasons for the leave and the amount of time requested.

In extenuating circumstances, the request can be made verbally. The Fire Chief or designee either approves or disapproves the request, explaining the decision in writing to comply with the requirements of the FMLA, as applicable. Depending on length of the absence, the Fire Fighter may need to participate in any mandatory training missed due to his or her extended absence.

The Fire Chief and designees must be mindful that the Family and Medical Leave Act provides for up to 12 workweeks (or 26 workweeks in the case of a service member caregiver) of unpaid leave for circumstances covered by the Act. The availability of applicable FMLA Leave must be considered when reviewing requests for leave of absence without pay.

Fire Fighters will not receive special pay, holiday pay, holiday accrual or accrue any leave benefits (vacation, sick, sick/family illness leave) while in a Leave-of-Absence-Without-Pay or unpaid FMLA status. Special pays will not be paid until the Fire Fighter returns to active work status and can perform the duties required to receive any authorized special pay. The Department should consult with Human Resources regarding the payments of any other incentive or assignment pays when a Fire Fighter is in a Leave of Absence Without Pay or unpaid FMLA status.

Revocation of a leave of absence may occur if the reason for requesting the leave was misrepresented or if the needs of the department justify the revocation. Fire Fighters are encouraged to update their supervisors on their status and should discuss any changes to their circumstances with their supervisors to make adjustments to the terms of their leave of absence. Failure to return to work when a leave of absence without pay expires can result in disciplinary action up to and including indefinite suspension.

A Fire Fighter's request for time off without pay (other than a request for a leave-of-absence-without-pay that is granted by the Fire Chief for the mutual benefit of the Fire Fighter and the City), must be denied if the Fire Fighter has appropriate and accrued leave or compensatory time available. (This provision does not apply to Fire Fighters who are off on Military Leave in a without pay status. See *Paid Military Leave* below for information on the leave policy for Fire

Fighters on military leave.) If the supervisor approves time off work, the Fire Fighter must use all of his or her accrued leave before being placed on a Leave-of-Absence-Without-Pay status.

If the supervisor denies the request and the Fire Fighter does not come to work, the Fire Fighter will not be paid and the Fire Fighter may be disciplined for absence from work without approved leave. The Fire Fighter's time off is then coded as disciplinary time off without pay. Both exempt and nonexempt Fire Fighters can be carried in a without-pay status for less than one day with supervisory approval because of personal reasons or illness or injury.

5.8 Military Leave

The City complies with the Uniformed Services Employment and Reemployment Rights Act (USERRA) and encourages non-career military service by minimizing employment problems resulting from military service and prohibiting discrimination against service members. Texas statutes have similar laws to protect employees who serve in state military forces, reserves, and search and rescue teams.

Under USERRA, employers cannot deny absences to employees so they can perform military service. Persons protected under the Act include persons who perform duty, voluntarily or involuntarily, in the "uniformed services," which include the Army, Navy, Marine Corps, Air Force, Coast Guard, and Public Health Service Commissioned Corps, as well as the reserve components of each of these services.

Federal training or service in the Army National Guard and Air National Guard also gives rise to rights under USERRA. In addition, under the Public Health Security and Bioterrorism Response Act of 2002, certain disaster response work (and authorized training for such work) is considered "service in the uniformed services." The department may request documentation, such as duty orders, to substantiate the use of military leave. Human Resources must be notified via an ePAR if a Fire Fighter is on paid or unpaid military leave.

Promotions and demotions resulting from a military leave of absence and subsequent reinstatement are governed by USERRA, the Texas Local Government Code, the terms and conditions outlined in the then-applicable labor agreement, and the FW Civil Service Commission Rules.

5.8.1 Paid Military Leave

Fire Fighters can receive up to 15 work days of paid military leave (120 hours for staff Fire Fighters and 180 hours for suppression Fire Fighters) per fiscal year during the entire period of deployment. If absent more than 15 work days for military duty, the Fire Fighter may request to be placed on leave of absence without pay even if the Fire Fighter has available leave or may use any accumulated vacation, holiday, personal holiday, or compensatory time, if eligible, for leave hours in excess of the 15 work days.

If a Fire Fighter is placed on leave without pay, the Fire Fighter does not accrue leave benefits during that time. Military leave time is not counted as hours worked for the purpose of overtime calculation. Military supplement pay may be an available benefit, subject to budget

approval by City Council.

Military duties include service and training conducted in connection with the Armed Forces Reserves and the National Guard. This includes active duty, active duty for training, initial active duty for training, inactive duty training, full-time National Guard duty, absence for an examination to determine fitness for duty, and absences for performing funeral honor duties. Both voluntary and involuntary duty is covered.

5.8.1.1 Paid Military Leave Under Texas Law

An employee who is a member of the Texas military forces, a reserve component of the armed forces, or a member of a state or federally authorized urban search and rescue team is entitled to a paid leave of absence from the individual's duties on a day on which the person is engaged in authorized training or duty ordered or authorized by proper authority for not more than 15 workdays in a fiscal year. In cases where military duties covered by federal and state law both apply, paid leave under state law will run concurrently with (and not in addition to) paid leave for federal military duty. Unused military leave does not carry forward from one fiscal year to the next.

During a military leave of absence, the employee may not be subjected to loss of time, efficiency or performance rating, personal time, sick leave, or vacation time. When relieved from duty, the employee is entitled to be restored to the position the employee held when ordered to duty.

An employee who has taken paid military leave may request a statement of the number of workdays for which the employee claimed paid leave in that fiscal year. Requests may be submitted with the departmental/divisional Human Resources Coordinator (HRC) or the Human Resources Department.

5.8.1.2 Military Supplement Pay

Military Supplement Pay assists Fire Fighters who will be absent from their City jobs as a result of being called to active military service on an involuntary basis as a result of national security. Military Supplement Pay will only be available to military personnel called to active duty for these operations if supplemental pay has been approved by City Council. This program minimizes a Fire Fighter's loss of pay due to involuntary activation into military service. This program may be discontinued at any time by the City.

Fire Fighters eligible to apply for Military Supplement Pay must:

- be called to active, full-time military duty status;
- have exhausted all of the 15 days of annual paid military leave (from October 1 – September 30); and
- be a full-time or reduced schedule non-elected employee on the payroll of the City.

The Military Supplement Pay will be provided on a graduated scale for up to one full year (365 calendar days) for Fire Fighters receiving Military Pay (base pay plus additional pay such as housing allowance, combat pay and other special pay) that is less than 100 percent of their total City base pay (base pay plus additional pay such as assignment pay, incentive pay, civil service longevity pay, and bilingual pay.) Overtime pay and Holiday pay is not included the total pay provided by the City.

The Military Supplement Pay will be calculated as follows: for 100 percent Supplement Pay, subtract the total monthly military salary from the total monthly City salary. If a negative number or zero results, no supplement is provided. If a positive number results, supplement will equal the positive number. To reconcile the difference in pay schedule between the military and the City, pay rates will be converted to daily rates. Please see the example of how the Military Supplement Pay is calculated below:

EXAMPLE: Fire Fighter's *total City pay rate is \$1100/biweekly and the Fire Fighter's total military pay is \$1800/month.*

- *Step 1: Convert pay to daily amount.*
- *City daily rate = $\$1100 \times 26 \div 365 = \$78.35/\text{day}$*
- *Military daily rate = $\$1800 \times 12 \div 365 = \$59.18/\text{day}$*
- *Step 2: Calculate the difference between City pay rate and military pay.*
- *$\$78.35 - \$59.18 = \$19.17$*

The City of Fort Worth will pay the equivalent to \$19.17/day for up to one full year (365 days), and \$0 for the remainder of time the Fire Fighter is on full-time military leave.

Military Supplement Pay shall be renewed with each subsequent activation by a Fire Fighter. Example: Fire Fighter is deployed from November 15, 2017, to June 16, 2018, and is then released from active duty. The Fire Fighter is later reactivated from December 1, 2018 to November 1, 2019. The Fire Fighter will receive Military Supplement Pay for up to one year for each period of activation.

Fire Fighters seeking supplemental pay will be required to submit a written request to the department's Human Resources Coordinator (HRC). The written request should contain relevant information needed to calculate the supplemental pay such as military rank, years of service, and additional military pay. Fire Fighters will also submit a copy of their military orders and provide appropriate documentation of military pay (such as their two most recent pay advices) to receive any supplement pay.

If the Fire Fighter is unable to submit the written request for supplement pay in a timely manner due to deployment or to provide proof of all military pay upon activation (e.g., paycheck stub), or if a hardship arises and is verified, alternate arrangements will be made to estimate the amount of military pay, subject to verification later. Upon receipt of the appropriate documentation of total military pay, the appropriate amount of underpay or overpay will be calculated for the appropriate time period. Any overpayments will be required to be refunded to the City.

After exhausting his/her accrued leave, or if the Fire Fighter is no longer on the payroll or the

salary difference check is less than the amount of payroll deductions, the Fire Fighter will be responsible for mailing direct payments for the normal monthly premium contributions for Health, Life, and Dental coverage. The Fire Fighter will also have to make arrangements with the vendors for other voluntary deductions, such as credit union payments, child support, and long-term disability.

5.8.2 Reemployment Rights

If a Fire Fighter leaves City service to perform service in the uniformed services, the Fire Fighter is entitled to return to City service at the pay rate they would have, with reasonable certainty, attained if he or she had been continuously employed during the period of service, subject to the following criteria; the Fire Fighter must have been granted a leave of absence and must return within prescribed time limits to a position in the classification previously held:

- If training/service is up to 30 consecutive days, the deadline is completion of training/service plus travel time to residence plus eight hours.
- If training/service is 31 to 180 days, the deadline is 14 days after completion of training/service.
- If training/service is 181 days or more, the deadline is 90 days after completion of training/service.

If the leave was more than 30 consecutive days, the City requires that the Fire Fighter provide documentation to establish that the re-employment application is timely, the Fire Fighter has not exceeded the limit on duration of service, and the Fire Fighter's separation or dismissal from the military was not disqualifying. The types of documents will vary from case to case but may include a Department of Defense (DD) Form 214 Certificate of Release or Discharge from Active Duty, a copy of duty orders prepared by the facility where the orders were fulfilled, a letter from the commanding officer, a certificate of completion from military training school, a discharge certificate showing character of service, or a copy of extracts from payroll documents showing periods of service.

Fire Fighters are allowed to use their vacation and/or compensatory time while on military leave, but they are not required to do so. Federal law prohibits discrimination and/or retaliation against service members who invoke their rights to reemployment after military service.

5.8.3 Reemployment Rights Eligibility Criteria

If an employee has been absent from City employment due to his or her service in the uniformed services, he or she is eligible for reemployment as long as the employee:

- Or an appropriate officer of the uniformed service in which the employee's service is to be performed, notifies the City that the employee intends to leave City employment to perform service in the uniformed service. Advanced notice of pending service is required unless giving advanced notice is prevented by military service or is otherwise impossible or unreasonable. When advanced notice can be provided, the employee should provide at least thirty days' notice. The notice can be verbal or in writing.

- Has not exceeded the five-year cumulative limit on service;
- Timely returns to work or applies for reemployment; and
- Was not separated from service with a disqualifying discharge or under other than honorable conditions.

Each of the above requirements must be met before an employee will be eligible for reemployment rights under USERRA.

Military service or training excluded from the five-year cumulative limit includes:

- Instances where the service personnel is unable to obtain release from service/training before expiration of five-year period.
- Instances where it has been determined and certified by the Secretary of the service to be necessary for professional development or for completion of skills training or retraining.
- Involuntary active duty in wartime, national emergency, critical persons during time of crisis, operational mission, and involuntary duty of retired and reserve Coast Guard personnel.
- Active duty service during a war or a national emergency.
- Active duty service in support of a critical mission or requirement of the uniformed services.
- Service performed when called in Federal service as a National Guard member.

The City may not be required to reemploy a person if the circumstances have so changed as to make such reemployment impossible or unreasonable or such employment would impose an undue hardship on the City. Any denial of reemployment must be reviewed by the Employee and Labor Relations Division before notifying the returning Fire Fighter.

5.8.4 Reemployment Entitlements

The following reemployment entitlements are available for eligible service members:

- The re-employment of service members must be prompt.
- If absence is less than 90 days, the service member is entitled to placement into the exact job held prior to absence.
- If absence is 91 days or more, the service member is entitled to placement into the exact job previously held or another job of "like seniority, status, and pay."
- Continuation of seniority benefits as if service member had been continuously employed (no break in service).
- Train or re-train service member (if necessary) to permit reentry into the workplace.
- Reinstate personal and family health insurance coverage.
- Make reasonable efforts to accommodate service members disabled during duty. If a service member is convalescing from an illness or injury incurred in the performance of duty, the employee may submit an application for reemployment at the end of the recovery, not to exceed two years.

5.8.4.1 Reemployment Rights Under Texas Law

The City may not terminate the employment of an employee who is a member of the state military forces of Texas or of any other state because the employee is ordered to attend authorized training or duty.

Upon release from service, the employee is entitled to return to the same employment he or she held when ordered to training or duty, and may not be subjected to the loss of time, efficiency rating, vacation time, or any benefit of employment. As soon as practicable after release from service, the employer must give notice of intent to return to work. Any denial of reemployment must be reviewed by the Employee and Labor Relations Division before notifying the returning employee.

5.9 Jury Duty Leave

Fire Fighters called to jury duty on a regularly-scheduled workday may receive paid jury duty leave. Jury duty leave that exceeds a Fire Fighter's regularly scheduled workweek is not compensable. When a Fire Fighter has worked more than 40 or 56 hours (depending on assignment) in a workweek, including jury duty hours, the time coded as jury duty will be reduced by the number of hours over 40 or 56 worked in that work week, even if that reduction eliminates all of the jury duty hours. Fire Fighters must verify their time spent on jury duty.

5.10 Blood Bank Donation Leave

Fire Fighters can earn up to six hours of vacation leave time in a calendar year by donating blood to the Carter Blood Center during City-sponsored blood drives or by presenting proof of a donation made at an external site. Proof of donation at external sites should be sent to the Human Resources Wellness Division to get credit.

5.11 Time Off To Vote

Because of early voting opportunities afforded citizens, Fire Fighters should not need time off to vote; however, supervisors may approve time off to vote in unusual circumstances. Under state law, if the polls are open for two consecutive hours outside of a Fire Fighter's working hours, including days that are designated as "early voting," the City is not required to release the Fire Fighter from work to vote.

5.12 Pregnancy Leave and Accommodations

Pregnancy-related absences and job accommodations are governed by the particular leave policies that are applicable, including vacation, sick leave, holiday, personal holiday, compensatory leave, Family and Medical Leave Act leave, Americans with Disabilities Act, Pregnant Workers' Fairness Act, Voluntary Leave Bank leave, and leave without pay.

The Fire Fighter should notice the City of limitation arising out of, or affected by pregnancy, childbirth, or a related medical condition that an adjustment or change in working conditions is necessary. Once the City knows, it should engage in the “interactive process” with the employee or applicant. The “interactive process” means simply that the employer and employee communicate, whether by talking or some other way, about the known limitation and the adjustment or change needed at work.

The City should respond promptly to accommodation requests. If it does not cause an undue hardship, a reasonable accommodation identified by the Fire Fighter or another effective accommodation is acceptable.

This can include limited duty assignments. If certified unable to perform the duties of the Fire Fighter’s permanent work assignment as a result of the Fire Fighter’s pregnancy and if a temporary work assignment that the Fire Fighter may perform is available in the same office, the Fire Fighter will be assigned to the temporary work assignment. See *Non-occupational Injury/Illness Return To Work (“RTW”) Rules in Chapter 11* for further information.

5.13 Voluntary Leave Bank

The Voluntary Leave Bank program provides for the continuation of income for those employees who have exhausted all of their accrued leave and need to be off due to a personal medical emergency or to care for an immediate family member who has had a medical emergency.

This program is established by employees to benefit other employees. Assets of the Program (donated leave hours) belong specifically to the members (who donated) and not to any other organization, group or entity.

5.13.1 Eligibility for Enrollment

Fire Fighters who are on the City’s payroll, are a member of the Retirement Fund, and have completed the probationary period are eligible to participate.

Newly-hired Fire Trainees may become members of the Voluntary Leave Bank Program within the first 30 days of their employment, but Fire Trainees cannot access the Voluntary Leave Bank until completion of their probationary period.

Fire Fighters who enroll during open enrollment cannot access the Voluntary Leave Bank until May 1st of the benefits year for which they are enrolling. A Fire Fighter who fails to become a member during an open enrollment period may become a member during the next open enrollment period.

5.13.2 Eligibility and Access to Voluntary Leave Bank Hours

Members may be eligible to draw from the Voluntary Leave Bank after exhausting all their accrued leave balances. Members drawing leave have a limit of 240 hours that can be used in any 12-month period. In no case can an employee draw more than 240 hours from the Voluntary

Leave Bank for any single occurrence.

Access to the program is based on the approval of the member's leave by the City's FMLA vendor.

Members of the Voluntary Leave Bank who are off without pay because of a disciplinary action or who are on approved leave of absence without pay are not eligible to access the Leave Bank. Members off work because of an on-the-job injury (Workers' Compensation) do not have access to the Voluntary Leave Bank. Routine medical care for an employee is not covered by this program.

Members off work cannot accrue leave benefits (vacation, sick, family illness leave) while using Voluntary Leave Bank hours.

Members drawing leave from the Voluntary Leave Bank may not engage in secondary employment work during the time covered by the leave drawn from the Voluntary Leave Bank.

Upon returning to work after using leave from the Voluntary Leave Bank, eight hours shall be deducted from a member's accrued vacation leave as soon as the member has accrued eight hours. Accrued vacation leave will reflect the required hours' deduction immediately upon the member's return to work.

Each member may also be required to donate an additional four hours when the Voluntary Leave Bank falls below a minimum level. Human Resources Department records will be used to monitor leave donation and usage. The minimum level is 960 hours. Participating Fire Fighters will be notified of the need for the additional contribution and must authorize the transfer of additional leave hours. Participating Fire Fighters who opt not to transfer the additional leave hours will be withdrawn from the Voluntary Leave Bank.

The City Manager may terminate the program if he or she determines that it is not in the City of Fort Worth's best interest. If the Voluntary Leave Bank is terminated for that reason, the remaining leave in the bank will be used until depleted. If the Voluntary Leave Bank is determined to be operated in violation of any laws, the program will be terminated, and all hours in the leave bank will be forfeited.

5.14 Vacation Leave Donations

Fire Fighters may donate accrued vacation leave to another employee's donated leave account. No other type of leave or time may be donated. The donation is to ensure continuing income for another employee who must be absent from work (continuously or intermittently) because of a major personal illness or injury or because of an immediate family member's major illness or injury that requires the employee's presence.

An employee is eligible to receive donated vacation leave if the employee:

- Has a major illness or injury as defined in this policy;
- Has 40 or less hours of accrued leave;
- Has obtained from his or her department director approval to solicit vacation leave.

(Consideration should be given to Fire Fighter's record of absenteeism, discipline, work performance, tenure, and other relevant considerations); and

- Is not on any probation.

All donations submitted after the amount of time needed has been met or after the response deadline will be returned to the donors and their time will not be transferred.

Unused donated leave will be transferred to the voluntary leave bank. Donated vacation hours will be donated on an equal basis and will not be prorated even if the salaries of the donors and recipients differ.

To be eligible to donate vacation leave, a Fire Fighter must have completed his or her initial probation and must have a balance of 80 hours of accrued vacation leave after the donation. Donated vacation leave does not count toward the number of hours required that a Fire Fighter must "use or lose" under the vacation leave policy.

5.15 Service Award Leave

Fire Fighters receive an additional personal holiday leave (eight (8) hours for Staff Personnel and twelve (12) hours for Suppression Personnel beginning with 15 years of service and in 5 year increments thereafter. See [*Annual Employee Service Awards*](#) in Chapter 8 of these FDPRRs for more information about leave associated with receiving a Service Award.

5.16 Parental Leave

Flexible and family-friendly policies are essential to cultivating an atmosphere where employees can thrive professionally without sacrificing essential family obligations. The City of Fort Worth provides paid parental leave to employees following the birth of an employee's child or the placement of a child with an employee in connection with adoption, foster care or other legal placement. The purpose of paid parental leave is to enable the employee to care for and bond with a newborn, newly adopted child, new foster child or other legal placement.

5.16.1 Eligibility

To be eligible for Parental Leave, an employee must be eligible for leave under the Family and Medical Leave Act ("FMLA") by meeting the following criteria:

- Have been employed with the City for at least 12 months (the 12 months do not need to be consecutive); and
- Have worked at least 1,250 hours during the 12 consecutive months immediately preceding the date the leave would begin; and

- Be regularly scheduled to work 20 or more hours per week in a full-time or reduced-schedule position.

Temporary or seasonal employees and interns are not eligible for Parental Leave.

In addition, employees must meet one of the following criteria:

- Have given birth to a child;
- Be a spouse of a woman who has given birth to a child;
- Have adopted a child age 17 or younger, except for adoption by one spouse of the other spouse's child; or
- Placement with the employee of a foster child, or other child, to whom the employee stands in the position of a parent (*in loco parentis*), age 17 or younger.

Parental Leave is not allowed for placement of a child in parental custody cases or legal assignments as a Guardian ad Litem.

5.16.2 Amount, Time Frame and Duration of Paid Parental Leave

- The City of Fort Worth provides up to six (6) weeks of paid parental leave during a rolling 12-month time frame.
- In no case will an employee receive more than six weeks of paid parental leave regardless of whether more than one birth, adoption, or foster care placement occurs within that 12-month time frame.
- If spouses are both employed by the City, and each is eligible for Parental Leave, as provided in this policy, each spouse may use a maximum of six weeks under this policy.
- For this policy, the date of adoption of a child is, at the employee's choice, the date that the child is placed in the employee's home, in anticipation of legal adoption, or the date that the adoption is approved by a court of law. For adoption, paid parental leave is allowed for time prior to the placement of the child for adoption, if the need for leave is related to the adoption. Eligibility for this leave prior to placement will be decided on a case-by-case basis.
- Each week of paid parental leave is compensated at 100 percent of the employee's regular, straight-time weekly pay, and will include any education, certification, assignment or other special pay amounts the Fire Fighter was receiving at the time the Parental Leave began. Paid parental leave will be paid on a biweekly basis on regularly scheduled pay dates.

- Approved paid parental leave may be taken at any time during the twenty-six week period immediately following the birth, adoption, or placement. Paid parental leave may not be used or extended beyond this twenty-six week time frame.
- Employees may take paid parental leave continuously or intermittently, but all parental leave used must be used during the twenty-six weeks following the child's birth, adoption or placement. Any unused paid parental leave will be forfeited at the end of the twenty-six week time frame.
- Upon termination of the individual's employment at the City, he or she will not be paid for any unused paid parental leave for which he or she was eligible.

5.16.3 Coordination with Other Policies

- In no case will the total amount of leave for the birth, adoption, foster care or other legal placement, whether paid or unpaid, granted to the employee exceed 12 weeks. Available leave (for example, sick, vacation, holiday) may be used to extend paid leave beyond the six weeks of paid parental leave. Employees are not required to exhaust all leave before taking paid parental leave.
- The City of Fort Worth will maintain all benefits for employees during the paid parental leave period just as if they were taking any other paid leave.
- If a City holiday occurs while the employee is on paid parental leave, the absence will be charged to holiday pay; however, such holiday will not extend the total paid parental leave entitlement period.

5.16.4 Request for Paid Parental Leave

- Parental Leave runs concurrently with Family and Medical Leave; however, if an employee has exhausted all available Family and Medical Leave because of a reason that is not the birth, adoption, or placement of a child, the employee is still eligible for up to six weeks of paid Parental Leave. The employee must submit his or her FMLA request to the City's FMLA administration vendor within 30 days prior to the proposed date of the leave (or if the need for leave was not foreseeable, as soon as possible after the need for leave is known). The employee must complete the necessary forms and provide all documentation as required by the City of Fort Worth or City of Fort Worth's FMLA vendor to substantiate the request.
- The decision regarding the request for leave will be provided in writing by the City's FMLA vendor within 15 days of the request. Any delay in making the decision or informing the employee of the decision will not extend the total paid parental leave entitlement period.

- As is the case with all policies, the City of Fort Worth has the exclusive right to interpret this policy.

5.17 Paid Maternity Leave

Flexible and family-friendly policies are essential to cultivating an atmosphere where employees can thrive professionally without sacrificing essential family obligations. The City of Fort Worth provides paid maternity leave to employees following the birth of an employee's child to allow for the birthing parent to recover from the birthing process. This policy also extends to support employees who experience the loss of a child immediately following birth and stillbirth.

5.17.1 Eligibility:

To be eligible for Maternity Leave, an employee must meet the following criteria:

- Have been employed with the City for at least 12 months (the 12 months do not need to be consecutive); and
- Have worked at least 1,250 hours during the 12 consecutive months immediately preceding the date the leave would begin; and
- Be regularly scheduled to work 20 or more hours per week in a full-time or reduced- schedule position.

Temporary or seasonal employees and interns are not eligible for Maternity Leave.

5.17.2 Amount, Time Frame and Duration of Paid Maternity Leave:

The City of Fort Worth provides up to six (6) weeks of continuous paid maternity leave for an employee postpartum to recover from a vaginal, c-section birth or stillbirth. These covered events are entitled to the same amount of paid leave to recover physically and emotionally.

- The maximum amount of maternity leave is six (6) weeks per covered event per year.
- The six (6) weeks must be taken continuously starting with the date of the event. Leave cannot be used on an intermittent basis.
- If the employee decides to return to work prior to the end of the 6-week period, the employee will forfeit the remaining balance of maternity leave for the covered event.

- In the event the employee needs additional time to recover beyond the 6-week period, the employee may use other applicable paid leave time, including paid parental leave time, if available.
- Each week of paid maternity leave is compensated at 100 percent of the employee's regular base salary, straight-time weekly pay. Paid maternity leave will be paid on a biweekly basis on regularly scheduled pay dates.

5.17.3 Coordination with Other Policies:

The City of Fort Worth will maintain all existing benefits for employees during the paid maternity leave period just as if the employee were taking any other paid leave.

- If a City holiday occurs during the paid maternity leave period, the holiday will be charged to holiday pay; however, such holiday will not extend the total paid maternity leave entitlement period.
- Employees are not required to exhaust any personal leave before taking paid maternity leave.
- Should the employee elect paid parental leave following the birth of a child, maternity leave will be exhausted first, followed by paid parental leave.
- Employees utilizing paid maternity leave are not permitted to engage in secondary employment during their regularly scheduled work hours.
- Under no circumstances will an employee be authorized for more than 6 weeks of paid maternity leave per covered event.

5.17.4 Request for Paid Maternity Leave:

Requests for Paid Maternity Leave shall be made in the same manner as a request for Paid Parental Leave. The employee must submit their FMLA request to the City's FMLA administration vendor within 30 days prior to the proposed date of leave (or as soon as possible after the need for leave is known). The employee must complete the necessary forms and provide all documentation as required by the City of Fort Worth or the City of Fort Worth's FMLA vendor to substantiate the request for Paid Maternity Leave.

- Paid Maternity Leave runs concurrently with FMLA leave; however, if an employee has exhausted all available FMLA leave prior to the birth or pregnancy loss, the employee is still eligible for six (6) weeks of Paid Maternity Leave provided that the employee meets the above eligibility criteria.
- The decision regarding the request for FMLA will be provided in writing by the City's FMLA vendor within 15 days of the request.

The City of Fort Worth has the exclusive right to interpret this policy.

6. Benefits

6.1 Purpose and Introduction

The health and well-being of the City of Fort Worth's Fire Fighters and their families are vital to ensuring a strong, productive, and dedicated employee base. As such, the City currently offers a variety of benefits to eligible Fire Fighters and retirees and their eligible dependents. This chapter describes available benefits.

The City's personnel policies, including the benefit policies described in this chapter, **DO NOT CONSTITUTE A CONTRACT**. Any compensation and/or benefit policies explained in these regulations are subject to review at least annually by City Council and are subject to change at any time. If any labor agreement expires or is terminated, City Council reserves the right to implement any compensation and/or benefits that it considers appropriate at that time.

For questions about this chapter, please call the Benefits Manager in the Human Resources Department.

6.2 General Benefits Information

The City contributes toward the cost of some benefits, such as retirement, medical benefits, life insurance, and the Employee Assistance Program (EAP). In addition, the City makes other benefits available to Fire Fighters, although the City does not contribute toward the cost. Examples of these types of benefits include dental insurance and disability insurance.

More complete information regarding available benefits can be found by contacting the authorized bargaining representative or the third-party administrator hired by the bargaining unit pursuant to the Healthcare Contract with the City.

With very limited exceptions, the City can make changes to its benefit offerings at any time; these changes could include discontinuing benefit programs or changing the rates at which the City contributes toward benefit costs. In general, employee benefits, except for previously accrued retirement benefits, are not guaranteed to continue, and City contributions to any benefit program are subject to sufficient funds being available and allocated in the annual budget process.

6.3 Medical Benefits for Fire Fighters

Fire Fighters receive separate healthcare coverage which is administered through the authorized bargaining representative pursuant to the Healthcare Contract with the City.

6.3.1 Health Savings Accounts

If available to Fire Fighters through their healthcare coverage which is administered through the authorized bargaining representative pursuant to the Healthcare Contract with the City, Fire Fighters may be provided with a Health Savings Account (HSA) that can be used to pay eligible health care expenses. The City contributes to the employee's HSA in an amount determined by the City each year, and employees can also make contributions. Employee contributions may be deductible depending on the employee's individual circumstances and subject to maximum contribution limits set by the federal government. Employees are advised to contact a professional for assistance with tax-related questions.

An employee's HSA belongs to the employee, who can take the account with him or her on termination or retirement. Balances in the HSA can be carried forward from year to year.

6.4 Flexible Spending Accounts for Fire Fighters

If available to Fire Fighters through their healthcare coverage which is administered through the authorized bargaining representative pursuant to the Healthcare Contract with the City, Fire Fighters may be provided with a Flexible Spending Account (FSA) Plan which allows a Fire Fighter to set up one or more accounts to pay for certain eligible expenses using pre-tax dollars. The FSA Plan is governed by Section 125 of the Internal Revenue Code. If participating in the FSA Plan, a Fire Fighter will designate an amount to be deducted from wages and placed into the account(s) for use in paying for certain health care, dependent care, and adoption-related expenses.

Eligible expenses must be incurred during the plan year (January 1 through December 31), and all claims for reimbursement must be received on or before March 31 of the following year. If the entire balance of the account(s) is not exhausted by claims for reimbursement submitted before the deadline, any remaining balance in the account(s) that exceeds the rollover limit will be lost.

A Fire Fighter participating in the high-deductible health plan with a health savings account (HSA) is not eligible to participate in the FSA for health care expenses.

6.5 Dental Insurance for Fire Fighters

If available to Fire Fighters through their healthcare coverage which is administered through the authorized bargaining representative pursuant to the Healthcare Contract with the City, Fire Fighters may be provided access to dental insurance. Premiums for dental insurance are the sole responsibility of the participant and are deducted from wages on a pre-tax basis. The City does not contribute to the cost of participation. If the Association's Healthcare Plan offers eligible Fire Fighters access to dental insurance, then the City will no longer offer Fire Fighters access to dental insurance.

6.6 Life Insurance for Fire Fighters

The City provides each active Fire Fighter a basic term life insurance policy at no cost to the Fire Fighter. Fire Fighters may purchase additional/supplemental life insurance through the City. The City does not contribute to the cost of the supplemental life insurance policy.

6.7 Employee Assistance Program for Fire Fighters

The City offers an Employee Assistance Program (EAP) to all active Fire Fighters and their dependents. The EAP offers individuals the opportunity to consult with professional service providers to help resolve personal problems. Services under the EAP are limited to a specified number of appointments per year. Ongoing assistance beyond the EAP limits may be available as part of the City's medical benefits depending on the situation and applicable coverage.

6.8 Critical Incident Stress Management (CISM) Support for Fire Fighters

If a catastrophic incident (such as a robbery, assault, or injury or death of an employee) at the workplace occurs, the Employee Assistance Program (EAP) or Fire Department will make available on-premises services which may include crisis counseling, peer support, or other services.

6.9 Fire Fighters Cannot Participate in City's Wellness Services Program

Fire Fighters, eligible spouses, and dependents who are part of the Covered Population in the Association's Healthcare Plan are not eligible to participate in any aspect of the City's Wellness Services Program.

6.10 Disability Insurance for Fire Fighters

If available to Fire Fighters through their healthcare coverage which is administered through the authorized bargaining representative pursuant to the Healthcare Contract with the City, a Fire Fighter may elect to purchase long-term disability insurance. The City does not contribute to the cost of short-term or long-term disability coverage.

6.11 Deferred Compensation Plan for Fire Fighters

The City offers a deferred compensation plan that allows a Fire Fighter to direct that a portion of his or her wages be placed into a savings/investment account for use in retirement. This plan (also known as a “457 Plan” because it is subject to Section 457 of the Internal Revenue Code) is administered by a third party. Generally, the City does not contribute to the 457 Plan. Employees should consult a financial professional for questions regarding the tax implications of participating in a deferred compensation plan.

6.12 Other Voluntary Benefits for Active Employees

The City also offers Fire Fighters access to certain other voluntary benefits. The City does not contribute to the cost of these other benefits. The City may continue to offer other voluntary benefit products in the future. Contact the Benefits Division of Human Resources to find out more about other voluntary benefits that may be available.

6.13 Benefits Effective Date

Fire Fighters should consult with their authorized bargaining representative to determine the effective date of their medical, dental and/or vision benefit coverage starting and ending under the separate healthcare plan.

The effective date for other benefits will vary depending on the particular benefit and the rules of the respective third-party benefit provider or administrator.

6.14 Electing and Changing Benefits

New Fire Fighters are informed of medical benefits, which are administered through the authorized bargaining representative pursuant to the Association’s Healthcare Contract with the City, as part of their orientation process.

6.13.1 Continuing Coverage After Termination Under COBRA

Upon termination from the City, an individual may be eligible to obtain continued medical or dental insurance coverage for a limited period under COBRA if certain criteria are met.

Pursuant to the Association’s Healthcare Contract between the City and the authorized representative for Fire Fighters, the COBRA administrator under the Association’s Healthcare Plan will send all separated Fire Fighters information about options available under COBRA after receiving notice of a Fire Fighter’s separation from the City. Separated Fire Fighters have 60 days after the date he or she receives the notice of the right to continue coverage to submit an application requesting COBRA coverage.

6.13.2 Life Insurance After Termination

The City-provided basic life insurance coverage generally ends on the effective date of an individual's termination from the City. An individual can convert his or her City-provided life insurance policy to an individual policy to continue coverage after separating from the City. The individual must call the life insurance provider or the Benefits Division to request the conversion form and information about the cost of premiums. Completed conversion forms must be submitted within 31 days of the termination date.

An individual who is under the age of 60 and has been classified as being disabled from his or her own occupation on a permanent or temporary basis may have his or her life insurance premiums waived. If the premium waiver is granted, the individual retains the same level of basic term life insurance coverage at no cost.

Fire Fighters may contact the Human Resources Benefits Division for details about applying for a premium waiver.

6.13.3 Deferred Compensation Plan After Termination

If a Fire Fighter is enrolled in the City's deferred compensation plan (i.e., 457 Plan) before termination, the employee has three options with respect to existing account balances upon termination:

- Leave the money in the current 457 account(s).
- Rollover all or a part of the funds to an individual retirement account (IRA) or to another employer's plan.
- Take a distribution (withdrawal) from the account(s), subject to any applicable tax and penalty.

An individual should contact the third-party administrator of his or her 457 account to ensure completion of all required paperwork before the Fire Fighter's separation date.

An individual participating in the 457 Plan may request that all or a portion of terminal leave pay be deposited into the 457 account. Such a request must be received by the Human Resources Benefits Division before the effective date of the individual's separation from the City. Failure to timely submit a request will result in its rejection.

6.13.4 Flexible Spending Accounts After Termination

A Fire Fighter who is participating in the Flexible Spending Account (FSA) Plan at the time of termination from the City can continue to incur eligible expenses chargeable to or reimbursable from that person's flexible spending account(s) through the effective date of termination.

If the individual timely elects to continue their FSA participation through COBRA, he or she will be able to continue to incur eligible expenses through December 31st of the year in which the individual terminates from the City.

All claims for reimbursement related to flexible spending accounts must be received on or before March 31st of the year following the year in which the expense was incurred.

6.13.5 Voluntary Insurance and Benefits After Termination

Final premiums and contributions for all voluntary insurance and benefits are taken out as a payroll deduction from an individual's final pay. To continue coverage after termination, the individual must contact each benefit provider before termination to arrange for alternate billing.

7. Performance Management

7.1 Purpose and Introduction

The City's performance appraisal process is designed to provide supervisors a means to: (1) assess and document Fire Fighters' work performance; (2) explain expectations; (3) determine whether Fire Fighters' work efforts are meeting City and department goals; (4) inform Fire Fighters if they have performance deficiencies and make suggestions for improvement; and (5) recognize exceptional performance and/or accomplishments.

For questions about this chapter, please call the Organizational Development performance analyst.

7.2 Performance Appraisal

Section 143.082 of the Texas Local Government Code requires semiannual efficiency reports (performance appraisals) and grades. The annual performance appraisal serves as one efficiency report. It is the responsibility of the Fire Fighter's supervisor to complete the performance appraisal. Fire Fighters should consult the then-applicable labor agreement for more details on this topic.

For each performance appraisal cycle, the supervisor will utilize the prescribed City of Fort Worth evaluation program and prepare the appraisal document accordingly. Performance appraisal ratings need to be objective and not subjective, ratings should be substantiated in the summary section.

Throughout the performance cycle there should be a level of consistent communication between the supervisor and the Fire Fighter. The supervisor will meet with the Fire Fighter to discuss the performance appraisal and provide feedback. The Fire Fighter will sign, through the prescribed medium, the performance appraisal acknowledging receipt; this does not necessarily indicate the Fire Fighter's agreement with or approval of its content. A Fire Fighter may submit comments prior to acknowledging the appraisal. Once the appraisal is acknowledged, the Fire Fighter will not be able to go back in and add comments. Comments may be added through the prescribed medium.

7.3 Performance Pay Increases for Appointed Fire Fighters

The Pay for Performance program provides performance-based pay raises for Fire Fighters in appointed positions. In years when the program is included in the adopted budget, supervisors will recommend performance raises that are commensurate with the appointed Fire Fighter's

performance results in the previous fiscal year. The City's fiscal year is October 1-September 30. Recommendations are subject to approval by the Fire Chief. The Pay for Performance program may be adjusted at any time to meet the needs of the City, and employees will be notified prior to changes taking affect.

7.3.1 Eligibility for Pay for Performance

To be eligible for the program, a Fire Fighter must be in an appointed position as of March 31st of the appraisal year.

A Fire Fighter is not eligible for the program if he or she meets one or more of the following criteria:

- Was appointed to Assistant Chief or Deputy Chief between April 1st and September 30th of the preceding fiscal year
- Received an involuntary demotion during the preceding fiscal year.

7.3.2 Pay for Performance Considerations

Performance Pay for Appointed Fire Fighters receiving acting pay:

If a Fire Fighter in an appointed position is receiving acting pay at the time of the pay raise, the percentage increase will be based on the Fire Fighter's regular pay rate rather than the acting pay rate.

Performance Pay for Appointed Fire Fighters who are paid above the top of the pay range:

If a Fire Fighter's regular pay rate is higher than the maximum of their pay range, the Fire Fighter will be eligible for a lump sum payment rather than an increase to their pay rate. The lump sum will be calculated by multiplying the supervisor's recommended percent increase by the maximum pay rate for the pay range.

Appointed Fire Fighters on Military Leave:

An Appointed Fire Fighter who was on military leave during the performance year will be considered for a performance raise in accordance with Uniformed Services Employment and Reemployment Rights Act (USERRA) requirements.

8. Employee Development, Incentives and Training

8.1 Purpose and Introduction

The City of Fort Worth is committed to the development and training of its Fire Fighters and providing opportunities for professional and personal growth to promote the City's mission of "Working together to build a strong community." The City has a responsibility to provide programs that will strengthen and improve the knowledge, skills, and abilities necessary for Fire Fighters to perform assigned functions; educate Fire Fighters about City policies; encourage personal growth; and assist supervisors and Fire Fighters in complying with policies, practices, and laws. Training needs are identified through discussions with supervisors and Fire Fighters, surveys and feedback, observations, and critical needs. The City strives to evaluate and assess its training programs and opportunities on a continual basis to ensure that specified training needs are being met. Supervisors may also consider training and development activities in performance evaluations.

The City of Fort Worth desires to demonstrate its appreciation for Fire Fighters and provides incentives, when possible and appropriate, such as tuition reimbursement and certification pay, to assist Fire Fighters who desire to enhance their productivity and effectiveness in performing their assigned duties.

General in-house training is provided by the Human Resources Department. Fire Department funds may be made available so that Fire Fighters can, with supervisory approval, attend seminars, workshops, and training opportunities to develop and increase their work skills and abilities.

For questions about training or employee service awards, call the Human Resources Organizational Development Manager. For questions about tuition reimbursement, call the Human Resources Manager for Benefits.

8.2 Tuition Reimbursement Policy

The Tuition Reimbursement Policy addresses the City's commitment to employee growth and development. Reimbursed tuition must be directly related to a Fire Fighter's current job or to a position with the City that requires the educational preparation. The Fire Department reviews and approves tuition reimbursement requests in consultation with Human Resources.

Funding for this program is subject to City Council approval and is limited to the fiscal year in which funds are budgeted unless otherwise required by the then-applicable labor agreement. In years when the program is funded, Fire Fighters who meet the program criteria will be reimbursed for eligible expenses up to the individual Fire Fighter cap. Information on the individual cap and tuition reimbursement process is available by contacting the Benefits Division of the Human Resources Department.

Applicants must submit a completed application to a designated Human Resources Department representative for review and verification of eligibility. The approval of a course or a degree plan is not a guarantee of a promotion or obtaining a position that requires or uses the training. Information regarding the tuition reimbursement application process and deadlines is available by contacting the Benefits Division of the Human Resources Department.

8.2.1 Eligibility Requirements for Tuition Reimbursement Program

A Fire Fighter may qualify to receive reimbursement for one degree at each level while employed with the City. For example, a Fire Fighter may receive tuition reimbursement for one degree at the high school/GED level, one degree at the associate level, one degree at the undergraduate (bachelor's) level, and one degree at the graduate (masters) level. Degrees that may have been obtained before City employment will not impact eligibility for tuition reimbursement during employment. For example, if a Fire Fighter has obtained an undergraduate degree before employment, he or she may still be eligible for tuition reimbursement for an additional undergraduate degree while employed with the City if other eligibility requirements are met.

Doctorate level degrees are covered only if in a field highly-related to the Fire Fighter's current classification and with the approval of the Human Resources Director or designee. Doctorate level degrees in law (J.D.) are not covered. Undergraduate, graduate, and doctorate-level degrees in religion are not eligible for reimbursement.

To qualify for tuition reimbursement, a Fire Fighter:

- Must be a regular, full-time Fire Fighter participating in the City's retirement fund;
- Must have successfully completed his or her initial probation and any extended probation;
- Cannot currently be on disciplinary probation or have received a Performance Improvement Plan (PIP) during the most recent performance appraisal;
- Must have the approval of his or her supervisor and Human Resources before attending the course; and
- Cannot have any outstanding amounts on previous reimbursement overpayments.

To be eligible for reimbursement for an undergraduate course, a Fire Fighter must attain a course grade of "C" or higher in a graded course, or a "pass" grade in an ungraded course.

To be eligible for reimbursement for a graduate course, a Fire Fighter must attain a grade of "B" or higher in a graded course, or a "pass" grade in an ungraded course.

All courses must be taken and coursework must be done while off duty. When there is an unavoidable conflict between class and job responsibilities, a supervisor may accommodate the class schedule. Any accommodation of a Fire Fighter's class schedule is at the supervisor's discretion.

Courses that are not eligible for reimbursement under this program are: (1) seminars and conferences; (2) seminars, trainings, and review courses that deal with professional certifications or licensing; (3) audited courses, courses for noncredit, or continuing education courses for which there is no grade; and (4) credits obtained through the College Level Examination Program (CLEP).

Depending on budgetary considerations and consistent with departmental policy and practice, the Department may reimburse Fire Fighters for classes that are not eligible for reimbursement, such as short seminars, review courses or certifications.

The following are examples of eligible tuition-related reimbursable fees *(added for clarification on 6/1/18):*

- Tuition (paid by student or student loan)
- General University Fee(s)
- Registration Fee(s)
- Course Fee(s)
- Lab Fee(s)
- Library Services Fee(s)
- I.T. or Distance Learning Fee(s)

The following are examples of fees that are not eligible for tuition reimbursement *(added for clarification on 6/1/18):*

- Books/Resource Fee(s)
- Payment/Installment Plan Fee(s)
- Parking Fee(s)
- Late/Drop/Add Fee(s)
- Deposits/Breakage Fee(s)
- Supplies
- Medical/Health Insurance
- Room & Board

Incomplete forms or forms without all required documents attached will not be processed. Forms and requests submitted beyond the published deadline will not be approved, processed, or paid.

College programs such as mini-terms/mini-sessions, distance learning, or quarters that are not set on a semester basis are eligible for reimbursement if they are job-related or part of a degree program and are taken for credit. The Fire Fighter must meet the established application deadline for the spring, fall, or summer semester that precedes the course.

Courses must be taken at an accredited school, junior college, college, university, or technical or trade school. (See *Glossary* for definition of accredited school.)

8.2.2 Administration, Payments, and Maximum Reimbursement

Tuition Reimbursement is paid only once for each approved course per each degree level. Reimbursements are made as soon as practicable after receipt of the required paperwork, including itemized receipts.

A Fire Fighter who receives financial assistance for their education from another source must disclose the other source and amount on the Tuition Reimbursement Application. The City does not pay for tuition and mandatory fees paid by other sources, such as scholarships, grants, veterans' benefits, or other subsidies. Any Fire Fighter who receives reimbursements from the City for expenses that were paid by other sources must pay back 100 percent of those funds before becoming eligible for any future reimbursements from the City.

The City's total tuition reimbursement cannot exceed the Fire Fighter's education expenses.

8.2.3 Tuition Reimbursement Appeals

If a Fire Fighter requests tuition reimbursement and the Fire Chief denies the request, the Fire Fighter may contact the Human Resources Manager for Talent Acquisition to try to resolve the dispute. The Human Resources Manager for Talent Acquisition will discuss the dispute with the Human Resources Director. If the Human Resources Director disagrees with the Fire Chief's decision to deny a Fire Fighter's request for tuition reimbursement, the Fire Chief and the Human Resources Director will work to reach a solution.

If the Fire Chief and the Human Resources Director cannot agree, the Human Resources Director will discuss the appeal with the Assistant City Manager (ACM) over the Fire Department. The final decision on the appeal is made by the ACM according to the provisions of this Tuition Reimbursement Policy.

8.2.4 Reimbursement Payback Provisions

A Fire Fighter who receives an overpayment or incorrect amount of reimbursement is required to notify the Benefits Division of the Human Resources Department within 14 calendar days of receipt of the erroneous reimbursement. Fire Fighters are responsible for monitoring their pay advices and verifying reimbursement amounts. Fire Fighters are also expected to repay the City any overpayment. It is the responsibility of any participating Fire Fighter to timely notify the Benefits Division of an overpayment. Failure of a Fire Fighter to timely notify the Benefits Division of an overpayment may result in disqualification from receiving future tuition reimbursements and/or disciplinary action up to and including indefinite suspension.

Overpayment reimbursement or repayment of tuition reimbursement may be deducted from a Fire Fighter's paycheck and/or final paycheck with the Human Resources Director's (or designee's) approval. Overpayment amounts deducted from paychecks cannot cause a Fire Fighter to be paid less than minimum wage. Such overpayments or recovery of tuition reimbursement payments from active employees, including those that involve payroll deductions, will be handled pursuant to Section 2.10.2 of these FDPRRs.

If a Fire Fighter resigns or is involuntarily terminated before completing a course, the City is not obligated to pay reimbursement. A Fire Fighter who voluntarily terminates, resigns, or retires within 12 months after receiving tuition reimbursement must repay 100 percent of the reimbursement. A Fire Fighter who voluntarily terminates, resigns, or retires more than 12 months but less than 24 months after receiving tuition reimbursement must repay 50 percent of the reimbursement.

A Fire Fighter who is involuntarily terminated or terminated because of a reduction in force,

medical disability, or as a result of occupational injuries or illnesses is not required to repay the money received for educational reimbursement and is not subject to the payback provision.

8.3 Annual Employee Service Awards

The Annual Employee Service Award recognizes Fire Fighters' tenure and dedication to service. One way to show this appreciation is by recognizing years of service with the City. Continuance of this and any other employee recognition program is dependent on fund availability in each fiscal year's budget.

8.3.1 Eligibility

Fire Fighters participating in the City's retirement fund become eligible for Service Awards at five-year intervals beginning with their fifth anniversary of employment. Awards are based on hours worked and must equal full-time service.

8.3.2 Presentation

Fire Fighters eligible for a Service Award will receive from the City a Service Pin or equivalent award. The Service Pin or equivalent is presented by the Fire Chief or his or her designee in a manner approved by the Fire Chief.

Fire Fighters who are eligible for a 15, 20, 25, 30 year, or beyond, service award will also be granted one additional personal holiday at the beginning of the year in which they reach that specific service milestone. The extra personal holiday is in addition to the regular personal holidays all eligible employees receive. For example, a Fire Firefighter who has worked for the City for 20 years will receive three personal holidays that year, rather than but will only receive two personal holidays for their 21st, 22nd, 23rd, and 24th years. They will then receive an additional service award personal holiday on their 25th year of service. This is in addition to the personal holiday given to all Fire Firefighters as part of leave benefits. (See *Personal Holidays* policy in Chapter 5 for further information.)

9.

Safety Program

9.1 Program Purpose and Introduction

The City is committed to providing a safe and productive work environment, to preventing occupational injuries and illnesses, and to protecting the health and safety of all employees. One way this is accomplished is through the City's Safety Program. This program provides guidelines for workplace safety and preventing illness and injury at work; governs compliance with safety-related policy and practice; prescribes training customized for avoidance of workplace dangers in different types of work environments; and enacts proactive measures to continually increase safety awareness and compliance according to observed trends.

For questions about this chapter, call the Risk Management Division of the Human Resources Department ("Risk Management").

9.1.1 Role of Risk Management Division, Human Resources

Risk Management administers the City's Safety Program and establishes requirements, rules, and procedures applicable to all City employees, including Fire Fighters, for the effective administration of the program.

Risk Management has the authority to establish a centralized safety committee; conduct routine accident investigations, safety inspections, and safety program audits to ensure program compliance; and to temporarily suspend work activities at any worksite that is deemed an imminent danger to the health and safety of employees and/or the general public.

9.1.2 Fire Chief's Role

In regards to the City's Safety Program, the Fire Chief shall be responsible for:

- Appointing a professional-level individual to serve as the Fire Department's Safety Liaison (FDSL) and/or appoint one or more qualified full-time safety professional(s).
- Developing and maintaining a Fire Department-specific occupational health, safety, and accident prevention plan(s) in accordance with Human Resources requirements.
- Ensuring adequate Department funding of safety programs and training,

personal-protective equipment and other safety equipment.

- Consulting with Risk Management to establish a Fire Department Accident Review Board (ARB), as needed. Please see policy regarding the Accident Review Board in this chapter below or call the City's Risk Management Division for more information.

9.1.3 Fire Department Safety Liaison (FDSL) Role

9.1.3.1 After appointment by the Fire Chief, FDSLs shall be responsible for the following components of the City's Safety Program:

- Serve as the liaison between the Fire Department and the assigned Safety Officer in Risk Management regarding Fire Fighter occupational health and safety matters.
- Assist the Fire Chief or designee to develop and maintain the Fire Department's safety and accident prevention plan(s) in accordance with Risk Management requirements. The department's plan(s) must be approved by the Fire Chief and Risk Management.
- Attend scheduled FDSL meetings. The meetings will be chaired by Risk Management. The meetings will be used to communicate safety policies and procedures and other safety related materials.
- Work with Fire Fighters' chain-of-command to perform job safety analyses on hazardous equipment, hazardous work duties, and hazardous work sites.
- Provide and/or coordinate safety training and establish safety training schedules for Fire Fighters.
- Establish workplace safety inspection reports and schedules for the Fire Department.
- Serve as a professional safety resource to the Fire Department's Accident Review Board.
- Maintain all records of safety training, safety inspection reports, and accident investigation reports in accordance with Risk Management requirements and City records retention schedules.
- Provide quarterly and annual accident reports and statistics to the Fire Chief and the Fire Executive Staff, to include suggestions for future accident prevention.

9.1.3.2 Authority of Fire Department Safety Liaison (FDSL)

FDSLs shall have the authority to: (1) conduct routine accident investigations; (2) conduct safety inspections and safety program audits to ensure program compliance; (3)

require safety training for Fire Fighters; and (4) temporarily suspend work activities at any Fire Fighter work site that is deemed an imminent danger to the health and safety of Fire Fighters.

9.1.4 Duties and Responsibilities for Ensuring a Safe Workplace

9.1.4.1 Role of Fire Fighter's Chain-of-Command

The Fire Fighter's Chain of Command shall be responsible for the following:

- Ensure that new Fire Fighters receive an initial orientation regarding how to safely perform their job duties before the Fire Fighter is allowed to perform the job. The chain-of-command shall not allow Fire Fighters to perform work for which the Fire Fighter has not received training for safe performance of the job.
- Provide repeat and documented (including Fire Fighter acknowledgement) safety training to Fire Fighters as necessary or required.
- Ensure Fire Fighters use and properly maintain safety equipment, including required personal protective equipment, safety apparel, and uniforms. The chain-of-command shall not require or allow Fire Fighters to work without appropriate safety equipment and personal protective equipment to safely perform the job.
- Ensure Fire Fighters maintain equipment according to manufacturer recommendations and recommended maintenance schedules.
- Ensure Fire Fighters visually inspect equipment prior to use.
- Communicate to Fire Fighters the requirement that Fire Fighters must promptly report all accidents and injuries within 24 hours or at the end of the shift following the accident/injury, whichever is earlier.
- Hold Fire Fighters accountable for their safe job performance.
- Promptly investigate all accidents in accordance with established procedures and requirements. A Fire Fighter's chain-of-command is expected to also use judgment and discretion in determining appropriate actions, including a recommendation of disciplinary action, considering findings from the Accident Review Board (ARB) or other entities.
- Notify the FDSL and the Fire Department Medical Records Custodian (MRC) immediately but no later than 24 hours of any accident or injury to subordinate Fire Fighters. In the event of a serious accident and/or life-threatening injury to subordinate Fire Fighters, notify the FDSL and MRC at the time of the accident.
- Attend all required safety training.
- Consistently serve as a role model for safe work behavior at all times.

9.1.4.2 Chain-of-Command Accountability for Safety

Any Fire Fighter's chain-of-command who fails to train and instruct their subordinate Fire Fighters regarding safety policies, standards, regulations, rules, procedures, processes, and commonly accepted safe work practices is subject to disciplinary action up to and including indefinite suspension.

Any Fire Fighter's chain-of-command who fails to require their subordinate Fire Fighters to use required safety equipment, including personal protective equipment, is subject to disciplinary action up to and including indefinite suspension.

9.1.5 Role of Fire Fighters

9.1.5.1 Fire Fighters shall be responsible for the following:

- Know, understand, and follow safety regulations and rules that apply to the Fire Fighter's job and the work being performed.
- Attend all required safety training.
- Wear personal protective equipment and work clothing required for safe job performance.
- Use safety equipment, apparatuses, and devices provided for safe job performance.
- Maintain assigned equipment according to recommended maintenance instructions and maintenance schedules.
- Possess a valid State of Texas driver's license as required by the Fire Fighter's position or job function. Fire Fighters moving to Texas from out of state will be required to obtain a valid Texas driver's license as prescribed by the FW Civil Service Local Rules within 90 days. Risk Management may conduct driver's license records checks with the Texas Department of Public Safety to identify Fire Fighters whose license is suspended or revoked. Fire Fighters who fail to maintain and possess a valid Texas driver's license shall be subject to disciplinary action up to and including indefinite suspension.
- Obtain, maintain, and possess personal automobile insurance coverage if the Fire Fighter drives his or her personal vehicle in the performance of City business. In the event of a vehicle accident involving a Fire Fighter's use of his or her personal vehicle while on City business, the City shall look first to the Fire Fighter's personal auto insurance coverage for liability coverage.
- If the Fire Fighter drives a City vehicle or personal vehicle in the course and scope of the Fire Fighter's job duties, the Fire Fighter must complete a Defensive Driving course at least every three years.

- All Fire Fighters and occupants of vehicles driven by Fire Fighters on City business must have their seat belts and harnesses fastened while the vehicle is in motion. This directive applies to travel in both City-owned vehicles and personal vehicles used for City business.
- Report immediately all hazards, unsafe conditions, unsafe equipment, and unsafe acts of others to a Fire Fighter's chain-of-command, FDSL, or to Risk Management.
- Report to the Fire Fighter's immediate chain-of-command all accidents and injuries in which the Fire Fighter is involved or of which the Fire Fighter observes or learns. The report of an accident or injury must occur as soon as possible but no later than 24 hours after the accident, or at the end of the shift.

9.1.5.2 Fire Fighter Accountability for Safety

Each Fire Fighter is accountable for safely performing his or her job. If the Fire Fighter is doing the job correctly, then the Fire Fighter is presumptively doing the job safely. A Fire Fighter who fails to observe and follow safety policies, standards, regulations, rules, procedures, processes, or commonly accepted safe work practices is subject to disciplinary action up to and including indefinite suspension. A Fire Fighter who fails to use safety equipment provided, including personal protective equipment, is subject to disciplinary action up to and including indefinite suspension.

9.2 Safety Rules, Regulations, and Requirements

9.2.1 Occupational Health and Safety Regulations

The City recognizes and follows the regulations below as primary standards and rules for workplace safety of Fire Fighters:

- Title 29, Code of Federal Regulations, Occupational Safety and Health Act of 1970; Part 1910 for General Industry; (commonly referred to as the OSHA Standards)
<http://www.osha.gov/law-regs.html>
- Regulations passed under the Commercial Vehicle Safety Act of 1986, Title 49, Code of Federal Regulations (CFR), Part 380 Special Training Requirements; Part 382 Controlled Substances and Alcohol Use and Testing; Part 383 Commercial Driver's License Standards; and Part 384 State Compliance with Commercial Driver's License Program.
<http://www.fmcsa.dot.gov/regulations/title49/b/5/3>
- The Texas Commercial Driver License Act of 1989, as codified in the Chapter 522 of the Texas Transportation Code, as amended.
<http://www.statutes.legis.state.tx.us/Docs/TN/htm/TN.522.htm>

Risk Management may identify other regulations and standards and/or may develop and maintain other similar standards, regulations, rules, and procedures as necessary to supplement OSHA standards for the health and safety of all City employees, including Fire Fighters. All Fire Fighters and their chain-of-command shall follow these standards, regulations, rules, and procedures unless a specific standard or regulation is waived by Risk Management.

9.2.2 Safety and Accident Prevention Program

Risk Management shall develop, maintain, and implement a citywide occupational health, safety, and accident-prevention program and plan that includes the major elements of an effective program as identified in the federal Occupational Safety and Health Administration's (OSHA) "Safety and Health Program Management Voluntary Guidelines." Risk Management may also develop procedures and processes as necessary for the effective administration and implementation of the Citywide Safety and Accident Prevention Program.

The Fire Department shall support and follow the Citywide Safety and Accident Prevention Program plan and subsequent procedures and processes developed by Risk Management. The Fire Department shall also develop, maintain, and implement health and safety programs and plans consistent with the Citywide Safety and Accident Prevention Program that address hazardous conditions to which Fire Fighters are routinely exposed in the performance of their jobs.

9.2.3 Requirements Related to Illness and Communicable Diseases

9.2.3.1 Assisting Fire Fighters Who Become Ill at Work

Fire Fighters who become ill at work should be attended to immediately. If the Fire Fighter's medical condition is potentially serious or life threatening, the attending personnel will immediately call 911.

In nonemergency situations when the Fire Fighters cannot continue working, the Fire Fighter should seek medical attention from a doctor or hospital of his or her choice. If the Fire Fighter requests assistance, the Fire Fighter's chain-of-command or designee must assist the Fire Fighter in contacting the Fire Fighter's designated emergency contact to arrange transportation for the Fire Fighter. It is the Fire Fighter's responsibility to seek assistance for arranging such transportation. If transportation cannot be arranged through the emergency contact, the Fire Fighter's chain-of-command or designee must arrange for transportation of the Fire Fighter to his or her residence or to another location designated by the Fire Fighter. The expense of transportation arrangements as applicable will be the responsibility of the Fire Fighter.

9.2.3.2 Contagious and Communicable Diseases

The City follows the recommendations promulgated and published by the U.S. Centers for Disease Control (CDC), Tarrant County Health Authority, and/or the City's occupational health services contractor.

The City reviews each communicable disease situation on an individual case-by-case basis. If a Fire Fighter's chain-of-command suspects a contagious or communicable disease outbreak or exposure incident in the workplace, they should immediately contact Risk Management for assistance. Any Fire Fighter who feels they may have been exposed to a contagious or communicable disease should inform his or her chain-of-command or contact Risk Management as soon as he or she is aware of the potential exposure.

Fire Fighters who contract a contagious disease that may be transmitted from one person to another via work-related contact are expected to seek appropriate medical attention and remain out of work until medically approved to return to the workplace. If a Fire Fighter comes to work and is suspected of having a contagious or communicable disease that could significantly impact others in the workplace, they may be required by the Fire Chief or Human Resources to leave the workplace and remain off work until such time that the infected Fire Fighter may no longer transmit the disease to another person via work-related contact. The Fire Fighter is required to use applicable accrued leave or be on leave without pay if no applicable accrued leave is available. The Fire Chief may require the Fire Fighter to provide to the department Medical Records Custodian (MRC) a medical release from a healthcare provider before allowing the Fire Fighter to return to work.

9.3 Commercial Driver License (CDL) Program

The City maintains a fleet of commercial motor vehicles that are operated by CDL-qualified drivers. Questions regarding the CDL qualifications can be directed to Risk Management.

9.4 Accident Review and Safety Board (ARB)

Every member of the Fire Department must promote and cultivate a culture of safety within the Department. All employees are expected to work safely and ensure that all safety rules and regulations are observed by themselves and others. It is the obligation of every employee to address and report unsafe conditions and actions. To assist in cultivating a culture of safety, the Fire Department shall establish an Accident Review and Safety Board (ARB) to review vehicular accidents, property damage, and work-related injuries. The ARB will review all vehicular/equipment accidents and any work-related injuries that lead to treatment from a licensed medical provider. For each case reviewed, the ARB will identify the root cause and classify vehicular accidents as either Chargeable or Non-Chargeable and non-vehicular accidents as either Preventable or Non-Preventable. The ARB may recommend preventative actions to ensure hazards discovered during the review process are properly addressed.

9.4.1 Fire Department Accident Investigations

Before the Accident Review and Safety Board assembles to review an accident or injury,

a Fire Department investigation of that incident must be completed. The investigation should include a review of the driver and/or injured Fire Fighter's detailed written statement, the accident report, other Fire investigation report(s) as applicable, pictures and/or diagrams of the accident scene, witness statement(s) as applicable, any supporting documentation, and the investigator's written report that summarizes the investigation that was conducted. The investigation materials will be provided to the ARB or centralized Safety Committee for review.

9.4.2 Accident Review and Safety Board Process

The ARB's findings are final, and a Fire Fighter may be disciplined for a Chargeable or Preventable accident, even if the ARB fails to convene within 30 days. The objective of the accident review process is to determine the preventability of events that result in vehicular/equipment accidents and injuries and to recommend appropriate organizational or individual preventative action(s).

The departmental ARB shall consist of a Facilitator and Board Members appointed by the Fire Chief. The composition of the ARB should fairly portray the units within the Fire Department, provide adequate representation from all areas of operations, and include members to represent all levels of employment. Alternates should be appointed for each member serving on the board.

All determinations will be made by a majority vote of board members present.

The Facilitator will conduct ARB meetings; record and maintain pertinent information concerning board activities; compile necessary documents for distribution at the meetings; notify workers, Fire Fighters' chain-of-command, and ARB members of future meeting details; participate in interviews and information gathering; and vote as needed (only when there is a tie among the accident review board or when sitting in place of an absent board member). ARB members will participate in interviews and information gathering, discuss findings and make individual recommendations, vote, and if unable to attend a regularly scheduled meeting, the ARB member must contact his/her alternate and make arrangements for that person to attend.

During an ARB meeting, the Facilitator will call the meeting to order and make note of present members. The ARB will review the investigation packet, give the involved Fire Fighter an opportunity to provide a statement and answer questions from ARB members, interview the Fire Fighter's chain-of-command and witnesses as preventable or non-preventable. Vehicle accidents will be classified as preventable if the Fire Fighter is found to be in violation of a traffic law or departmental regulation which is a contributory factor in the accident. For example, if it is determined that the Fire Fighter was not cautious, used poor judgment, and/or did not follow safety-related policies, procedures, or practices, the accident may be classified as preventable.

9.4.3 ARB Authority and Requirements

The ARB has authority to request additional information concerning the investigation of accidents and unsafe conditions or practices. The ARB does not have the authority to initiate disciplinary action as a result of their findings. The ARB is required to record all proceedings and findings in writing and to maintain those documents in accordance with the City's record

retention guidelines. It is strongly suggested that the ARB consult with Risk Management as needed and share records as requested by Risk Management so that trends and preventive actions can be monitored City-wide.

9.4.4 ARB Findings and Appeal Process

Findings of the ARB shall be provided in writing to the Fire Chief or his or her designee with a copy to the Risk Management Division. Within five (5) business days of receiving the ARB's decision, the Fire Chief or his or her designee will notify the Fire Fighter in writing of the decision and inform the Fire Fighter of his/her right to appeal. Any appeals of the ARB's decision must be made in writing to the Facilitator within five (5) business days of notification of the determination and should state why the employee thinks the accident should have been determined to be non-chargeable or non-preventable.

Questions regarding the ARB process can be directed to the Risk Management Division of the Human Resources Department.

10. Occupational Injury Benefits Program

10.1 Purpose

The City strives to ensure that Fire Fighters who are injured in the course and scope of their jobs are provided available support and assistance toward the goal of returning to work healthy as quickly as possible.

Fire Fighters may be eligible to receive workers' compensation Medical Benefits, Income Benefits, and Occupational Injury Leave Pay (Occupational Leave, or "O-Days") if the Fire Fighter is injured in the course and scope of performing his or her job.

For questions about this chapter, call the Human Resources Assistant Director or Manager for Risk Management.

10.2 Duties, Responsibilities, and Authority within the Occupational Injury Benefit Program

10.2.1 Human Resources Risk Management Division

The Occupational Injury Benefits Program is administered by a third-party administrator (TPA) in conjunction with Risk Management of the Human Resources Department ("Risk Management"). Risk Management establishes requirements, rules, and procedures for the effective administration of the program.

10.2.2 Fire Department Medical Records Custodian

In accordance with the City Manager's Administrative Regulation D-10, "Protection of Medical Information," the Fire Chief shall appoint a primary Medical Record Custodian (MRC) and alternate MRCs who shall serve as the department's point of contact for workers' compensation, return-to-work coordination, and medical record-keeping purposes. In this capacity, the MRC shall also serve as the Fire Department's Workers' Compensation Coordinator.

The MRC shall be responsible for the following in regards to the City's Occupational Injury Benefits Program:

- Coordinate with injured or ill Fire Fighters and their supervisors regarding the confidentiality of medical records received by the City.
- Receive, maintain, and retain medical records and information, as well as maintain the confidentiality and proper release of such records and information in accordance with the City's Administrative Regulation D-10.
- Promptly provide workers' compensation medical records to the Human Resources Department's Risk Management as required by these personnel rules and regulations and by Risk Management procedures.
- Coordinate with the Risk Management, any Third-Party Administrator (TPA), and injured Fire Fighters and their supervisors regarding the City's occupational injury benefits and return-to-work programs and promptly report issues and problems to Risk Management for resolution.
- Obtain information from injured Fire Fighters, coworkers, and their supervisors in accordance with the Texas Labor Code, Fire Department S.O.P.s, City Fire Department Personnel Rules and Regulations (FDPRRs,) and Risk Management procedures to establish, investigate, and manage claims for workers' compensation benefits, and timely report such information as required by the Labor Code, Rules, the FDPRRs, and Risk Management procedures.
- Notify injured Fire Fighters of scheduled follow-up doctor appointments, and that they must provide a completed DWC-73 to the MRC following the appointment.

- Monitor claims while Fire Fighters are receiving workers' compensation benefits and occupational injury leave benefits.
- Monitor injured Fire Fighters' on-going eligibility to be on O-Days.
- Assist injured Fire Fighters, their supervisors, and timekeepers with records and dates pertaining to injured Fire Fighters' lost time and/or transitional duty time to ensure that time and attendance records accurately reflect periods of lost time and transitional duty as determined by the claims adjuster handling the workers' compensation claim and/or Risk Management; assist the timekeeper with records and dates pertaining to the accrual of occupational injury leave in accordance with the FDPRRs; assist Payroll and Human Resources to recoup any overpayments to injured Fire Fighters/claimants according to procedures established by Human Resources and Payroll.
- In accordance with the rules and instructions from Risk Management, post in the workplace and maintain all DWC required notices relating to workers' compensation.
- In cooperation with Risk Management, provide quarterly or annual reports (or as otherwise requested) to the Fire Chief and executive management that summarize Fire Fighters' injuries and claims.
- Track medical appointments to ensure that injured firefighters are eligible for appropriate leave usage, such as Line of Duty Injury Leave (O-Days), FMLA, and Workers' Compensation Leave, among others.
- Upon notification by Risk Management or an applicable TPA that a Fire Fighter/claimant has a designated doctor examination, required medical examination, or independent medical examination, inform the Fire Fighter of the examination date, time, and location; monitor the Fire Fighter's attendance at the examination and inform Risk Management and the TPA in cases of non-attendance.
- Report non-compliance by Fire Fighters and supervisors to departmental management and to Risk Management.
- Ensure FMLA leave is designated and runs concurrently with occupational injury leave as applicable and available.

A "Workers' Compensation Resource Manual" has been prepared by Risk Management for the benefit of MRCs to provide detailed guidance and procedures related to workers' compensation duties and responsibilities. This Manual may be obtained on the City of Fort Worth's Intranet Page, under the Forms Portal.

10.2.3 Chain of Command

A Fire Fighter's chain of command is responsible for communicating to Fire Fighters that the Fire Fighter is required to report all accidents and injuries to the immediate chain of command within 24 hours or at the beginning of the Fire Fighter's next shift, whichever is earlier. This communication can be accomplished through such means as departmental policy, staff meetings, training opportunities, and/or other means per business needs. Written acknowledgement regarding this notification requirement will be obtained when Fire Fighters are initially hired and should be renewed on a regular basis (e.g., annually or biennially).

When notified, verbally or in writing, by a Fire Fighter that an injury has occurred, the Fire Fighter's immediate chain of command must:

- (1) Complete the Employer's First Report of Injury form (DWC-1) the same day of the injury or at the beginning of the next shift. The Fire Fighter's chain of command rather than the Fire Fighter must complete the DWC-1 and submit it to the MRC.
- (2) If other Fire Fighters and/or co-workers witnessed the injury/incident, provide a "Witness Report of Accident to the City of Fort Worth" form to each witness with instructions to complete and return the form to the MRC within 72 hours.
- (3) Provide the injured Fire Fighter the following forms for completion by the Fire Fighter and return to the MRC within 24 hours of the injury or at the beginning of the next shift, whichever is earlier:
 - Fire Fighter's Report of Injury to City of Fort Worth;
 - Authorization to Release Medical Information; and
 - Black★Stone Provider Panel Acknowledgement Form.

If the Fire Fighter seeks medical treatment, the Fire Fighter's chain-of-command must:

- (1) Inform the injured or ill Fire Fighter that he or she must seek medical treatment for the injury from a Primary Treating Physician within the Black★Stone Provider Panel unless a serious medical emergency exists.
- (2) Provide the injured Fire Fighter a completed "Authorization for Initial Medical Treatment" form to take to the treating doctor. This form is available from the MRC or Risk Management. If the injury is serious enough to warrant emergency treatment, ensure the Fire Fighter is transported to the nearest emergency treatment facility and provide the authorization form to the ER facility.

- (3) Provide the injured Fire Fighter the “City of Fort Worth Black★Stone Provider Group 504 Medical Care Program Acknowledgement Form.”
- (4) Require the injured Fire Fighter to submit a completed, signed DWC073 “Work Status Report” to the Fire Fighter’s chain-of-command following each medical examination visit to a workers’ compensation examining doctor. Form DWC073 must be submitted to the MRC upon receipt by the chain-of-command.

Note: The DWC073 is not required by the State of Texas when an injured Fire Fighter is taken to a hospital emergency room or is admitted to a hospital. However, a medical release from the hospital that specifies the patient’s work status and any work restrictions is required by Human Resources, Risk Management, in lieu of the DWC073.

When a Fire Fighter is released by an examining doctor to return to work with restrictions, the Fire Fighter’s chain of command is required to provide transitional duty assignments if such assignments are reasonably available. Such transitional duty assignments must be coordinated with the MRC. The chain of command shall ensure that a Fire Fighter on transitional duty performs only those duties that are within the examining doctor’s identified restrictions. The MRC will work with the chain of command to provide a bona fide offer of employment as required by the Texas Labor Code.

10.2.4 Fire Fighter Obligations

When occupational injuries occur, Fire Fighters are required to comply with all applicable provisions of the Texas Labor Code, Texas Workers’ Compensation Rules in 28 Texas Administrative Code (Rules), City FDPRRs, and Risk Management procedures.

10.2.4.1 State of Texas Workers’ Compensation Claims Reporting Requirements for Fire Fighters

In summary, the State of Texas has established the following specific requirements that injured Fire Fighters must follow to qualify for workers' compensation benefits.

Notification Requirement. The Fire Fighter must notify his or her chain of command (supervisor) within 30 days of injury. Notification may be either verbal or in writing. If notification is not received within 30 days from the date of injury, the Fire Fighter’s claim for workers’ compensation benefits may be denied. The date of injury for an occupational disease is the date the Fire Fighter knew or should have known that the disease (injury) may be related to his or her job.

Claim-Filing Requirement. The Fire Fighter shall file form DWC-41, “Employee’s Claim for Compensation for a Work-Related Injury or Occupational Disease,” within one year of the date of injury or within one year of the date the Fire Fighter knew or should have known an occupational disease may be work-related. This form must be filed with the DWC at the address provided on the form. If the DWC-41 is not received by DWC

within one year of the date of injury, the Fire Fighter's claim for workers' compensation benefits may be denied. Details of the State of Texas workers' compensation requirements and regulations are located at the following links:

- Texas Labor Code, Chapters 401 – 451 and 504:
<http://www.statutes.legis.state.tx.us/>
- Texas Administrative Code, Title 28, Part 2:
http://txrules.elaws.us/rule/title28_part2

Requirements Related to a Communicable Disease Exposure. A Fire Fighter who is exposed to a communicable disease while on the job is required to do the following to qualify for workers' compensation benefits:

- Within 10 days of the exposure to the communicable disease, the Fire Fighter must be tested for the disease by a qualified medical facility and health care provider.
- Documentation of the test results from the medical provider must be provided to the Fire Department MRC.
- A sworn affidavit of the date and circumstances of the exposure signed by the Fire Fighter must be provided to the MRC.

The test result must indicate the absence of the disease to qualify for future workers' compensation benefits. The Fire Fighter is not required to pay for the test.

The MRC shall provide the test results and sworn affidavit to Risk Management, and file a DWC01 for the occupational disease exposure.

Communicable diseases affected by this provision are those that are reportable to the Texas Department of State Health Services, in accordance with Chapter 81, Health & Safety Code. The Department of State Health Services may be contacted (Toll Free 1-888-963-7111 or 512-776-7111) to ensure full compliance with this statute.

Details of the State of Texas, workers' compensation communicable disease exposures are located at the following website links:

- Texas Labor Code: <http://www.statutes.legis.state.tx.us/>
- Texas Administrative Code, Title 28:
[http://info.sos.state.tx.us/pls/pub/readtac\\$ext.ViewTAC?tac_view=3&ti=28&pt=2](http://info.sos.state.tx.us/pls/pub/readtac$ext.ViewTAC?tac_view=3&ti=28&pt=2)
- Texas Health & Safety Code, Chapter 81:
<http://www.statutes.legis.state.tx.us/Docs/HS/htm/HS.81.htm#81.001>

10.2.4.2 City of Fort Worth Workers' Compensation Claim Reporting Requirements

In addition to State of Texas claim reporting requirements, the City of Fort Worth has also established the following requirements and procedures that a Fire Fighter with an on-the-

job injury must follow. An injured Fire Fighter must:

- No later than 24 hours after the injury, notify the immediate chain of command that an on-the-job injury has occurred. Notification may be either verbal or in writing.
- Complete and sign the City's notice of injury form, "Fire Fighter's Report of Injury to the City of Fort Worth," and submit the form to the MRC within 24 hours of the injury or at the beginning of the Fire Fighter's next shift, whichever is earlier.
- Complete and sign the City's "*Authorization to Release Medical Information*" form within 24 hours of the date of injury or at the beginning of the Fire Fighter's next shift, whichever is earlier, and submit the form to the MRC. This form may be located at <http://blackstonecfw.com/>, or the Fire Fighter may contact the third-party administrator at (800) 734-4460.
- Sign the "Black★Stone Provider Panel Acknowledgement Form" and submit the form to the MRC within 24 hours or at the beginning of the next shift, whichever is earlier. This form may be located at <http://blackstonecfw.com/>, or the Fire Fighter may contact the third-party administrator at (800) 734-4460.
- Seek medical attention for the injury from a Primary Treating Physician or referral physician from within the City of Fort Worth's BlackStone Health Care Provider Network.
- Attend all scheduled health care provider appointments unless good cause exists for not attending. The employee must notify the health care provider and the department's WCC if unable to attend a scheduled health care provider appointment prior to the appointment time, if possible.
- Provide a DWC-73 form completed by an examining doctor to the WCC following each doctor appointment. The DWC-73 form should be turned in on the same day as the doctor appointment or, if not possible, on the next business day.
- Attend all dispute resolution hearing and medical appointments scheduled by the Division of Workers' Compensation (DWC), unless good cause exists for not attending.

10.3 Medical Benefits and Treatment

10.3.1 Medical Benefits Entitlement

The City of Fort Worth provides medical benefits and treatment for injured Fire Fighters in accordance with the Texas Labor Code and Texas Administrative Code. City of Fort Worth Fire Fighters are entitled to medical treatment and care that is reasonably required by the nature of the injury and that is intended to cure and relieve the effects naturally resulting from the compensable injury, promote recovery, and enhance the Fire Fighter's ability to return to work.

In accordance with the Texas Labor Code § 504.053, the City of Fort Worth has established a health care provider panel to provide workers' compensation medical benefits to City Fire Fighters. This panel is known as the Black★Stone Provider Panel.

10.3.2 Medical Treatment for a Job-Related Injury or Occupational Illness/Disease

If a Fire Fighter needs medical attention, the Fire Fighter must seek medical treatment from an authorized Primary Treating Physician (PTP) within the City of Fort Worth's Black★Stone Provider Panel.

10.3.3 Black★Stone Provider Panel

In accordance with the Texas Labor Code, § 504.053(b), the City of Fort Worth has directly contracted with certain health care providers to provide a network for medical treatment and care of City Fire Fighters who are injured in the course and scope of employment. This workers' compensation network is known as the "Black★Stone Provider Panel" (Black★Stone). Black★Stone has been developed as part of the City's contract for third-party workers' compensation claims administration services. Through the TPA and their health care credentialing partner, the City directly contracts with licensed health care professionals to provide medical care to City Fire Fighters through Black★Stone. The effective date of the program was October 1, 2016.

The purpose of Black★Stone is two-fold:

- (1) provide the highest quality medical treatment and services available to injured City Fire Fighters; and
- (2) return injured City Fire Fighters to the workforce as soon as the Fire Fighter is medically able to do so.

Black★Stone Website – Black★Stone maintains a website that contains information for Fire Fighters and health care providers regarding the network. Included on this website is a list of providers by medical specialty that are authorized to participate in Black★Stone. The URL of the website is: <http://blackstonecfw.com/>.

Black★Stone Fire Fighter Acknowledgement - Upon receipt of notification of an on-the-job injury or illness, the supervisor shall provide the injured Fire Fighter with a "Black★Stone Acknowledgement Form." The Fire Fighter is required to sign and return the form to the MRC within 24 hours of receipt of the document. The MRC shall place the completed form

in the employee's file. This acknowledgement form is provided on the Black★Stone website [https://blackstonecfw.com/under "Forms"](https://blackstonecfw.com/under%20Forms) or by contacting (800) 734-4460. This form can also be located on the City of Fort Worth's Intranet page, under the forms portal.

Health Care Nominations to become an Authorized Black★Stone Provider - Health care providers may submit an application to the TPA to request becoming an authorized provider in the Black★Stone Network. Fire Fighters may also nominate health care providers for the Black★Stone Network. All applicants will be thoroughly reviewed and credentialed by the TPA and credentialing subcontractor. Only those health care providers that are approved by the TPA and credentialing subcontractor may participate as a contract provider in the Black★Stone Network. Requesting health care providers are offered no assurance that their application will be approved. A nomination form is provided on the Black★Stone website under "Forms" or by contacting (800) 734-4460.

List of Approved Black★Stone Providers - A Provider Lookup of approved Black★Stone providers may be located on the Black★Stone website under the "Provider Lookup" section or by contacting (800) 734-4460.

10.3.4 Medical Treatment of Injured Fire Fighters

Fire Fighters who are injured in the course and scope of employment are required to seek medical treatment for their injury or illness from a contracted health care provider within the Black★Stone Provider Panel.

Failure of a Fire Fighter to obtain medical treatment and services from an authorized Black★Stone health care provider may result in denial by the city's TPA for payment of such treatment and services, and the Fire Fighter shall be responsible for payment of services rendered.

Fire Fighters must select a treating doctor from among the list of Primary Treating Providers (PTP) on the Black★Stone website. If a Primary Treating Provider makes a referral to a specialty doctor, such referrals will be made to a specialty doctor within the Black★Stone Network.

If medical services are required by a health care provider that is not in Black★Stone, provisions will be made by the TPA to authorize reasonable and necessary medical care by outside providers for payment by the TPA and the City's self-insured workers' compensation program. At the discretion of BlackStone, such health care providers may be supplied with an application to become an authorized provider in Black★Stone.

“Legacy claims,” i.e. those claims with dates of injury that pre-date implementation of Black★Stone on October 1, 2016, are evaluated by Black★Stone on a case-by-case basis to determine if these claims should be brought into Black★Stone.

10.3.5 Emergency Medical Treatment

If the injury is serious enough to warrant emergency treatment, the Fire Fighter should seek treatment from the nearest emergency treatment facility. An “Authorization for Initial Medical Treatment” form can be obtained from the Black★Stone website under “Forms”. Otherwise the ER facility should be informed that this is an on-the-job injury under workers' compensation, and the Fire Fighter should request that the ER facility contact the MRC or Risk Management for treatment authorization and billing instructions. After the emergency medical condition has passed (i.e. the Fire Fighter has been released from care by the emergency medical facility), the injured Fire Fighter must seek further medical treatment from an authorized Black★Stone provider for all subsequent care.

10.3.6 Attendance at Medical Appointments

All scheduled health care provider appointments must be attended unless good cause exists for not attending. If the Fire Fighter is unable to attend a scheduled health care provider appointment, the Fire Fighter must immediately notify the health care provider and the MRC before the appointment time, if possible.

10.3.7 Work Status Report

For each medical appointment that involves a medical examination by a doctor, the Fire Fighter must obtain form DWC073 “Work Status Report” from the examining doctor. The form must be fully completed by the examining doctor, and must include the doctor’s signature. The Fire Fighter must sign the form, and then submit the form to the MRC on the same day as the doctor appointment or at the beginning of the next business day.

10.3.8 Change of Primary Treating Physician (PTP)

A Fire Fighter may change PTPs one time by simultaneously notifying the assigned workers’ compensation claims adjuster and the prior PTP. Any subsequent changes in PTPs must be pre-approved by Black★Stone in a form and manner prescribed by Black★Stone. The Fire Fighter may not obtain medical treatment from another doctor unless written approval is first received from Black★Stone. Any change of PTPs must be to an authorized PTP within the Black★Stone Provider Panel. The Change of Physician Form may be located on the Black★Stone website under “Forms”.

10.3.9 Referral to Medical Specialist

All referrals to medical specialists shall be made only by an authorized Black★Stone provider.

10.3.10 Unauthorized Medical Treatment

A Fire Fighter who receives medical treatment from any health care provider who is not an authorized Black★Stone provider may be personally responsible for payment of such medical services.

An injured Firefighter whose medical treatment has been denied by the workers’ compensation TPA may seek medical attention from their personal health insurance. In order to receive medical treatment under their health benefits program, the Firefighter should provide a “PLN-1, Notice of Denial of Compensability/Liability and refusal to pay benefits, or a PLN-11, Notice of Disputed Issues and Refusal to Pay Benefits” to the health benefits program administrator.

Health care providers are specifically prohibited by the Labor Code from directly billing an injured Fire Fighter. Direct billing to an injured Fire Fighter is an administrative violation of the Labor Code and is subject to administrative sanctions and penalties against the health care provider. A Fire Fighter who receives a direct billing statement from a health care provider should immediately contact his or her assigned workers’ compensation claims adjuster.

In addition, health care providers are specifically prohibited from seeking reimbursement from health benefits insurers for workers’ compensation injuries unless the health care provider’s sub-claim for benefits has been finally adjudicated through the DWC’s dispute resolution process.

10.3.11 Inability to Work

If an examining doctor determines that a Fire Fighter's medical condition prevents the Fire Fighter from returning to work, the Fire Fighter must remain at home, follow the medical instructions of the doctor to recuperate, and not engage in activities of any kind that contravene the medical orders of the doctor. A Black★Stone provider or emergency physician must authorize any and all lost time away from work.

A Fire Fighter who has been released by an examining physician to return to work is subject to the Return-To-Work provisions of these FDPRRs (reference: Chapter 11, Return-To-Work).

10.3.12 Other Medical Conditions While on Workers' Compensation

An injured Fire Fighter with a compensable injury who must be off work due to a serious medical condition that is unrelated to the compensable injury must notify his or her supervisor or manager that he or she must be off work due to the unrelated medical condition. The Fire Fighter shall provide to his or her supervisor/manager documentation from his or her doctor stating the Fire Fighter is unable to work due to the unrelated medical condition. The Fire Fighter must follow these Fire Department Personnel Rules and Regulations related to sick time and the Family and Medical Leave Act.

The Fire Fighter must use available accrued leave during the recuperation period. If accrued leave is unavailable, the Fire Fighter must go on an unpaid leave of absence. The City will not pay temporary income benefits ("TIBS") or occupational injury leave benefits during any recuperation period of a medical condition that is unrelated to a compensable injury. Once the unrelated medical condition is resolved, TIBS or O-Days, as appropriate, may be reinstituted.

An injured Fire Fighter who has been released by a doctor to return to work with restrictions to duty (i.e. restricted duty; limited duty; transitional duty) and who needs to be away from work due to an unrelated injury or medical condition for a period of three days or less must notify his or her supervisor or manager that he or she must be off work due to the unrelated medical condition. The Fire Fighter must follow these Personnel Rules and Regulations related to sick time and the Family and Medical Leave Act.

The Fire Fighter must use available accrued leave during the recuperation period. If accrued leave is unavailable, the Fire Fighter must go on unpaid leave of absence. The City will not pay temporary income benefits or occupational injury leave benefits during any recuperation period for a medical condition unrelated to the compensable injury. This provision applies to injured or ill Fire Fighters who are receiving workers' compensation benefits for partial or full days of lost time from work.

10.3.13 Vacation While on Workers' Compensation

An injured Fire Fighter who is taken off work by his or her doctor due to the injury but desires to go on vacation must notify his or her supervisor or manager that he or she intends to take the vacation. The Fire Fighter shall provide to his or her MRC documentation

from his or her doctor stating the Fire Fighter is physically able to go on the vacation. The Fire Fighter must use available accrued leave during the vacation period. If accrued leave is unavailable, the Fire Fighter must go on unpaid leave of absence. The City will not pay temporary income benefits or occupational injury leave benefits during any vacation period. This applies to injured or ill Fire Fighters who are receiving workers' compensation benefits for partial or full days of lost time from work.

10.3.14 Commissioner Order for Medical Examination

The Texas Department of Insurance, Commissioner of Workers' Compensation, is authorized by the Labor Code to order an injured Fire Fighter to be examined by an independent medical doctor or "designated doctor," the purpose(s) of which is specified in the Labor Code § 408.004 and § 408.0041 respectively. A Fire Fighter who receives such an order from the Commissioner of Workers' Compensation must attend the scheduled medical examination specified in the order. If a Fire Fighter fails to attend or refuses to appear at the time scheduled for a medical examination ordered by the Commissioner of Workers' Compensation without good cause, he or she commits an administrative violation of the Labor Code, and the injured Fire Fighter may be subject to an administrative penalty issued by the Commissioner of Workers' Compensation.

In addition, failure of a Fire Fighter to attend a medical examination ordered by the Commissioner of Workers' Compensation, may result in disciplinary action according to these Personnel Rules and Regulations. If the Fire Fighter believes that he or she has good cause not to attend the medical examination, the Fire Fighter must immediately notify the examining doctor to reschedule the examination at the earliest possible date. The Fire Fighter also must notify the MRC and claims adjuster of the medical examination conflict.

10.4 Occupational Injury Leave Benefits

In accordance with the Texas Labor Code, § 504.051, in lieu of paying workers' compensation Temporary Income Benefits (TIBS), the City will pay occupational injury leave full salary payments under the Texas Local Government Code § 143.073 for an in-line-of-duty injury.

Once the Fire Fighter has returned to work, if post-injury earnings ("PIE") do not equal or exceed the pre-injury average weekly wage ("AWW"), then the Fire Fighter is entitled to the difference between PIE and AWW payable as TIBS, up to the maximum TIBS rate set by DWC. This provision does not apply if the Fire Fighter has attained maximum medical improvement ("MMI"). If the Fire Fighter returns to work and if PIE equals or exceeds AWW, then the Fire Fighter is not eligible to receive TIBS. See also, Section 10.5.3 of these FDPRRs.

The City shall determine AWW based on Texas Labor Code § 408.041 through § 408.047 and DWC Rules, 28 Tex. Admin Code § 128.1 through § 128.7. The City shall determine PIE based on DWC Rules, Tex. Admin. Code § 129.1 through § 129.2.

If the Fire Fighter returns to work and occupational injury leave payments under Texas Local Government Code § 143.073 are terminated and/or the authorized occupational injury leave of absence period under City Council Resolution No 4420-03-2015 expires, and there is no

authorized extension of occupational injury leave, the Fire Fighter may be eligible for TIBS until he or she attains MMI.

Under no circumstances shall a Fire Fighter concurrently receive TIBS under the Labor Code Chapters 408 and 409 and occupational injury leave full salary payments under Texas Local Government Code § 143.073.

10.4.1 Eligibility for Occupational Injury Leave Benefits under TLGC § 143.073

A Fire Fighter is eligible to receive occupational injury leave of absence benefits if the injury or occupational disease:

- Occurred in the course and scope of the Fire Fighter's employment; and
- Is determined, by the City's TPA, to be a compensable injury; and in the opinion of an examining doctor, the Fire Fighter's medical condition resulting from the injury prevents the Fire Fighter from returning to work either in a full duty capacity or in a full-time, transitional duty work assignment.

10.4.2 Duration of Occupational Injury Leave Benefits

A Fire Fighter shall continue to receive occupational injury leave benefits until the earliest of the following events occurs:

- An examining doctor (Treating Doctor or Designated Doctor) determines the Fire Fighter's medical condition resulting from the injury no longer prevents the Fire Fighter from returning to work either in a full duty capacity or in a full-time transitional duty work assignment; or
- Two years of medically-documented "off-work" or lost time status by an examining doctor(s) stating the Fire Fighter's medical condition resulting from the injury prevents the Fire Fighter from returning to work either in a full-duty capacity or in a full-time transitional duty work assignment. The two-year period of occupational injury leave may be intermittent periods of lost time interspersed with periods of transitional duty and/or full duty. Upon the Fire Fighter's request, and in limited circumstances, City Council may extend this two-year period for a time that it deems appropriate if the compensable injury involves spinal surgery near the end of Statutory MMI (Council Resolution 4420-03-2015, Sec. 3). The current City Council policy is more generous than what is required by section 143.073 of the Texas Local Government Code. *See* Section 10.4.4.2 of these FDPRR's for the process for requesting an extension.
 - Exception: If at the time of the two years of medically-documented off work or lost time status expires the Firefighter has not yet reached

statutory MMI as provided by the Labor Code §408.104, regarding spinal surgery then the Firefighter's eligibility for occupational injury leave shall extend to the date of statutory MMI specified in a State Division Workers' Compensation Order. In order to receive an extension with the State Division of Workers' Compensation:

- No earlier than twelve (12) weeks before the expiration of 104 weeks after the date income benefits began to accrue, or
- Is received on or after the expiration of 110 weeks from the date income benefits began to accrue.

10.4.3 Disputes of Ability to Work

The opinion of an examining designated doctor appointed by the State Commissioner of Workers' Compensation shall have presumptive weight over a treating or referral doctor

regarding a Fire Fighter's ability to work. If a dispute arises over the Fire Fighter's ability to work, the opinion of a Commissioner of Workers' Compensation appointed designated doctor shall prevail until such time that:

- The state Division of Workers' Compensation issues a decision and order that the opinion of the designated doctor is contrary to the preponderance of the medical evidence, or
- Final adjudication of the dispute determines the opinion of the designated doctor is contrary to the preponderance of the medical evidence.

10.4.4 Extensions of Occupational Injury Leave

10.4.4.1 MRC Notification to Fire Fighter of Expiration of Authorized Occupational Injury Leave

In order to timely submit a request, the Fire Fighter shall be notified by the Fire Department's MRC that the Fire Fighter's two years of authorized occupational injury leave will soon expire. This notification shall occur at least ninety (90) days before the expiration of the current authorized occupational injury leave period. The notification shall be by telephone communication followed up in writing via email distribution and/or certified mail. A copy of the written notification shall be provided to the Fire Department MRC and the Assistant Director of Human Resources for Risk Management.

The MRC shall include with the ninety-day notification to the injured Fire Fighter the following documents to take to the examining doctor:

- copy of the Fire Fighter's job description to include the identification of the essential functions of the Fire Fighter's general and specific job duties, which may include transitional duty assignments if such assignments are reasonably available;

- physical requirements of the job; and

Upon receipt of the Fire Department MRC's ninety-day notification, the Human Resources Risk Management Division may initiate any one or all of the following action(s):

- Request the TPA to submit a request to the State Division of Workers' Compensation for a Required Medical Examination under the Texas Labor Code, §408.004 to determine the appropriateness of medical care being provided to the injured Fire Fighter
- Request the TPA to submit a request to the State Division of Workers' Compensation for a Designated Doctor Examination under the Texas Labor Code, §408.0041 to determine the Fire Fighter's ability to work, date of MMI, impairment rating, extent of injury, and/or whether the Fire Fighter's disability and/or inability to work are the result of the compensable injury

10.4.4.2 Requesting an Extension of Occupational Injury Leave

It is the responsibility of the injured Fire Fighter to request an extension of occupational injury leave. The Fire Fighter's request for an extension of occupational injury leave must adhere to the following procedures. The request must:

- be in writing to the Assistant Director of Risk Management in Human Resources;
- be received by the Assistant Director of Risk Management in Human Resources no later than 60 days before the expiration of the current approved occupational injury leave period;
- include the specific period of time for which additional occupational injury leave is being requested; and
- include complete medical documentation and justification from the BlackStone treating doctor, for the additional time off work.

Medical documentation from the BlackStone treating doctor must include:

- 1) diagnosis(es) of the injured Fire Fighter's current medical condition(s);
- 2) medical treatment plan to facilitate the Fire Fighter's full recovery from injury; and
- 3) the specific, anticipated date in time at which point the Fire Fighter may reasonably be expected to return to work performing the essential functions of a Fire Fighter.

10.4.4.3 Processing a Request to Extend Occupational Injury Leave

Upon receipt of the Fire Fighter's written request for an extension of occupational leave and the recommendation of the Fire Chief, the Human Resources Risk Management Division shall prepare a recommendation to the Director of Human Resources to either support or not support the Fire Fighter's request. The recommendation shall consider the Fire Fighter's cooperation and compliance with following:

- state statutes regarding workers' compensation;
- City personnel rules and regulations regarding workers' compensation and occupational injuries;
- attendance at scheduled and/or required medical appointments;
- attendance at scheduled dispute resolution hearings;
- avoidance of unreasonable or unnecessary delays associated with preauthorization requests for medical services and treatment;
- avoidance of unreasonable or unnecessary delays associated with benefit dispute resolution proceedings, if any; and
- any and all medical documentation from examining doctor(s).

10.4.4.4 City Council Consideration of a Fire Fighter's Request to Extend Occupational Injury Leave

At the direction of the Director of Human Resources, the Human Resources Risk Management Division shall prepare a Mayor & Council Communication (M&C) to place an action item before the City Council at the earliest opportunity. The M&C shall include justification to either approve or deny the Fire Fighter's request. The M&C must also inform City Council of the amount of available paid leave that the Fire Fighter would have available to take if the request is denied.

The City Council may either approve or deny in whole or in part the Fire Fighter's request. If approved by the City Council, the Fire Fighter shall be granted additional O-Days in accordance with the decision of the City Council. If denied, the Fire Fighter may remain off work at the direction of an examining physician and must use available accrued leave.

10.5 Time, Attendance, and Payroll Rules for Occupational Injury Leave to Fire Fighters

The following time reporting rules apply to Fire Fighters receiving workers' compensation medical benefits, workers' compensation income benefits, and/or occupational injury leave for a compensable injury.

10.5.1 Day of Injury

The day of injury is a full day of normal pay at the Fire Fighter's normal pay rate. If the shift carries over into the next day, time is recorded as normal pay for the entire shift. If the Fire Fighter works a split shift and the Fire Fighter is injured during the carry-over period into the next day, both shifts on the day of the injury shall be recorded as normal pay.

10.5.2 Lost Time

Lost time is time away from work because of a compensable on-the-job injury. Lost time is equivalent to disability as defined by Texas Labor Code § 401.011(16).

The workers' compensation TIBS waiting period does not apply to injured Fire Fighters.

A Fire Fighter who is taken off work by an examining doctor for a compensable injury accrues vacation leave, sick leave and accrues holiday leave but does not receive holiday pay.

10.5.3 Occupational Injury Leave ("O-Days")

The provisions of this policy apply to injuries sustained on or after October 4, 2003. A Fire Fighter is subject to this policy except where there may be a conflict with Texas Local Government Code § 143.073.

A Fire Fighter who is subject to Texas Local Government Code § 143.073 will receive full pay for up to two (2) years in accordance with Texas Local Government Code § 143.073, City

Council Resolution No 4420-03-2015, and the provisions of Section 10.4, *Occupational Injury Leave Benefits*, of these FDPRRs. Requests for occupational injury leave after 2 years will be subject to 143.073. Two (2) years of occupational leave is equivalent to 520 eight (8) hour workdays.

“Full pay” is defined as the higher amount of the Fire Fighter’s average weekly wage (AWW) or the Fire Fighter’s regular weekly pay at his or her regular pay rate for normal scheduled work hours. Full salary payments begin with the first full day of lost time.

If AWW is less than regular pay for 40 hours, a Fire Fighter will receive 40 hours full pay through the city’s payroll system while off work for a compensable occupational injury. If AWW is greater than regular pay for 40 hours, a Fire Fighter will receive a paycheck equivalent to AWW.

The City will comply with the DWC Rule, 28 Tex. Admin. Code § 128.3(d) to determine a Fire Fighter’s average weekly wage. The wages paid to the employee for 14 weeks immediately preceding the injury are added together and divided by 14. The quotient is the average weekly wage of the employee.

If a Fire Fighter does not earn AWW when he or she returns to work, the MRC must complete and submit a DWC-6 to the TPA, showing the difference in Post Injury Earnings (PIE). If PIE is more than AWW, the Fire Fighter is not due TIBS from the City’s TPA. When PIE is less than AWW, the Fire Fighter is due 70 percent of the difference between PIE and AWW or the State-mandated maximum TIBS rate. The Human Resources Records Division must also be notified by the MRC of any change in earnings.

A Fire Fighter is eligible to receive TIBs if he or she returns to work and full-salary payment is terminated and there is no extension of full-salary benefits. The Fire Fighter’s eligibility for TIBS continues until he or she attains Maximum Medical Improvement (MMI), or AWW equals or exceeds PIE before MMI.

The City’s payroll system uses time reporting code “DSP – Disability Supplement Pay” to record payment of occupational injury leave to Fire Fighters.

Deductions - All normal paycheck deductions (i.e. taxes, health and dental insurance, court ordered child support, retirement, etc.) will continue to be deducted from the full-salary payments that the injured Fire Fighter receives from the City. All full-salary payments to civil service Fire Fighters are subject to required payroll deductions to include health insurance, retirement contributions, and any court-mandated deductions (i.e. child support, etc.)

10.5.4 Transitional Duty for a Compensable Injury

A Fire Fighter working in a transitional (limited) duty assignment must record their work time as transitional duty (LDU) hours if restrictions or limitations to duty are specified by an examining doctor. While on transitional duty, a Fire Fighter is allowed to work overtime and earn overtime pay or compensatory time if the treating doctor does not place a limitation on hours worked.

A Fire Fighter on transitional duty may use available accrued leave in accordance with normal leave request procedures.

10.5.5 Workers' Compensation Leave ("WCL")

While on lost time, a Fire Fighter cannot use workers' compensation leave ("WCL") to attend medical appointments.

A Fire Fighter who is on transitional duty (LDU) or who has returned to full duty is allowed two hours per day of WCL from work, including travel time, to attend a health care appointment related to the compensable injury. Additional time may be allowed if the Fire Fighter provides proof from the health care provider justifying the additional time. Such proof must state the time of arrival at the appointment and the departure time. In no event will WCL exceed two (2) hours in one day.

If the Fire Fighter works a night shift, the Fire Fighter is allowed WCL during the day to attend a doctor or other health care provider appointment for a compensable injury. During the work week that includes this appointment, the Fire Fighter is required to coordinate with the Fire Fighter's chain of command to reduce the Fire Fighter's scheduled hours by the number of WCL hours taken.

WCL is paid at the Fire Fighter's normal pay rate and does not count toward their 40-hour work week. WCL does not count as hours worked for the purpose of calculating eligibility for overtime.

10.5.6 Family Medical Leave

A Fire Fighter who is off work for more than three (3) consecutive days will be notified by their MRC that the absence will be reported as FMLA leave. FMLA leave will run concurrently with lost time for a compensable injury. See *Family Medical Leave Act* policy in chapter 5 for further information.

10.5.7 Overpayments

While the Fire Fighter is receiving full pay from the City, if any overpayment occurs regardless of cause, the amount of the overpayments will be recovered, consistent with the Federal Labor Standards Act, in whole or in partial payments from future checks from the City. The recovery may begin while the Fire Fighter is on occupational injury leave. The repayment provisions in Section 2.10.2 will be used to determine how any such overpayment will be repaid to the City.

When the Fire Fighter is eligible to receive workers' compensation income benefits, any overpayment regardless of cause will be recovered by the City's TPA from future workers' compensation income benefits.

10.5.8 Seniority

Seniority shall continue to accrue during an occupational injury or illness leave.

10.6 Maximum Medical Improvement

The following rules apply when an examining doctor (Treating Doctor, Referral from Treating Doctor or Designated Doctor) has determined that a Fire Fighter with a compensable injury has reached Maximum Medical Improvement (“MMI”) (See *Glossary* definition):

10.6.1 Effective Date for Time Reporting

The date that Risk Management receives the document from an examining doctor that places a Fire Fighter at MMI shall be the date for time reporting code changes related to MMI.

10.6.2 Inability to Work

- **Time Reporting Code** - The Fire Fighter must use accrued leave while they are unable to work. If accrued leave is not available, the Fire Fighter must request approval for a leave of absence without pay.
- **Eligibility for TIBS/IIBS** - The Fire Fighter is not eligible for workers' compensation TIBS while on occupational leave. The Fire Fighter is eligible for Impairment Income Benefits ("IIBS") if he or she receives an impairment rating over 0 percent.
- **Eligibility for Occupational Leave Pay Extension**- The Fire Fighter is not eligible for an extension of occupational leave pay under Texas Local Government Code §143.073 unless City Council has approved an extension of the leave.
- **Interactive Process** - The MRC will refer the Fire Fighter to Human Resources Risk Management and the City's Leave Coordinator or designee to engage with the Fire Fighter in an interactive process (refer to the *Glossary* definition for more information Regarding the interactive process) and assess the appropriateness of the Fire Fighter's situation to perform essential job functions.

10.6.3 Return To Work with Restrictions

The MRC will refer the Fire Fighter to the City's third-party vendor for FMLA/ADA administration to engage in an interactive process. The department and the third-party administrator will determine if the Fire Fighter can perform the essential functions of the job with a reasonable accommodation for the duty restrictions. If a reasonable accommodation can be provided by the department, the Fire Fighter is returned to work in a modified-duty capacity. If a determination is made that a reasonable accommodation cannot be approved, the procedures outlined in section 143.073 of the Texas Local Government Code will be followed.

10.7 Dispute Resolution

A claim for workers' compensation is a claim against the City of Fort Worth. Any and all disputes that may arise among parties to a workers' compensation claim shall be resolved or adjudicated in accordance with the Texas Labor Code, Chapter 410, and by State Division of Workers' Compensation Rules 140 through 152.

Fire Fighters have the right to professional assistance regarding their claim for workers' compensation. Such professional assistance (an ombudsman) is available at no cost to the injured or ill Fire Fighter from the Office of Injured Employee Counsel, an agency of the State of Texas, which can be reached by phone at 866-393-6432, or by e-mail at oiecinbox@oiec.texas.gov

Fire Fighters also may retain legal representation regarding their claim for workers' compensation. If the Fire Fighter hires an attorney and TIBS/IIBs are being paid, the attorney's fees can be deducted from weekly TIBS/IIBs payments made by the TPA. If TIBS/IIBs are not being paid, arrangements for the payment of attorneys' fees must be determined between the Fire Fighter and his or her attorney.

If the Fire Fighter hires an attorney to represent him or her in the workers' compensation claim, normally the attorneys' fees would be deducted from the Fire Fighter's TIBs/IIBs payments by the City's TPA. The Payroll Division of the City's Financial Management Services Department administers full salary and therefore any attorney fees and payments will need to be settled between the Fire Fighter and the attorney. The City shall not provide legal representation to a Fire Fighter to assist the Fire Fighter during dispute resolution proceedings concerning workers' compensation benefits.

10.8 Miscellaneous Provisions

10.8.1 Working a Second Job While on Workers' Compensation

A Fire Fighter who is taken off work by an examining doctor may not work a second job and at the same time be paid workers' compensation income benefits and/or occupational injury leave benefits pay. Working a second job and receiving workers' compensation income benefits may be considered a willful and intentional attempt by the injured Fire Fighter to fraudulently obtain workers' compensation benefits. The injured Fire Fighter may violate pertinent Labor Code provisions and may be subject to administrative penalties and fines from the Texas Department of Insurance and could be ordered to pay restitution for benefits received. A Fire Fighter who works a second job while on workers' compensation shall not receive occupational injury leave benefits from the City.

10.8.2 Prescription Drugs while Performing Transitional Duty

If a Fire Fighter who has been released to return to work takes a prescription drug prescribed by an examining doctor that adversely affects the Fire Fighter's job performance or the safety of the Fire Fighter or others, the Fire Fighter must either not come to work and utilize their department's absence notification procedures or leave the workplace after notifying their supervisor and must use available accrued leave. If accrued leave is not available, the Fire Fighter will be placed on leave of absence without pay.

10.8.3 Workers' Compensation Control Group

A workers' compensation control group is available to the chain of command to temporarily fill positions occupied by Fire Fighters who are unable to work or who are in a less than full-duty status because of an occupational injury or illness.

To place a Fire Fighter in the control group, the Department's employment section shall submit an electronic Personnel Action Request (ePAR) form to the Human Resources Records Division for approval. The Department must continue to pay the salary of a Fire Fighter transferred into the control group when the Fire Fighter is in a less than full-duty status.

10.9 Compliance

Fire Fighters are expected to fully comply with the State Division of Workers' Compensation Rules and all provisions of these FDPRRs. A Fire Fighter's failure to comply with the Texas Workers' Compensation Act, Texas Workers' Compensation Rules and/or the City's policies regarding Occupational Injury Leave Benefits may:

- result in the suspension or denial of workers' compensation and/or occupational injury leave benefits, and/or
- result in disciplinary action up to and including indefinite suspension in accordance with these personnel policies and procedures and the Texas Local Government Code.

Fire Fighters who fail to comply with the provisions of the Texas Labor Code and state Workers' Compensation Division rules are subject to potential administrative violations and penalties as set forth in Texas Labor Code, chapter 415.

11. Return-To-Work Program

11.1 Purpose and Introduction

The City provides a return-to-work (“RTW”) program to assist Fire Fighters to return to the Fire Department as soon as the Fire Fighter is physically and medically able. Risk Management of Human Resources administers the City’s RTW Program.

For questions about this Chapter, call the Risk Management Human Resources, Manager, for Workers’ Compensation, or the Return-To-Work Coordinator.

11.2 Role of Return-To-Work Coordinator

The City has a RTW coordinator in the City’s Human Resources Department, as well as RTW coordinators within each City department.

The Fire Department’s medical records custodian (MRC) also serves as the department’s workers’ compensation coordinator and RTW coordinator. (See Chapter 10 on *Occupational Injury Benefits Program*, specifically Section 10.2.2 entitled *Fire Department’s Medical Records Custodian*.)

In regards to the Fire Department’s RTW program, the RTW Coordinator shall be responsible for the following:

- Communicating with doctors regarding the availability of transitional duty for injured Fire Fighters and to obtain DWC-73 “Work Status Reports” (DWC-73).
- Communicating with Fire Fighters and their chain of command regarding doctor-identified restrictions to duties of Fire Fighters.
- Monitoring the work status of Fire Fighters who are on lost time or transitional duty as the result of their injury and medical condition; maintain routine contact with injured Fire Fighters to monitor their work status; and monitor and track transitional duty assignments.
- Assisting Fire Fighter’s immediate chain of command in identifying and providing transitional duty assignments based upon the Fire Fighter’s skills, knowledge, ability, recovery period, status of maximum medical improvement (MMI), and duration of doctor-imposed restrictions to duty.
- Assisting Fire Fighter’s immediate chain of command with providing bona fide offers of employment (“BFOE”) to Fire Fighters returning to work on a transitional duty assignment.

11.3 Returning to Work after an Occupational Injury

11.3.1 Applicability

This section only applies to Fire Fighters who sustain a compensable, job-related injury, illness, or disease.

11.3.2 Fire Fighter Duties and Responsibilities

Fire Fighters returning to work following an occupational injury shall be responsible for the following:

- Informing the examining doctor that the City provides transitional-duty opportunities.
- Obtaining a fully completed and signed copy of form DWC-73 “Work Status Report” from an examining doctor during each medical examination.
- Providing the DWC-73 to the MRC and/or Workers’ Compensation Coordinator after each medical appointment with an examining doctor.
- Reporting to work on the effective date of an examining doctor’s release to RTW or the beginning of the next scheduled work day or shift.
- Accepting and signing a Bona Fide Offer of Employment (BFOE) upon being released by an examining doctor to return to work in a transitional duty capacity.

11.3.3 Occupational Injury Return-To-Work (“RTW”) Rules

Fire Fighters returning to work following injury or serious illness must provide to the MRC a DWC-73 “Work Status Report” completed and signed by an examining doctor. Fire Fighters must provide to the MRC the completed DWC-73 “Work Status Report” form on the day of the medical appointment or at the beginning of the Fire Fighter’s next scheduled work day or shift.

If the injured Fire Fighter is released to return to work at full duty, the Fire Fighter must report to work on the effective date of the examining doctor’s release to return to work or at the beginning of the Fire Fighter’s next scheduled work day or shift. The effective date of the Fire Fighter’s return to work will be determined by the examining doctor on form DWC-73.

The Fire Fighter must remain off work until the release is effective.

The medical opinion of a State Division of Workers’ Compensation-appointed Designated Doctor regarding a Fire Fighter’s ability to return to work has presumptive weight under the Texas Labor Code and, therefore, takes precedence over the medical opinion of a treating or referral doctor.

If the Fire Fighter has physical or medical restrictions to duty, all transitional-duty or alternate-duty assignments must be documented by the department in a Bona Fide Offer of Employment (BFOE) signed by the Fire Fighter. The department should consult with Risk Management as needed before providing the BFOE to the Fire Fighter. A Fire Fighter’s refusal to accept and sign a BFOE may result in suspension of temporary income benefits (TIBS), and also may result in disqualification from eligibility for occupational injury leave pay.

Before refusing to provide a Fire Fighter with a transitional-duty assignment, the MRC shall notify the Human Resources RTW Coordinator. The Human Resources RTW Coordinator will work with the Fire Fighter's department to try to locate limited or alternate duty within the Fire Department or another City department. The Fire Department shall pay the Fire Fighter's salary while working a limited/alternate duty assignment in another department.

After consulting the Human Resources Department RTW Coordinator, if transitional duty cannot be provided, the Fire Fighter must remain off work. The off-work period is considered lost time due to the compensable injury, and the Fire Fighter will continue to receive occupational injury leave pay, or TIBS as appropriate. The off-work lost time status continues until the first occurrence of any of the following:

- A transitional-duty or alternate-duty assignment becomes available that meets the Fire Fighter's qualifications and restrictions;
- The Fire Fighter reaches maximum medical improvement (MMI); or
- The Fire Fighter is released by an examining doctor (Treating Doctor or Designated Doctor) to perform the Fire Fighter's essential job functions, with or without reasonable accommodations.

Unless an extension is requested through Human Resources and is considered reasonable under the circumstances, transitional-duty assignments end at the first occurrence of any of the following:

- 180 calendar days (cumulative) of transitional-duty assignment;
- Attainment of MMI as determined by an examining doctor or as required by the Texas Labor Code or DWC Rules; or
- A release by an examining doctor to perform the Fire Fighter's essential job functions, with or without reasonable accommodations.

A transitional-duty assignment shall not be considered a permanent-duty assignment or permanent position with the City. The Fire Chief or designee, in consultation with Human Resources, may terminate a limited-duty assignment based on the business needs of the Fire Department.

A Fire Fighter who reaches MMI and is unable to perform, with or without a reasonable accommodation, the essential functions of his or her job will be directed to the City's third-party vendor for FMLA/ADA administration who will engage the Fire Fighter in the interactive process to determine their ability or inability to perform the essential job functions.

A Fire Fighter is expected to report to work in accordance with the BFOE and the examining doctor's release to return to work. A Fire Fighter who fails to do so will be deemed to have refused the BFOE, which may result in suspension of workers' compensation temporary income benefits (TIBS), if applicable.

A Fire Fighter is responsible for providing or arranging his/her own transportation to and from work when released to work on transitional duty by an examining doctor.

If a Fire Fighter who has been released to return to work takes a prescription drug prescribed by an examining doctor that adversely affects the Fire Fighter's job performance or the safety of the Fire Fighter or others, the Fire Fighter must either not come to work and use the Department's absence notification procedures or leave the workplace after notifying the Fire Fighter's immediate chain of command and must use available accrued leave. If accrued leave is not available, the Fire Fighter will be placed on leave of absence without pay.

A Fire Fighter whose job duties require moderate to heavy physical demands may be required to pass a job-related human performance evaluation ("HPE") as a prerequisite to returning to full duty.

A Fire Fighter who reaches MMI and is unable to perform the essential functions of the job with or without a reasonable accommodation will be directed to the Human Resources Employee and Labor Relations Division to engage in the interactive process. See *Inability to Perform Essential Job Functions* below for further information.

11.3.4 Designated Doctor Examination

A Fire Fighter may be required to attend a designated-doctor examination ("DDE") under the pertinent Texas Labor Code and Texas Admin Rules provisions to determine the Fire Fighter's ability to return work. If the designated doctor determines the Fire Fighter may return to work either with or without restrictions, then the Fire Fighter must return to work on the effective date of the designated doctor's release, or the beginning of the next work day or shift after the effective date of the release. If the DDE report is delayed in being sent to the Fire Fighter, Fire Department, and the City, the date that Human Resources receives the DDE report shall be the effective date for the Fire Fighter to return to work.

11.3.5 Compliance

A Fire Fighter's failure to comply with any requirement of the RTW Program for Occupational Injuries may result in the suspension or denial of occupational leave benefits, and also may result in disciplinary action up to and including indefinite suspension in accordance with these FDPRRs.

11.4 Returning to work after Non-Occupational Injuries, Illnesses, and Disabilities

11.4.1 Applicability

The RTW Program for Non-Occupational Injuries, Illnesses, and Disabilities section applies to Fire Fighters who sustain an off-the-job injury, illness, disease, or disability, or who become pregnant.

11.4.2 Fire Fighter Duties and Responsibilities

Fire Fighters returning from a non-occupational injury, illness, disease, or who have become disabled or pregnant, shall be responsible for the following:

- Following the procedures set forth in the Leave chapter (Chapter 5) for requesting and using sick/family leave and FMLA leave for non-occupational injuries and illnesses.
- Reporting to work on the effective date of an examining doctor's release or the beginning of the next scheduled work day or shift.

11.4.3 Non-occupational Injury/Illness Return To Work ("RTW") Rules

If a Fire Fighter is absent from work for more than three (3) consecutive days, and the Fire Fighter has not reported that the absences are because of an occupational injury or illness, the Fire Fighter should notify the City's third-party FMLA administrator or their departmental Medical Records Custodian (MRC) of the need to take leave prior to FMLA leave beginning. In cases where a Fire Fighter is returning to work from a non-occupational injury or illness, he or she must provide to the MRC a medical release completed and signed by a doctor. When released to return to work without restrictions by an examining doctor, the Fire Fighter must report to work on the effective date of the doctor's release or at the beginning of the Fire Fighter's next scheduled work day or shift.

If the Fire Fighter has physical or medical restrictions, all transitional duty assignments must be documented by the Fire Fighter's immediate chain of command in a Non-Occupational Transitional Duty Assignment form signed by the Fire Fighter. The immediate chain of command should consult with Human Resources as needed regarding the forms or process. A Fire Fighter's refusal to accept and sign a Non-Occupational Transitional Duty Assignment will result in the Fire Fighter remaining off work, and the Fire Fighter must use available accrued leave or unpaid leave if accrued leave is not available.

Transitional duty assignments to Fire Fighters injured in the course and scope of employment shall be given preference over transitional duty assignments to Fire Fighters with non-occupational injuries or illnesses.

For transitional duty assignments, pregnancy will be considered by the Fire Department as the equivalent of a non-occupational injury or illness. A pregnant Fire Fighter shall be placed in a transitional duty assignment if the following conditions apply:

- the Fire Fighter's medical care provider certifies that because of her pregnancy the Fire Fighter is unable to perform the duties of her regular work assignment;
- a transitional duty assignment that the Fire Fighter can perform is available in the Fire Department; and
- the transitional duty assignment is consistent with the restrictions established by the Fire Fighter's medical care provider.

The transitional duty assignment of a pregnant Fire Fighter shall apply until such time as the restrictions are no longer applicable.

Before refusing to provide a Fire Fighter with a transitional duty assignment, the MRC shall notify the Human Resources RTW Coordinator. The Human Resources RTW Coordinator will work with the Fire Department to try to locate transitional duty within the Department or another department. The Fire Department shall pay the Fire Fighter's salary while on transitional duty in another department.

If the Fire Department is unable to provide transitional duty or the Human Resources RTW Coordinator is unable to locate transitional duty in another department, the Fire Fighter must remain off work and must use available accrued leave, or be placed on leave without pay. The HRC/MRC will be instructed to assist with an FMLA claim as applicable. The off-work status continues until the Fire Fighter is released by an examining doctor to full duty.

Unless an extension is requested through the City's RTW Coordinator and is considered reasonable under the circumstances, transitional duty assignments end at the first occurrence of one of the following:

- 180 cumulative calendar days of transitional duty; or
- The Fire Fighter is released by an examining doctor to perform the essential functions of his or her regular job with or without reasonable accommodations.

After 180 calendar days of transitional duty, a Fire Fighter who is unable to perform the essential functions of his or her regular job duties, with or without a reasonable accommodation, will be directed by the Fire Department MRC to the Human Resources RTW Coordinator to begin the interactive process. See Section *Inability to Perform Essential Job Functions* below for additional information.

The Fire Chief, in consultation with the RTW Coordinator may terminate a transitional duty assignment based on the business needs of the department as substantiated by the Fire Chief.

Fire Fighters must pass a job-related human performance evaluation (HPE) as a prerequisite to returning to full duty if the Fire Fighter's job duties required moderate to heavy physical demand requirements as determined by Human Resources. The Leave Coordinator will engage an employee in an interactive process to discuss reasonable accommodations if the Fire Fighter asserts that a disability prevents the Fire Fighter from passing the HPE but the employee can perform the essential functions of the job with or without a reasonable accommodation.

11.4.4 Independent Medical Examinations (IME)

Situations may arise from a Fire Fighter's non-occupational injury, illness, or disease in which an Independent Medical Examination (IME) may be required. Such situations include but are not limited to the following:

- To determine the Fire Fighter's ability to perform transitional duty or perform the essential functions of the Fire Fighter's regular job with or without accommodation.

In such situations, the Leave Coordinator will determine whether an IME is appropriate. If Human Resources determines that an IME is appropriate, the Human Resources Leave Coordinator will coordinate with the Fire Fighter to identify a mutually agreed upon doctor to perform the

IME. If the Fire Fighter and the Human Resources Leave Coordinator cannot agree on a doctor to perform the IME, the Human Resources Leave Coordinator will select the doctor to perform the IME and that selection is final. The Fire Department shall pay the costs of an IME.

The Fire Fighter shall be required by the Fire Chief to attend an IME coordinated by Human Resources. Failure of a Fire Fighter to attend an IME may result in disciplinary action up to and including indefinite suspension. If the Fire Fighter is not already off work, the Fire Fighter shall be placed on administrative leave during the IME process.

The Fire Fighter will remain off work and must use his or her available accrued leave unless and until the IME doctor releases the Fire Fighter to return to work with or without restrictions; or unless and until another examining doctor returns the Fire Fighter to work with or without restrictions and no questions arise about the Fire Fighter's ability to perform the job functions.

If the Fire Fighter's ability to perform the essential functions of his or her regular job is the issue, the Fire Fighter shall be required by the Fire Chief to attend the IME. If the IME agrees with the Fire Fighter's evaluating doctor's assessment, then the issue is resolved. If the IME does not agree with the Fire Fighter's evaluating doctor's assessment, a subsequent IME shall be required. The Fire Fighter must use his or her applicable accrued leave during the second IME process. The Human Resources Leave Coordinator will work with the Fire Fighter to agree upon a doctor to perform a subsequent IME. If the Fire Fighter and the Human Resources Leave Coordinator cannot agree on a doctor to perform the IME, the Human Resources Leave Coordinator will select the doctor to perform the IME and that selection is final. The results of the subsequent IME will be final and binding.

If an IME doctor determines the Fire Fighter may return to work either with or without restrictions to duty, then the Fire Fighter must return to work on the effective date of the IME doctor's release or the beginning of the Fire Fighter's next scheduled work day or shift. Otherwise, the Fire Fighter must remain off work and must use available accrued leave until released to return to work. Failure to return to work may result in disciplinary action up to and including indefinite suspension.

11.5 Inability to Perform Essential Job Functions

11.5.1 Applicability

This section applies to occupational, as well as non-occupational, injuries, illnesses and medical conditions.

11.5.2 Ability to Perform Essential Job Functions

Except during the temporary duty period discussed in this chapter, an employee returning to work following an injury or illness must be able to perform the essential functions of his or her regular job, with or without a reasonable accommodation.

An employee who is unable to perform his or her essential job functions, including under the circumstances discussed in *Occupational Injury Return to Work Rules* or *Non-Occupational Injury/Illness Return to Work Rules*, may receive assistance from Human

Resources to identify other possible employment opportunities within the City through an “interactive process.”

11.5.3 ADA Accommodations

If possible, employees should notify the City’s third-party ADA administrator or their departmental Medical Records Custodian (MRC) of the need for an ADA accommodation.

The Human Resources Leave Coordinator shall meet with the employee and department representatives to discuss and explain the options and sources of assistance that are available to the employee relative to employment with the City.

Beginning with this “interactive process” meeting, the employee may have to be placed on a leave of absence, during which time the employee must use available accrued leave, or be placed on a leave of absence without pay, until a determination can be made regarding continued employment.

During the interactive process period, the Leave Coordinator will engage with the affected employee as required under the Americans with Disabilities Act, as amended. This interactive process will include efforts by the employee, the City’s FMLA/ADA third party administrator, the Leave Coordinator, and the Human Resources Talent Acquisition Division to find a vacant position for which the employee meets minimum qualifications, if the employee can perform all of the essential functions of the job, either with or without a reasonable accommodation. This interactive process will be limited to vacant positions that exist during this period.

The City is not required to create a position, nor is the City required to dislocate a current employee from his/her position, in order to accommodate a person’s disability. If a suitable alternative position is identified, the employee will be interviewed and considered for the position.

If the employee secures another position while still engaged in the interactive process, the process ends upon employment in the new position. If the interactive process ends with no viable continued employment solution for an ADA accommodation, the Fire Fighter may be placed on temporary leave after exhausting available leave pursuant to Tex. Loc. Govt. Code § 143.073(d).

12. Employee Conduct

12.1 Purpose and Introduction

The City is committed to promoting the wellbeing of its employees by maintaining high standards of work performance and professional conduct. The purpose of this chapter is to set forth the City's expectations for Fire Fighters and to address unacceptable behavior, conduct, and related employment problems in the workplace, or outside the workplace when conduct impacts a Fire Fighter's ability to do his/her job and/or influences the City's overall effectiveness.

The ultimate goal of this chapter and its procedures is to help Fire Fighters become fully contributing members of the organization. Conversely, this policy is also designed to enable the Fire Department to fairly and effectively discipline and/or indefinitely suspend Fire Fighters whose conduct and/or performance does not improve or where the misconduct and/or unacceptable performance is of such a serious nature that a first offense warrants indefinite suspension. Indefinite suspension is equivalent to dismissal from the department.

For questions about this chapter, please call the Employee and Labor Relations Manager or the Employee and Labor Relations helpline at 817-392-7997.

12.2 Maintaining a Respectful Workplace

Mutual respect is one of the core values of the City and is necessary to accomplish the City's mission of "***Working together to build a strong community.***" The City is committed to promoting an environment where employees respect each other regardless of their roles and levels of responsibilities and expects all employees to be respectful and professional towards their supervisors, co-workers, citizens, and anyone doing business with the City. It is also the policy of the City of Fort Worth that employees will be treated with respect by supervisors, other employees, and people who are doing business with the City.

Examples of respectful and professional behavior include but are not limited to the following:

- Treating others with civility and courtesy;
- Engaging in active listening;
- Speaking calmly and showing a commitment towards resolving issues and problems;
- Respecting and valuing the contributions of others, regardless of their role or status;
- Demonstrating patience, being engaged, and listening to the concerns of others;
- Listening to and following the directives of your supervisors;
- Being attentive to requests from co-workers across the City and helping each other in achieving work objectives;
- Effectively and productively managing disagreements with co-workers to avoid disruptions in the workplace;
- Recognizing and respecting individual differences;

- Abiding by applicable rules and policies and addressing any dissatisfaction with, or violation of, policies and procedures through appropriate channels (e.g. chain of command or Human Resources);
- Demonstrating commitment to a culture where employees cooperate and collaborate to work together toward effective outcomes; and
- If in a leadership role, modeling respectful and professional behavior for your subordinates as an effective coaching mechanism.

Fire Fighters are expected to refrain from disrespectful and unprofessional behavior, including but not limited to the following:

- Using threatening or abusive language, profanity, or language that is intended to be or perceived by others to be demeaning, berating, rude, or offensive;
- Shouting, yelling, or raising your voice in way that intimidates others;
- Intimidating, demeaning, or bullying others;
- Making threats of violence, retribution, or harm;
- Using racial or ethnic slurs;
- Making inappropriate jokes or using insults regarding someone's personal characteristics including sexual orientation, race, culture, age, appearance, disability, or illness;
- Teasing, name calling, ridiculing, or making someone the subject of pranks or practical jokes;
- Using sarcasm or cynicism as a personal attack on others;
- Spreading unsubstantiated rumors or gossip;
- Making actual or threatening inappropriate physical contact;
- Throwing tools, office equipment, or other items as an expression of anger, criticism, or threat, or in an otherwise disrespectful or abusive manner; and
- Engaging in any pattern of disruptive behavior or interaction that could interfere with the workplace or adversely impact the quality of services provided by the City.

12.2.1 Fire Fighter Responsibilities

City of Fort Worth Fire Fighters are responsible for engaging in and promoting workplace behavior that creates and maintains a respectful environment that promotes effective teamwork. It is the responsibility of every Fire Fighter to report behaviors that are detrimental to this environment. Fire Fighters can report such behaviors to their supervisors, the Office of Professional Standards, or the Employee and Labor Relations Division of the Human Resources Department.

12.2.2 Management and Supervisory Responsibilities

Managers and supervisors have a greater responsibility and are held to a higher standard, not only to model respectful, professional conduct at the workplace, but also to maintain an environment of respect and effective teamwork in their work areas. Managers and supervisors should monitor the workplace for inappropriate behavior and must immediately take action to stop it, including reporting incidents of harassing behavior to their supervisors, the Office of Professional Standards, or the Employee and Labor Relations Division of the Human Resources Department.

Managers have a responsibility to control the release of information only to individuals who have a need to know.

When a rule or regulation allows for the Fire Chief's or his or her designee's discretion, the Fire Chief has the discretion to establish a policy that will be applied uniformly, in a nondiscriminatory manner, in all similar situations.

12.2.3 Discrimination and Retaliation

The City of Fort Worth prohibits employment discrimination on the basis of race, color, national origin, sex, pregnancy, transgender status, gender identity, gender expression, religious affiliation, political affiliation or belief, age (over 40), sexual orientation, genetic information, veteran status, and disability status (including contagious diseases such as tuberculosis in the non-contagious state and HIV). In addition, the City prohibits retaliation against employees who exercise their statutory rights under state and federal employment laws. The City also prohibits retaliation against employees who exercise their rights under City policies; however, this policy does not confer additional rights to the employees under any law. It is against the policy of the City of Fort Worth for any supervisory personnel (or personnel with the ability to do so) to retaliate (that is, impose an adverse employment action) against any individual who reports discrimination or harassment, opposes a discriminatory practice, or participates in an investigation of such reports.

12.2.3.1 Filing a Complaint or Report of Discrimination or Retaliation

Employees wishing to file a complaint of discrimination or retaliation or supervisors who have had potential discrimination or retaliation reported to them should contact the Office of Professional Standards or the Employee and Labor Relations helpline at 817-392-7997.

12.2.4 Harassment-Free Workplace

City employees have the right to work in an environment free of unlawful harassment (*please see the Glossary for a definition of harassment*). Unlawful harassment is a form of employment discrimination that may violate Title VII of the Civil Rights Act of 1964, the Texas Labor Code, the Age Discrimination in Employment Act of 1967, (ADEA), or the Americans with Disabilities Act of 1990, (ADA).

No employee should be subjected to unlawful harassment and employees must not encourage or condone such overtures or conduct, whether verbal or physical. Any employee who engages in, perpetuates, or condones unlawful behavior is subject to disciplinary action. Likewise, any individuals who are conducting business with the City (including current or prospective contractors, vendors, citizens, interns, volunteers, or agents thereof) are expected to treat employees with respect and to conform to the same workplace standards of conduct as City employees. Immediate and appropriate corrective actions shall be taken in response to unlawful harassment of City employees or by employees toward nonemployees.

Petty slights, annoyances, and isolated incidents (unless extremely serious) may not rise to the level of violations of this policy but may, nonetheless, be unacceptable for the workplace and can be addressed by the *Inappropriate Conduct* policy below. To be unlawful and a violation of this policy, the conduct must be based on an employee's protected class (see *Glossary for a definition of protected class*) status and create a work environment that would be intimidating, hostile, or offensive to reasonable people.

12.2.4.1 Sexual Harassment

Unwelcome sexual advances, requests for sexual favors, and other verbal (slurs, jokes) or physical conduct of a sexual nature constitute sexual harassment if:

- Submission to such conduct is made either explicitly or implicitly a term or condition of an individual's employment;
- Submission to or rejection of such conduct by an employee is used as the basis for employment decisions affecting such employee; or
- Such conduct has the purpose or effect of unreasonably interfering with an employee's work performance or creating an intimidating, hostile, or offensive working environment.

Harassing conduct of a sexual nature does not have to be motivated by sexual desire, interest or attraction. Rather, the actions above may constitute sexual harassment even if there is no sexual desire, interest, or attraction involved.

Examples of conduct that may constitute sexual harassment, particularly if repeated, pervasive, or severe in nature, include: bringing sexually explicit pictures, photographs, cartoons, or objects to the workplace or sending through electronic communications; repeated requests for dates; sexual bantering, jokes, or teasing; sexual innuendoes, gestures, or leers; touching someone in a way that makes them uncomfortable; stalking or assault.

A supervisor violates this section if the supervisor grants opportunities or benefits because of a subordinate employee's submission to the supervisor's sexual advances or requests for sexual favors, or if the supervisor denies opportunities or benefits because of a subordinate employee's rejection or refusal to submit to the supervisor's sexual advances or requests for sexual favors.

Fire Fighters who are supervisors and who pressure subordinate employees for sexual favors in return for employment opportunities or benefits may be subject to disciplinary action, up to and including indefinite suspension after an appropriate pre-decision process if the allegations of harassment are confirmed.

12.2.4.2 Harassment Based on Protected Status

Slurs, jokes, and other verbal or physical conduct relating to an employee's protected status constitute harassment when this conduct:

- Has the purpose or effect of creating an intimidating, offensive, or hostile working environment (*Please see Glossary for a definition of hostile working environment*);
- Has the purpose or effect of interfering with an employee's work performance; or
- Adversely affects an employee's employment opportunities.

An employee's intentions and motives are not the decisive factors in considering alleged harassing behavior. The effect of one employee's behavior upon another employee is the decisive factor. If an employee's behavior is considered to be offensive by another employee or if it has an intimidating effect upon another employee, harassment based on a protected status may be present. The unwelcomeness, frequency, and severity of the behavior determine whether harassment has occurred.

For questions about whether harassing behavior meets the definition(s) above, please contact the Office of Professional Standards or the Employee and Labor Relations helpline at 817-392-7997.

12.2.4.3 Filing a Complaint or Report of Harassment

Employees victimized by harassment based on protected status, any employee who witnesses behavior that appears to rise to the level of harassment, or supervisors who have received report(s) of potential harassment should immediately contact the Office of Professional Standards or the Employee and Labor Relations helpline at 817-392-7997.

12.2.5 Inappropriate Conduct

The City has determined that the most effective way to limit harassing conduct is to address misconduct even if it does not rise to the level of harassment actionable under the law. This policy prohibits behaviors that may not reach the level of harassment as defined in the City's Harassment-Free Workplace policy, but that nonetheless should not occur and are inappropriate in the workplace.

Behavior that may not be based on a protected status and/or is not severe or pervasive, for example, may fall under this policy instead of the City's Harassment-Free Workplace policy.

Examples of such behavior include but are not limited to: bringing sexually explicit pictures, photographs, cartoons, or objects to the workplace or sending them through electronic communications; obscene, profane, or abusive language; terms of endearment such as "doll," "honey," "sweetheart," or "babe"; using nicknames that are demeaning; teasing employees about their height or other physical attributes; mocking an employee's accent; the sending of sexual, racial, ethnic, religious jokes, cartoons in e-mail, text, faxes or other forms of communication; making racial, ethnic, or religious slurs or demeaning comments; horseplay, pranks, jokes (verbal, electronic, printed, or in any other medium) that demean people or have sexual, racial, ethnic, religious, or political themes.

Inappropriate conduct does not have to be based on a protected status to be prohibited. Inappropriate conduct is conduct that may not involve physical conduct or may not be severe or pervasive but is conduct that is nonetheless inappropriate and/or disruptive and will not be tolerated. Inappropriate conduct also includes behavior that negatively impacts or impedes someone else's ability to perform their job duties. An employee's intentions and motives are not the decisive factors in considering alleged inappropriate conduct; the effect of the behavior on others is the main determining factor.

12.2.5.1 Bullying

The purpose of this policy is to communicate to all employees, including supervisors and managers, that bullying behavior is not tolerated at work. Employees who violate this policy may be disciplined up to and including indefinite suspension.

For this policy, bullying is defined as repeated or severely inappropriate behavior that intimidates or demeans others, either directly or indirectly, whether verbal, physical, or otherwise, at the workplace and/or in the course of employment. Reports of alleged bullying behavior should be reported to the Office of Professional Standards or the Employee and Labor Relations Division at 817-392-7997. Isolated occurrences of behaviors listed below and/or incidents of a less severe nature may be referred, at the discretion of the Employee and Labor Relations Division, to the Department or City management (that is, those who supervise the employee(s) alleged to have engaged in bullying behavior) to be addressed.

Bullying may be intentional or unintentional. However, it must be noted that when an allegation of bullying is made, the intention of the alleged bully is not decisive; it is the effect of the behavior on the individual that is important. The City considers the following types of behavior to be examples of bullying:

- **Verbal bullying:** Slandering, ridiculing, or maligning a person or his or her family; persistent name calling that is hurtful, insulting, or humiliating; using a person as the butt of jokes; abusive and offensive remarks.
- **Physical bullying:** Pushing, shoving, kicking, poking, tripping, assault or threat of

physical assault, damage to a person's work area or property.

- **Gesture bullying:** Nonverbal threatening gestures; glances that can convey threatening messages.
- **Exclusion:** Socially or physically excluding or disregarding a person in work-related activities.

In addition, the following examples may constitute or contribute to evidence of bullying in the workplace, particularly if repeated or severe in nature:

- Persistent singling out of one person
- Shouting or raising one's voice at an individual in public or in private
- Using verbal or obscene gestures
- Not allowing the person to speak or express himself or herself (i.e., ignoring or interrupting)
- Personal insults and use of offensive nicknames
- Public humiliation in any form
- Constant criticism on matters unrelated or minimally related to the person's job performance or description
- Ignoring or interrupting an individual at meetings
- Public reprimands
- Repeatedly accusing someone of errors that cannot be documented
- Deliberately interfering with mail and other communications
- Spreading rumors and gossip regarding individuals
- Encouraging others to disregard a supervisor's instructions
- Manipulating the ability of someone to do his or her work (e.g., giving an unreasonable workload, removing work duties, withholding information, assigning meaningless tasks, setting deadlines that cannot be met, giving deliberately ambiguous instructions)
- Assigning menial tasks not in keeping with the normal responsibilities of the job
- Taking credit for another person's ideas
- Refusing reasonable requests for leave in the absence of work-related reasons not to grant leave

- Deliberately excluding an individual or isolating him or her from work-related activities, such as meetings
- Unwanted physical contact, physical abuse or threats of abuse to an individual or an individual's property (defacing or marking up property)

12.2.6 Violence in the Workplace

The City of Fort Worth is committed to providing a safe and secure work environment. Violent behavior or acts of violence between employees, or such action between an employee and any other person in connection with their City employment, is prohibited.

Any person who engages in violence or threats, verbal or physical, should be removed from the premises as quickly as safety permits. The Fire Chief has the option of placing restrictions on an employee's or citizen's physical access to City premises pending the outcome of an investigation. The Fire Chief must consult with the Employee and Labor Relations Division, the City Marshal, and the Legal Department before exercising that option.

Employees and supervisors must report threats and violent behavior to department management and contact the Employee and Labor Relations Division for guidance. Employees should take personal safety precautions, which may include evacuating employees, and immediately contact the Police Department (call 911) or the City Marshal's Office (817-392-6688) for severe threats or acts of violence.

Workplace violence is behavior sufficiently severe, offensive, or intimidating to cause an individual to reasonably fear for his or her personal safety or property. Such behavior creates an unsafe, threatening, abusive, or intimidating work environment. Any personally offensive, threatening, or intimidating behavior is not tolerated.

Violent behavior on the job includes, but is not limited to:

- Actual physical or aggressive contact directed toward another person (e.g. hitting, punching, pushing, and kicking)
- Intentional destruction or threat of destruction of City or another person's property
- Threatening or expressing intent to cause physical harm
- Improper or excessive surveillance/monitoring of another person
- Stalking (please see *Glossary*)

- Veiled threats (e.g. “I know where you live,” “Let’s take it outside,” “You better never run into me in a dark alley”) of physical harm or similar intimidation
- A display of unusual agitation or excitement, possibly accompanied by incoherent and/or irrational behavior that may compromise the safety of others and/or make others feel unsafe.

Supervisors are expected to offer support to victims of workplace or domestic violence. This support includes encouragement of the victim to use the services of the Employee Assistance Program. Supervisors have discretion to grant a victim leave for medical, court, or counseling appointments related to trauma or victimization.

Supervisors may also consider special accommodations or adjustments to employee work schedules, locations, or working conditions to enhance employee safety.

Employees must report potential violations of the Violence in the Workplace policy to the Office of Professional Standards, the Employee and Labor Relations Division, or to their supervisors, who should in turn notify the Office of Professional Standards or the Employee and Labor Relations Division. During an investigation, the Employee and Labor Relations Division will maintain confidentiality of the complainant, witnesses, and the accused to the greatest extent possible to maintain the integrity of the investigation and to comfort participants as much as possible in their cooperation with the investigation process. However, the Employee and Labor Relations Division will notify the investigation participants that, because the City is a public entity, there is a possibility that information gathered in the investigation may be released to the public, with or without a Public Information Request. In appropriate circumstances, the Law Department may ask the Texas Attorney General’s office to determine whether state law provides that information related to such an investigation can be withheld from public disclosure. Following the completion of the investigation, the City Manager’s Office may choose to share information from any employment investigations with the media and/or other parties, as appropriate. Information gathered during investigations of complaints against sworn civil service employees will be subject to Texas Local Government Code Section 143.089 and other protections that may exist under state law and any then-applicable labor agreement.

A violation of this policy is a serious violation of the Employee Conduct provision and may be grounds for disciplinary action up to and including indefinite suspension. Depending on the relevant facts, an act of off-duty violent conduct may also be grounds for disciplinary action up to and including indefinite suspension.

12.3 Ethical Standards of Conduct

It is critical for all employees that public trust is upheld. The proper operation of democratic government requires that public officials and all employees, including Fire Fighters, be independent, impartial, and responsible only to the people of the City. Fire Fighters have an obligation to conduct themselves in accordance with the City’s ethics rules. Fire Fighters who violate these regulations may be subject to disciplinary action up to and including indefinite suspension. A supervisor should contact the Office of Professional Standards or the Employee and Labor Relations Division for assistance if a situation arises that might implicate the ethical

standards of conduct.

Fire Fighters are required to comply with the City of Fort Worth Code of Ethics, Section 2-236 of the City Code. A Fire Fighter who violates the City's Code of Ethics could be the subject of a complaint to the Ethics Review Commission, which has the authority to recommend that the Fire Chief order an administrative investigation and, if the Fire Fighter is found to have violated a Civil Service rule, the Fire Chief can issue disciplinary action up to and including indefinite suspension. See the City's relevant webpage for more information on the Ethics Review Commission:

- <http://fortworthtexas.gov/citysecretary/info/default.aspx?id=4942>

In regards to expectations for ethical standards of conduct, consistent with the City's Ethics Code, it is required that:

- Government decisions and policy should be made in the proper channels of the government structure;
- No employee or employee's spouse or domestic partner should have any substantial interest, as defined in the City's Ethics Code, financial or otherwise, direct or indirect, or engage in any business transaction or professional activity, or incur any obligation of any nature that is in conflict with the proper discharge of his/her duties in the public interest;
- Employees are not to use their positions for personal gain or for the gain of their spouses or domestic partners;
- No employee shall accept or solicit, or knowingly allow his or her spouse or domestic partner to accept or solicit, any benefit, including a promise of future employment, gift, favor, service, or thing of sufficient economic value (which might reasonably tend to influence or give the appearance of influence in the discharge of official duties) from any person, group, or business entity;
- No employee shall grant, in the discharge of official duties, any improper favor, service, or thing of value to any person, group, or business entity;
- No employee shall disclose any confidential information that is gained by reason of their position or use such confidential information to advance any personal interest, financial or otherwise;
- No employee shall use his or her position, City facilities, personnel, equipment, or supplies for private gain;
- Employees shall disclose to their supervisors the existence of any interests in any person, business entity, or property involved in any pending City decision-making;
- Employees shall uphold the laws and regulations of the United States, the state of Texas, and the City of Fort Worth and never be a party to their evasion;
- Employees shall never make any private promises or give or accept any special favors or privileges for themselves or their families that could be construed as influencing the performance of governmental duties;
- Employees shall not engage in any business with government, directly or indirectly, that is inconsistent with the conscientious performance of governmental duties;
- Employees who have questions about the ethics rules should consult with their supervisors for a determination regarding the proper course of action. Supervisors should ask their Department Directors or the Employee and Labor Relations Manager

- if they have questions;
- Employees who have accepted gifts or who have been offered gifts must report the gifts to their immediate supervisors within five business days of accepting or being offered the gift.

12.3.1 Improper Endorsements

This policy relates only to endorsements that a Fire Fighter makes in his or her capacity as a City employee, as a representative of the City, or while being identified as an employee of the City. This policy applies whether the Fire Fighter makes the endorsement while on work time or not.

Except as described herein, endorsements by Fire Fighters are generally prohibited to avoid a potential conflict of interest as described in the City of Fort Worth's Code of Ethics. Fire Fighters are required to fulfill their responsibilities while avoiding any endorsement activities that impair or appear to impair their judgment in the discharge of their official duties. However, allowable endorsements are as follows:

- Endorsements that are unsolicited by the vendor or anyone acting on its behalf, for example:
 - A Fire Fighter answering an impromptu question from a colleague from another City regarding certain equipment or software the department utilizes and whether the Fire Fighter thinks it performs well, or
 - An employee presenting the favorable results of a pilot program to City decision makers in making a determination on a purchase.
- Endorsements made as part of a reference check or due diligence by an entity seeking to conduct business with a vendor where the vendor has listed the City as a current or former client for that purpose. Fire Fighters contacted under these circumstances should request approval from the Fire Chief or designee before providing information to the requesting entity.
- Endorsements approved by the City Manager. Any endorsement approved in writing by the City Manager after the terms and circumstances of the endorsement have been presented to him or her for review is allowable.

12.3.2 Prohibition of Seeking or Accepting Gifts

The City expects Fire Fighters to avoid improper influence or the appearance of improper influence in dealings with the public. Fire Fighters cannot solicit, directly or indirectly, any gift from an existing or potential City supplier or customer. This prohibition includes gifts to the Fire Fighter's spouse, domestic partner, son, daughter, or any other person in whose welfare the Fire Fighter has a direct and substantial interest.

Fire Fighters should avoid the appearance of impropriety. Fire Fighters cannot accept gifts from a City supplier or customer if a reasonable person would believe that the offered item would provide an appearance of improper influence. Fire Fighters should never accept cash from a City supplier or customer, regardless of the amount. Fire Fighters should never accept an item that is valued at \$50.00 or more because the Fire Fighter could be subjected to criminal penalties for doing so. If a Fire Fighter is offered or accepts a gift that is valued at less than \$50.00, the gift might still be perceived as giving the appearance of improper influence and thus Fire Fighters are discouraged from accepting most gifts. Ordinarily, accepting a small advertising token, such as an ink pen, hat, coffee mug, or mouse pad, will not violate the ethics rules. The Fire Fighter is required to notify the Fire Fighter's immediate supervisor for approval within five business days after a gift is offered or accepted. Even if a supervisor approves the acceptance of a gift, it is possible that the Fire Fighter might be the subject of a complaint filed with the Ethics Review Commission, which could recommend that the City Manager issue disciplinary action.

If the gift is determined to be inappropriate, the Fire Fighter should refuse the gift in a polite and respectful manner. If a gift has already been delivered, it should be returned. If the sender does not want to accept the return, the Fire Fighter should report the gift to the Fire Chief who will document the receipt of the gift and forward the gift to a local charity, along with a letter documenting the situation. This prohibition includes gifts to a spouse, domestic partner, or any other person within the first degree of relation to the Fire Fighter.

See the *Glossary* for the definitions of "gift" and "person within the first degree of relation."

13.3.2.1 Miscellaneous Rules about Gifts

Fire Fighters may usually attend public functions sponsored by suppliers as approved by their departmental supervisor. Examples of public functions include: groundbreaking ceremonies, receptions, dedications, completion of project parties, and exhibitor receptions at conferences. Supervisors should review attendance at public functions for compliance with the City's Ethics Code and this chapter of the Fire Department's Personnel Rules and Regulations.

Fire Fighters may participate in education activities sponsored by current or potential City suppliers when participation is part of a contractual agreement with the City of Fort Worth or is open to other customers or potential customers of the suppliers, provided that, when travel is required, transportation expenses are paid by the City, except those activities that are associated with the purchase, study, and review of apparatus or equipment and/or supplies for the City and as the activities may be provided in an approved contract.

Fire Fighters can participate in discount purchasing when discounts are part of a marketing program sponsored by a current or potential supplier or local merchant, provided that the discount is made available to an entire group of Fire Fighters.

Under state law, it is a criminal offense for a Fire Fighter in the Fire Department performing regulatory functions or conducting inspections or investigations to solicit or accept any gift from a person that the employee knows to be subject to regulation, inspection, or investigation by the employee or his or her department.

Under state law, it is a criminal offense for any Fire Fighter who has authority to recommend or approve contracts, purchases, payments, claims, or other pecuniary transactions of the City to solicit or accept any gift from a person that the Fire Fighter knows is interested in or likely to become interested in any contract, purchase, payment, claim, or transaction involving the exercise of his or her discretion.

Fire Fighters must contact their supervisor or the Fire Chief if they have questions about gifts or to request further interpretation of these guidelines. (Requests from Department Directors should be sent to the Human Resources Director.)

Fire Fighters who violate this policy may be subject to disciplinary action up to and including indefinite suspension.

12.3.3 Reporting Illegal or Unethical Conduct

If a Fire Fighter believes that inappropriate, unlawful, or unethical conduct has occurred, they must report the suspected offending conduct to the Office of Professional Standards, their supervisor, or the Fire Chief. If Fire Fighters do not feel comfortable reporting the matter to their supervision or the Fire Chief, they can also report the issue to the Employee and Labor Relations Division of the Human Resources Department or utilize the City's third-party reporting tool, which can be accessed via the City's intranet page, or by calling the 24-hour hotline at 855-886-4247. Fire Fighters may choose to remain anonymous when providing information.

12.3.4 Unlawful Resignation or Retirement

Pursuant section 143.088 of the Texas Local Government Code, Fire Fighters must not accept money or anything of value in return for retiring or resigning from their civil service position. If a Fire Fighter accepts money or anything of value in return for retiring or resigning from his or her civil service position, he or she commits a Class A misdemeanor and may be criminally prosecuted.

12.4 Absenteeism

Absence management is a key component of increasing overall workplace productivity and Fire Fighter morale. The purpose of this section is to provide guidance in applying administrative procedures and establishing lines of communication for dealing with Fire Fighter absences. Supervisors should educate Fire Fighters so that they understand the City, departmental, and divisional policies and procedures pertaining to time and attendance. This should be done with all new Fire Fighters, and it is advisable to review with all Fire Fighters on a regular basis. If a supervisor feels that a Fire Fighter may be developing an absenteeism problem, the supervisor should talk to the Fire Fighter when a problem is first identified and ensure that the Fire Fighter understands the importance of being a reliable Fire Fighter and the consequences if excessive absenteeism continues. Attendance records should be maintained on all Fire Fighters in a manner that is effective for each supervisor.

If absenteeism becomes a problem and impacts work productivity or Fire Fighter morale, the supervisor should take stronger action, including closely monitoring the Fire Fighter and maintaining documentation on the absences, reasons given for the absences, and previous discussions with the Fire Fighter regarding the absences. Once the problem has been documented, the supervisor should take action that is appropriate to the situation, including imposing discipline, if necessary. Absences due to FMLA-qualified events cannot be the subject of discipline.

Absenteeism may impact a Fire Fighter's pay or be the cause of disciplinary action up to and including indefinite suspension. Disciplinary action may result for the following actions:

- Taking excessive or unscheduled absences (see *Glossary* for definition of unscheduled absence), or tardiness in reporting for work or returning from lunch or breaks;
- Engaging in patterns of similar absences/tardiness situations, such as calling off work without prior authorization, leaving work early without prior authorization, or coming in later on Mondays, Fridays, around holidays, etc.;
- Failing to timely notify supervisor of tardiness or absence;
- Being absent without supervisory approval;
- Failing to follow departmental call-off policies or practices; or
- Being absent for three consecutive days and not notifying the supervisor, MRC, or approved departmental authority.

Fire Fighters who cannot report for duty must notify their supervisor at the prescribed time for their respective division in accordance with the department's established standard operating procedures.

Time off with pay is a benefit for Fire Fighters that must be used in compliance with City policies and rules. A supervisor may deny a Fire Fighter's request for time off if the absence is likely to have an adverse impact on work or other Fire Fighters (except for instances where absences may be covered by the Family and Medical Leave Act). A supervisor may deny a Fire Fighter's access to accrued leave and rescind previously approved time to be off work if the reasons for the leave are found not to be valid or if there is a pattern of leave abuse.

12.5 Conduct Warranting Disciplinary Action

Pursuant to Chapter 143 of the Texas Local Government Code and the applicable labor agreement, the Fire Chief shall have the power to discipline or indefinitely suspend a Fire Fighter who the Fire Chief determines has engaged in conduct that is prohibited in Rule 13.004 of the Local Rules of the Fire Fighters' and Police Officers' Civil Service Commission of the City of Fort Worth, Texas. Local Rule 13.004 provides that a Fire Fighter may be temporarily or indefinitely suspended from the civil service for any actions or omission involving one or more of the following grounds:

1. The conviction of the employee of a felony or other crime involving moral turpitude;
2. Violation of a provision of the Municipal Charter of the City of Fort Worth, Texas;
3. Acts of incompetency;
4. Neglect of duty;
5. Discourtesy by an employee to the public or to a fellow employee while in the line of duty;
6. Acts showing a lack of good moral character;
7. Ingesting intoxicants while on duty or intoxication while off duty;
8. Conduct prejudicial to good order;
9. Refusal or neglect to pay just debts;
10. Absence without authorized leave;
11. Shirking duty, or cowardice at fires; or
12. Violation of an applicable Fire Department rule, directive, general or special order.

Fire Fighters are also subject to disciplinary action for violating these FDPRRs because they constitute an "applicable Fire Department rule, directive general or special order" as set out in Local Rule 13.004(12). The list of FDPRR violations below is not all-inclusive; it is a guide that outlines some examples of situations in which discipline may be imposed. The Fire Chief may determine that discipline is justified for behavior that is not on the list of FDPRR violations below as long as it is misconduct that is covered by Local Rule 13.004 as outlined above. FDPRR violations include the following conduct and should be assessed on a case-by-case basis:

- Failure to perform assigned work
- Failure to perform work in a satisfactory manner, including failure to meet deadlines and/or requirements regarding quantity and quality of work
- Failure to observe policies, procedures, rules, regulations, or standards
- Failing an alcohol or drug test, including the refusal to consent to a test, or refusing to provide a breath or urine sample, or failing to provide a breath or urine sample without sufficient medical justification when directed to do so pursuant to City policy
- Possession and/or illegal use of drugs (including prescription drugs) and/or alcohol on the job. (See [*Drug and Alcohol-Free Workplace*](#) below for further information.)
- Failure of any employee to report an on-the-job injury, accident or violation of safety rules timely (i.e., within 24 hours for on-the-job injuries and immediately for any situation where safety risks and liability issues are possible)
- Engaging in behavior that threatens the safety of self, co-workers, or the public
- Possessing a record or pattern of unsafe work behavior as evidenced by multiple

preventable accidents

- Lack of attention, accuracy, caution, or judgment, or carelessness, negligence, or recklessness in performing work that results in waste of time and resources or creates dangerous or inappropriate situations
- Excessive time spent on non-work activities during work time, including but not limited to personal conversations, excessive coffee or smoke breaks, as well as personal use of electronic devices such as use of the Internet, telephone, cell phones, or other mobile devices or PDAs
- Viewing, displaying, or disseminating provocative, sexually explicit, or obscene materials at the workplace and/or on City equipment
- Excessive or unscheduled absence or tardiness (refer to the *Glossary* for further information on tardiness) in reporting for work or returning from lunch or breaks
- Absence without supervisory approval
- Working for personal gain while on medical leave of absence
- Failure to notify supervisor of tardiness in accordance with departmental attendance policies or practices
- Misrepresentation or failure to adequately document the need to be off work
- Failure to come to work for three consecutive days without calling a supervisor or a Medical Records Custodian (MRC) or giving any type of notification to a departmental authority (i.e. job abandonment)
- Failure to maintain or operate equipment, tools, or vehicles in an appropriate and safe manner
- Abuse, misuse, misappropriation, or unauthorized removal of City money, financial resources, time, and/or property
- Falsifying, misrepresenting, or omitting information for the benefit of one's self or others
- Cheating, forging, or entering false reports on official City documents, including but not limited to time and attendance records, employment applications, and supporting documents
- Engaging in behavior that is inappropriate or disruptive in the workplace (such as yelling, use of profanity, name-calling, gossiping, etc.)
- Sabotage
- Dishonesty
- Failure to cooperate in an internal administrative process, whether as a witness, person with relevant knowledge, or subject of the investigation (e.g. departmental fact-finding, Office of Professional Standards investigation, Human Resources investigation, Accident Review Board, etc.)
- Failure of a supervisor to timely refer a complaint of discrimination, harassment, or retaliation to the Employee and Labor Relations Division or the Office of Professional Standards
- Sleeping on the job (before issuing discipline, contact MRC to assess if medically related)
- Discourteous treatment of others
- Insubordination
- Possession of unauthorized firearms, weapons, illegal drugs, alcohol, or any other inappropriate item in the workplace (i.e. jobsite, vehicle, or any location while engaged in City business)
- Reporting to work or working under the influence of drugs or alcohol or consuming these substances during work hours

- As a City employee, giving or accepting gifts, money, or favors in exchange for some benefit to one's self or others
- Failure to maintain confidentiality or sharing information with persons who do not have a need-to-know
- Violation of written City, departmental, divisional, Administrative Regulations, City Charter work rules, procedures, or policies
- Unauthorized removal or use of property
- Disrespectful or unprofessional conduct in the workplace (e.g. yelling, using profanity, using demeaning or abusive language, using racial slurs, etc.)
- Misuse or misrepresentation of one's position or authority
- Failure to return to work upon conclusion of an authorized leave of absence or disciplinary suspension, or failure to return to work after having been released to work by a doctor
- Failure to maintain professional credentials and/or licenses required for the position
- Failure to meet background requirements for the position
- Off-the-Job Conduct — Conduct that would likely impair the trust of the public, including public intoxication, illegal drug activity or other criminal activity, domestic violence, driving while intoxicated, and slandering or defaming public officials, appointees, or other City employees
- Violation of City's Harassment rule
- Violation of City's Violence in the Workplace rule
- Violation of City's Inappropriate Conduct rule
- Violation of Social Media rule
- Violation of the Ethical Standards of Conduct rules, the City's Ethics Code, and the ethics provisions of the City's Charter
- Violation of the Fire Department's Rules of Conduct Regulations, including Standard Operating Procedures ("SOPs"), Informational Bulletins, and written directives from the Fire Chief.

12.6 Disciplinary Action Procedures

Disciplinary action shall be taken pursuant to Chapter 143 of the Texas Local Government Code, the Department S.O.P.s, or as prescribed in any then-applicable labor agreement.

12.7 Employee Assistance Program

The City's Employee Assistance Program (EAP) helps Fire Fighters with a broad range of problems that can adversely affect their personal lives as well as their occupation. EAP can provide access to resources for counseling for Fire Fighters with alcohol misuse and drug abuse problems. EAP also helps Fire Fighters with problems, difficulties, and/or stressors on or away

from the job that can adversely impact a Fire Fighter's ability to perform assigned duties or behave properly on the job.

Personal counseling to deal with personal crises, such as financial problems, marital problems, parenting issues, and any other life stressors can be effectively addressed through the Employee Assistance Program. (See the Human Resources Website for Benefits—Wellness Program or contact the Human Resources Benefits Division for more information about EAP.)

Supervisors may recommend and encourage Fire Fighters to use the EAP. They can make management referrals when deemed appropriate (for example, inexplicable deterioration in job performance, dramatic changes in conduct, or behavior that causes safety concerns). Mandatory referrals to EAP for internal or external counseling are considered regular work hours for pay and scheduling purposes and may be included as part of a requirement related to formal disciplinary action or may be a stand-alone requirement. Failure of an employee to comply with a mandatory referral to EAP may result in disciplinary action up to and including indefinite suspension. Before making a management referral, the supervisor should contact the Wellness/EAP Coordinator if they are in need of training for management referrals.

12.8 Drug and Alcohol-Free Workplace

Fire Fighters are prohibited from possessing¹ or consuming alcohol or illegal drugs in the workplace, or from being under the influence of illegal drugs or alcohol while on duty. Fire Fighters who do so will generally be severely disciplined up to and including indefinite suspension.

12.8.1 Drug and Alcohol Prohibitions

The following are prohibited:

- Alcohol consumption in the workplace (e.g. office, any City property, vehicle, worksite, etc.).
- Being under the influence of alcohol in the workplace. A violation occurs (1) when the Fire Fighter has a breath alcohol concentration (BAC) confirmation test level of 0.04 or greater, or (2) when a Fire Fighter consumes alcohol while on duty.
- The use, possession, distribution, dispensation, transportation, sale, or manufacture of illegal drugs that violates state or federal controlled-substances law.
- The illegal use of prescription medicines, including consumption of a medication prescribed to someone other than the user, or dispensing by a Fire Fighter of their own prescription to another person.
- While on duty, being under the influence of prescribed or over-the-counter medication that impairs a Fire Fighter's job performance.

¹ “Possession” under this policy does not include “lawful possession” as defined in Tex. Health & Safety Code § 481.002.

12.8.2 Circumstances when Drug and Alcohol Testing will be Administered and the Accompanying Process

12.8.2.1 The City has an interest in ensuring public safety, conducting drug interdiction, maintaining workplace safety, and in the effective administration of justice through its Fire Fighters. Accordingly, Fire Fighters may be subject to drug testing in the following situations:

(a) EAP

An EAP return to work or EAP follow-up test may be conducted only when a previous positive test has occurred or after completion of treatment.

(b) Post-accident

Fire Fighters who are on duty and, while driving, become involved in an accident, or Fire Fighters who are on or off duty and, while operating a City vehicle become involved in an accident, will be subject to a drug and/or alcohol test in the following circumstances, regardless of whether the vehicle, at the time of the accident, was being operated in Emergency Mode (emergency lights and/or sirens in operation during an emergency response) or in Non-emergency Mode:

- Accident involving a fatality;
- Accident in which a person is transported for medical attention and the City driver receives a citation;
- Accident where a traffic citation is issued to the City driver or operator and a vehicle is towed; or
- Upon request by the Battalion Chief or Shift Commander.

When the accident meets the testing criteria, the Fire Fighter must be tested for illegal drugs within 32 hours following the accident. If circumstances prevent the drug test from being administered, the supervisor must prepare and maintain a report stating why the test was not conducted. A copy of the report must be sent to the Risk Management Division designee.

(c) Pre-employment

Fire applicants will undergo drug testing as part of the pre-employment procedures. The Risk Management Division of the Human Resources Department will maintain a controlling list of all City positions that will require pre-employment drug testing. An applicant who refuses or fails an

alcohol or drug test will not be hired.

(d) Promotional

Before being selected to fill a promotional vacancy, all Fire Fighters who are eligible for promotion must successfully pass a drug test, which will be coordinated by the Fire Department.

(e) Random

Because Fire Fighters hold safety sensitive positions, Fire Fighters shall be randomly selected for drug testing and have an equal chance of selection at an annual rate of approximately 20 percent.

(f) Reasonable cause

A Fire Fighter may be subject to drug testing when there is reasonable cause to believe the Fire Fighter has used illegal drugs while on or off duty, as determined by someone in the rank of Captain or above who has been trained in drug-use detection. A Captain or above will be determined to have the necessary training and qualifications to determine whether reasonable cause exists to mandate a drug test of a Fire Fighter if he or she has completed Standardized Field Sobriety Testing or attended the Drug & Alcohol Training (Managers & Supervisors) class administered by the City's Human Resources Department.

The Risk Management Division designee may also initiate a reasonable cause alcohol and/or drug test.

“Reasonable Cause” may be based on, but is not limited to:

- (1) Observable phenomena, such as a direct observation of drug use or possession and/or the physical symptoms of being under the influence of a drug;
- (2) Detection of a substance that is determined to be an illegal drug found within an area under the effective control of a Fire Fighter (e.g. desk, office, vehicle, worksite, etc.);
- (2) A pattern of abnormal conduct or erratic behavior;
- (3) Arrest or conviction for a drug-related offense, or the identification of an employee as the focus of a criminal investigation into illegal drug possession, use, trafficking, or distribution;
- (4) Information either provided by reliable and credible sources or independently corroborated, including through an admission by the Fire Fighter;
- (5) Evidence that the Fire Fighter has tampered with a previous drug test.

(g) Voluntary

Fire Fighters may agree to voluntarily take a drug test at any time with approval from a Captain

or above. If a voluntary drug test is being administered, the process must be coordinated by the Office of Professional Standards. A Fire Fighter's refusal to consent to a voluntary drug test may not, standing alone, be the basis for discipline.

12.8.2.2 Controlled Substances for which a Drug Test may be Administered

The controlled substances for which a test may be conducted include the following:

- Marijuana
- Cocaine
- Opiates
- Phencyclidine (PCP)
- Amphetamines/Methamphetamines
- Any schedule 1 or 2 drug, the use and/or possession of which is illegal under state or federal law

Drug-testing samples may be analyzed using either urinalysis or hair follicle testing. If the desired sample is a hair follicle rather than urinalysis, this type of test must be approved by the Office of Professional Standards.

12.8.2.3 Positive Drug Test Review

When a drug test indicates that a controlled substance is present in sufficient quantity to indicate a positive test (based on a five-panel test), a Medical Review Officer (MRO) will review the test and decide whether it will be confirmed as positive. In the course of this review, the MRO or designee will contact the Fire Fighter to discuss the results and give the Fire Fighter an opportunity to provide information, such as use of a legally-prescribed and documented medication that may legitimately explain the presence of the substance in the sample. An applicant or Fire Fighter who can document legal use of a prescribed drug containing an opiate, narcotic, or amphetamine may have a medically explained test result which does not violate this policy.

After this consultation, the MRO will determine whether the test is confirmed as positive. If the test is medically explained, it is not confirmed as a positive test. If the test is not medically explained, the MRO will confirm the test as positive and will notify the Risk Management Division or designee. The Fire Fighter is required to cooperate in consulting with the MRO. If the Fire Fighter fails to communicate with the MRO, this determination will be made without the Fire Fighter's consultation and the test will be confirmed as positive. The Risk Management Division designee will be directly notified of the test results and notify the Department of the results.

12.8.3 Circumstances when Alcohol Testing will be Administered and the Accompanying Process

The City has an interest in ensuring public safety, conducting drug interdiction, maintaining workplace safety, and in the effective administration of justice through its Fire Fighters. Accordingly, Fire Fighters may be subject to alcohol testing in the following situations:

(a) EAP

An EAP return to work or EAP follow-up test may be conducted only when a previous positive test has occurred or after completion of treatment.

(b) Post-accident

Fire Fighters who are on duty and, while driving, become involved in an accident, or Fire Fighters who are on or off duty and, while operating a City vehicle become involved in an accident, will be subject to a drug and/or alcohol test under the following circumstances:

- Accident involves a fatality;
- Accident is one in which a person is transported for medical attention and the Fire Fighter receives a citation;
- Accident is one in which a traffic citation is issued to the Fire Fighter and a vehicle is towed; or
- Upon Request by the Battalion Chief or Shift Commander.

The City's Risk Management Division designee may also initiate a post-accident alcohol test when deemed appropriate.

When an accident meets the testing criteria, the Fire Fighter must be tested for alcohol within two hours following the accident. If circumstances prevent an alcohol test from being administered within two hours, the supervisor must prepare and maintain a record that explains why a test was not administered. If the Fire Fighter is not tested within eight hours after the accident, the supervisor must prepare and maintain a report that explains why a test was not administered, and the time to conduct an alcohol test for a Fire Fighters ends. A copy of the report must be sent to the Risk Management Division designee.

(c) Random

If a Fire Fighter operates a motor vehicle that is regulated by the U.S. Department of Transportation (DOT), the Fire Fighter is subject to random alcohol testing.

(d) Reasonable Cause

Fire Fighters may be subject to alcohol testing when there is reasonable cause to believe they have consumed or are under the influence of alcohol while on duty, as determined by someone in the

rank of Captain or higher who has been trained in alcohol-use detection.

A Captain or higher will be determined to have the necessary training and qualifications to determine whether reasonable cause exists to mandate an alcohol test of a Fire Fighter if he or she has completed Standardized Field Sobriety Testing or attended the Drug & Alcohol Training (Managers & Supervisors) class administered by the City's Human Resources Department.

12.8.4 Refusal to Submit to a Drug or Alcohol Test Administered under this Policy is a Violation

Except for a Fire Fighter who voluntarily submits to a drug test, a Fire Fighter who is required to undergo a drug or alcohol test under this policy must promptly execute all necessary consent forms and report to a designated testing/collection site. Refusal to do so will be viewed as a violation of this policy, and of the applicable department S.O.P.s, and may result in disciplinary action up to and including indefinite suspension after appropriate pre-decision procedures are followed.

The Fire Fighter is required to go immediately to the location specified for the test. The employee must arrive within two hours at the designated site. The employee must provide documentation that the test was conducted within the prescribed timeframe. All drug and alcohol tests are conducted at City expense with the exception of the retest as discussed in the Appeal and Retesting section below.

Refusal to promptly consent includes:

- A Fire Fighter who refuses to consent to a test (i.e. will not submit a urine sample or will not report to the testing site).
- In the event of a urine test, a Fire Fighter who fails to provide adequate urine for testing without a valid medical explanation. A Fire Fighter may voluntarily agree to a blood test to avoid being indefinitely suspended for refusing to be tested.
- A Fire Fighter who engages in conduct that clearly obstructs the testing procedure by tampering with a urine sample, diluting a urine sample, or substituting urine samples.
- After an accident that mandates post-accident testing, the Fire Fighter fails to make himself or herself available for a test within the timeframe specified.
- After a notice to report for a random test, the Fire Fighter fails to report to the testing site within the timeframe specified. A Fire Fighter should be sent for a random test within 60 minutes following notification to the Fire Fighter. A supervisor who notifies a Fire Fighter of a random test more than an hour before sending the employee or who delays sending the Fire Fighter more than one hour after any type of test notification will be subject to disciplinary action.

12.8.5 Appeal and Retesting

A Fire Fighter may appeal the results of a positive drug test by requesting in writing that the collection site provide a part of the original urine sample (split sample) to another lab for retesting, all at the applicant's or Fire Fighter's expense. Fire Fighters and applicants will NOT be allowed to submit a different urine sample for testing.

Following notification of a positive drug test by the assigned departmental employee or the Risk Management Division designee, the Fire Fighter has three business days to notify the Risk Management Division designee (in writing/email) of the decision to request a retest using the split sample from the original urine specimen. The Fire Fighter is then given up to five business days from the submission of the appeal of the positive drug test results to fully pay, by money order or cashier's check to the laboratory, for the retest expense.

A Fire Fighter is not allowed to return to work until the retest results are received by the Risk Management Division designee. The Fire Fighter may use any accrued leave time with the approval of the Fire Chief or designee. If the retest result is negative (indicating the positive result of the first test was wrong), the City reimburses the Fire Fighter for the retest cost and any accrued leave time the Fire Fighter was required to use while awaiting retest results. The leave time used is changed to "REG" time so the Fire Fighter does not suffer a loss because of the erroneous test result.

There is no appeal/retest process for an alcohol test because alcohol leaves the system quickly.

12.8.6 Notification Requirements for Controlled Substance-Related Convictions

Fire Fighters convicted of controlled substance-related violations under state or federal law or who have pleaded guilty or nolo contendere (no contest) to such charges must notify the Fire Department Office of Professional Standards and the Risk Management Division designee within five days of such conviction or plea. Failure to follow these notification procedures is a violation of this policy and may result in disciplinary action up to and including indefinite suspension after the appropriate pre-decision procedures are followed.

Fire Fighters convicted or pleading guilty or nolo contendere (no contest) to such controlled substance-related violations may be subject to mandatory EAP.

12.8.7 Medicines on the Job

Fire Fighters may use over-the-counter or prescribed medicine on the job as long as the Fire Fighter's performance is not adversely affected by the medicine. If an adverse effect that could result in an unsafe action is observed, or if a Fire Fighter is unable to perform his or her assigned duties, a supervisor will relieve that Fire Fighter from duty and may assist with the Fire Fighter's travel arrangements to leave work.

If an adverse effect on the Fire Fighter's performance is observed and found to be caused by

medication, the Fire Fighter must provide documentation from a physician supporting the need for the medication. Failure to justify the use of such medicines will result in the Fire Fighter being off work while the matter is reviewed. The Fire Fighter may either be subject to temporary reassignment of duties or may be required to take appropriate leave.

A Fire Fighter may be referred to the Risk Management Division to evaluate his or her ability to safely perform safety-sensitive job functions while using a prescribed or medically-necessary medication. In cases where a Fire Fighter is misusing or abusing a prescription drug, mandatory EAP referral may be implemented with the employee to address the issue.

12.8.8 Employee Assistance Program (EAP) for Drug-Related/Alcohol Abuse Issues

The Employee Assistance Program (EAP) assists Fire Fighters dealing with drug-related or alcohol-abuse issues. Fire Fighters can seek assistance by contacting the EAP directly. Fire Fighters will not be disciplined if they voluntarily seek help from EAP by contacting EAP **BEFORE** they are scheduled for a random drug or alcohol test. If a Fire Fighter has voluntarily sought help from EAP in the past or is currently compliant with EAP services, they are still subject to post-accident or reasonable cause drug or alcohol tests in accordance with City policy.

12.8.8.1 Treatment for Alcohol or Prescription Drug Abuse

Any Fire Fighter who fails an alcohol test or who has a positive drug test related to the illegal use of a prescription drug the first time and remains employed with the City must agree in writing to comply with individualized EAP-developed requirements. Fire Fighters will be required to cooperate with unannounced testing as directed by the EAP. If no follow-up testing is specified, the City's testing schedule will be followed. A Fire Fighter must agree to EAP unannounced alcohol and/or drug tests for 12 months. A Fire Fighter will be subject to disciplinary action up to and including indefinite suspension for the failure to agree in writing and/or failure to successfully comply with the EAP requirements. A Fire Fighter who fails an alcohol test or tests positive for drugs because of illegal prescription drug use is to be submitted to the EAP for a mandatory EAP referral.

12.8.8.2 Fire Fighter Drug or Alcohol Treatment

A Fire Fighter who violates this policy and remains employed with the City will be referred to a counseling and/or treatment program. Fire Fighters who refuse to participate or fail to successfully comply with the counseling or treatment program shall be subject to disciplinary action up to and including indefinite suspension.

Failure to successfully comply with a counseling program and/or treatment program may involve any of the following examples, which are not intended to be exclusive:

- Checking oneself out of the program against medical advice;

- Failing to complete the program;
- Non-compliance in fulfilling the program plan as designed by the program staff/counselors;
- Non-compliance in attending the EAP's required aftercare meetings.

After a Fire Fighter returns to work following a positive alcohol test or drug test, any subsequent positive alcohol and/or drug test will result in the Fire Fighter being subject to disciplinary action. If it is determined that the Fire Fighter violated the policy for the second time, and the circumstances do not justify the violation, the Fire Fighter shall be subject to disciplinary action up to and including indefinite suspension regardless of the time between positive tests.

12.8.8.3 Self-Referral Managed by Employee Assistance Program

Fire Fighters may place themselves under formal Employee Assistance Program (EAP) case management as an "EAP self-referral" for chemical dependency (i.e. alcohol or drug-related) problems. Fire Fighters who place themselves under EAP case management and comply with this policy will avoid the random testing requirements of the drug and alcohol policy during their treatment.

Fire Fighters who place themselves in treatment or counseling for chemical dependency problems outside of EAP case management, or without notifying the EAP manager, **WILL NOT** be exempted from the random testing requirements. A Fire Fighter who merely discusses personal problems and/or chemical dependency problems with a supervisor, chaplain, minister, friend, or coworker **WILL NOT** be considered to have self-referred and **WILL NOT** be exempted from random testing requirements. Fire Fighter must seek assistance in compliance with this policy in order to qualify for the benefits of EAP self-referral.

Fire Fighters who participate in EAP self-referral must:

- Comply with the EAP treatment/rehabilitation program conditions and directives; and
- Report any incidents of relapse, interruption, or discontinuation in the rehabilitation program to the Risk Division of Human Resources immediately.

A Fire Fighter may not self-refer *after* a test (random, post-accident, reasonable cause, promotion/transfer, or EAP follow-up) has been scheduled; however, random drug testing is temporarily suspended during the Fire Fighter's participation in the rehabilitation program. Testing resumes when the rehabilitation program is complete or if the Fire Fighter fails to comply with the rehabilitation program. Fire Fighters will not be disciplined for placing themselves into an EAP self-referral program.

However, a Fire Fighter's self-referral does not prevent the Fire Chief or designee from taking appropriate disciplinary action for the Fire Fighter's performance or conduct for other work-rule violations.

12.8.8.4 Non-City-Sponsored Rehabilitation Program Participation

Fire Fighters must notify the City's Wellness Coordinator within five business days after entering rehabilitation programs that are not sponsored or associated with the City. Initial notification may be by phone but must be followed up in writing, which includes e-mail. Notification helps ensure that the Fire Fighter will not be scheduled for a random drug test. Fire Fighters who are in a bona fide rehabilitation program (as determined by the City's Wellness Coordinator and have complied with the protocols of the program for 28 days or less, and who test positive while participating in the program, will not be subject to disciplinary action. However, the the Fire Fighter will now be subject to a mandatory EAP referral.

12.8.9 Confidentiality, Records, and Retention

Information related to alcohol and drug tests is held in confidence consistent with the provisions of applicable law. The Wellness Coordinator and the designated Health Clinic retain confidential records relating to the substance abuse program, including training, testing, rehabilitation, and litigation records. The Wellness Coordinator and the Clinic retain test information separate from the Fire Fighter's personnel file. Records of individuals who pass a test are retained for at least one year. Records of individuals who fail a test are retained for at least five years.

12.8.10 Drug and Alcohol Education

Fire Fighters can request the following training through the Human Resources Department related to City drug and alcohol policies:

- Supervisors/Managers – Risk Management Division designee conduct a three-hour Supervisor Drug/Alcohol Training throughout the year. This is a mandatory training for all supervisors/managers every three years.
- All Fire Fighters – Other classes on alcohol and substance abuse are available upon request.

12.8.11 Questions and Instructions

If you have questions about:	Then call:
Which forms to use for drug testing.	Risk Management Division designee 817-392-7419 Mobile: 682-215-3914
Employee does not bring completed Drug Test Notification Form	Risk Management Division designee 817-392-7419 Mobile: 682-215-3914
Employee is uncooperative or refuses to consent to an alcohol or drug test	Risk Management Division designee 817-392-7419 Mobile: 682-215-3914

After-Hours Collection (Monday-Friday 7 p.m.-7 a.m.; Saturday after 5 p.m.; Sunday all day)	Step One Services 1-866-997-8371* <i>*If no one answers, call 214-283-2552.</i>
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12.9 Notification of Arrest and Conviction

All Fire Fighters must notify the Fire Chief or designee through the chain of command within 72 hours of being arrested or charged with any crime other than a minor traffic violation. Failure to do so shall result in disciplinary action up to and including indefinite suspension. The Fire Chief or designee will then contact the Employee and Labor Relations Division who will, in consultation with the Law Department, determine if any employment action is necessary as a result of the employee's arrest.

A Fire Fighter who, while employed by the City, is convicted of a felony shall be indefinitely suspended and cannot appeal the indefinite suspension.

12.10 Unauthorized Removal and/or Misuse of City Property

The City of Fort Worth and its employees should generally use City property, equipment, and facilities only to serve Fort Worth citizens. The use of any City property, equipment, or facility for personal business or gain is forbidden, and any such action could result in disciplinary action up to and including indefinite suspension. Use of electronic equipment is subject to the Administrative Regulation D-7, titled *Electronic Communications Resources Use Policy*.

12.11 Driving and Vehicle Usage

Use of a City vehicle by an employee is neither a right nor a privilege but a trust conferred to facilitate necessary performance of job duties. City vehicles shall be assigned and used for authorized purposes only. Failure to comply with this policy may result in disciplinary action up to and including indefinite suspension.

The City maintains an Administrative Regulation E-6, titled *Use of City Vehicles*, which is the controlling policy as related to City vehicles and driving in the course and scope of employment. The Administrative Regulation can be found on the City's intranet page at <http://www.cfwnet.org/administrative-regulations/default.htm>.

12.12 Solicitations

Solicitation by or of City employees on the job without the approval of the Fire Chief or designee or the Human Resources Director is prohibited. Prohibitions under this policy do not apply to City-sanctioned solicitations such as the United Way campaign.

Raffles, auctions, or other schemes organized and conducted by an individual for their personal gain or for another individual's gain are not allowed if other employees are solicited to participate or if the activity is conducted during an employee's work time. This does not include raffles, auctions, or other fundraising events conducted by employees to raise funds for charities or other special events that are approved for Citywide participation by the City Manager (such as annual food drive, Cowboy Santa, etc.).

Individual employee-to-employee selling of goods or products must not be done during work time or interfere with the operation of the department. Instances of employees collecting money and/or goods to donate to co-workers in times of need (e.g. death in the family, personal illness, house fire, personal tragedy, etc.) are allowed with supervisory approval.

Requests for City-wide access to employees for the distribution of materials shall be made to the Human Resources Director. Requests will be reviewed according to these criteria:

- No cost should be incurred by the City in distributing the materials;
- Materials promoting for-profit businesses will be considered only if the business has no local competitor or if the business has been selected through the City's normal bidding process to provide services to employees, such as insurance and investment firms; and
- Materials should be directed specifically to City employees, not to the public at large.

Requests for distribution of the following types of materials will not be granted:

- Materials that are primarily commercial advertising by for-profit businesses.
- Materials from any individual, group, or organization who has a current contract with the City (exceptions for updates from current vendors who provide employee benefits).
- Materials from any individual, group, or organization who reasonably anticipates entering into a contract with the City in the 90 days following the request.
- Materials from any individual, group, or organization who has an interest in any matter on a current or future City Council agenda.
- Materials that are part of a business' regular advertising campaign being directed to the public at large.

Requests by vendors who seek access to a City facility to sell goods or services to City employees shall be made to the Fire Chief. Requests will be reviewed giving consideration to whether the goods or services provide a significant benefit to the employees assigned to or using the facility and whether the goods or services are of interest to a significant number of those employees.

Distributors of informational materials, newspapers, or other advertising magazines may leave material on City property for use by employees or visiting citizens. This practice is not encouraged or approved by the City but will be tolerated as long as done in an unobtrusive manner and in a neat and orderly fashion. The City reserves the right to limit the amount and type of material left on City property as well as where this material is located.

The City has a long-standing relationship with local organizations (e.g. the Tarrant Area Food Bank and the United Way of Metropolitan Tarrant County) whose missions are consistent with City Council's Strategic Goals. Requests by additional charitable organizations for access to City employees for solicitation of donations shall be made to the Human Resources Director. Requests by external organizations are evaluated according to the following criteria:

- The organization must be tax exempt under Section 501(c)(3) of the Internal Revenue Code, and the contribution the organization seeks must be deductible under Section 170 of the Internal Revenue Code.
- The organization must be headquartered in the City of Fort Worth and be governed by a voluntary board of directors.
- The organization must distribute at least 85% of its charitable receipts to health, welfare, social, or other human services programs within Tarrant County and the City of Fort Worth.

Requests made by the Fire Department for solicitation of donations to programs initiated and conducted by the Fire Department will be allowed if the program is a planned objective of the Department.

Requests by employees or external organizations for solicitation of charitable contributions within the Fire Department or City facility shall be made to the Fire Chief. Requests should be reviewed giving consideration to whether the requested activities are consistent with the mission of the department and whether such activities would interfere with the day-to-day business activities of the department or facility.

12.13 Recordings and Pictures

Fire Fighters must have approval from their supervisor before recording conversations or meetings or taking pictures on City-provided or personal devices. Recording conversations or meetings or taking photographs when management is unaware that it is occurring is prohibited and may result in disciplinary action up to and including indefinite suspension.

An exception may be granted if a Fire Fighter judges that an immediate need to document a health, safety, or City liability concern is present or to document illegal activity, and it is not feasible to obtain supervisory approval before recording or taking a photograph. In such cases, a supervisor must be notified of the incident and provided the recording and/or picture at the earliest possible opportunity following the making of the recording or taking of the picture. For example, if a vehicle accident occurs between a City and private vehicle, the Fire Fighter may need to take pictures at the scene prior to the vehicles being towed or driven away, and obtaining supervisory approval first might not be feasible within the limited timeframe.

Fire Fighters and/or their authorized representative may record certain proceedings as prescribed by the then-applicable labor agreement.

12.14 Personal Social Media Usage

Fire Fighters are free to express themselves as private citizens on their personal social media sites or web logs (blogs). However, Fire Fighters are prohibited from using language or images that are obscene or sexually explicit, or that ridicule, malign, disparage, or otherwise express or imply bias, violence, or physical harm against any person or group based on race, gender, religion, national origin, or other protected characteristic.

Any person identified as an employee of the Fort Worth Fire Department on a publicly accessible site is also expected to maintain an online image that would encourage the public to have confidence in that employee and the Fire Department. To this end, Fire Fighters shall not post subject matter containing images or statements suggesting that the Fire Fighter engages in theft, public intoxication, illegal drug activity, or other criminal behavior. Additionally, Fire Fighters are prohibited from engaging in defamatory speech.

This Personal Social Media Usage Policy also hereby incorporates by reference any policy

governing social media usage contained within the Fire Department's Regulations or Standard Operating Procedures, and it is the responsibility of all Fire Fighters to abide by all terms and conditions of any social media restrictions contained within the Fire Department's Regulations or Standard Operating Procedures. Individuals who violate this Section 12.14 of these PRRs or the Fire Department's Regulations or Standard Operating Procedures governing social medial usage may be subject to disciplinary action up to and including termination of employment.

13. Complaint Resolution

13.1 Purpose and Introduction

The City of Fort Worth endeavors to provide resources to assist Fire Fighters who have disagreements and conflicts with other employees or supervisors. These resources range from facilitating personal discussions to resolve conflicts informally to conducting formal investigations of complaints of discrimination, retaliation, and harassment.

The City complaint resolution procedures **DO NOT** provide legal rights to Fire Fighters. These procedures implement the Fort Worth City Code, and the City Manager may rewrite them at any time and for any reason.

The complaint resolution procedures serve as guidelines to process appeals and complaints not addressed by the then-applicable labor agreement. The Human Resources Director or designee may waive procedural rules for good cause. Failure of the City to follow these guidelines does not prevent the City from imposing discipline on employees up to and including indefinite suspension. The City encourages Fire Fighters to discuss complaints with their supervisors, where appropriate, to reach a satisfactory resolution. In the processing of appeals and complaints, the City endeavors to provide a process in which Fire Fighters are free from retaliation, restraint, interference, discrimination, or reprisal. Early resolution is encouraged and can be negotiated at any step in the appeals or complaint procedures.

Except as provided for by state or federal law or as expressly modified, delegated, or abridged by the provisions of any then-applicable labor agreement or the FW Civil Service Commission Rules, department management and the City Manager's Office shall retain the sole, exclusive, and vested right and prerogative to manage the department and its workforce and assets in all respects, including, but not limited to: the right to hire, train, promote, demote, discipline, suspend, discharge, assign, transfer, retain, or lay off employees; the right to establish, eliminate, or modify the qualifications and minimum requirements for hiring, training, promotions, transfers, and job assignments; the right to establish, eliminate, classify, reclassify, or modify the number and types of positions and job classifications; the right to assign and direct the work of Fire Fighters, including the scheduling and assignment of duties, responsibilities, and hours of work; the right to establish, eliminate, or modify the methods, processes, means, and personnel by which operations are to be carried out; the right to establish, eliminate, modify, review, and enforce rules and standards governing job performance, personal conduct and appearance, uniforms and equipment, safety, training, education, attendance, discipline, and efficiency; the right to establish, abolish, or modify processes and procedures for investigating and reviewing Fire Fighter conduct and complaints relating to that conduct; and the right to determine the wages, hours of work, benefits, and working conditions of the Fire Fighters in the Department.

Complaints that involve management rights are not processed unless the complaint describes a discrimination, harassment, or retaliation issue. Management rights are not grievable matters. Management rights that do not involve a discrimination, retaliation, or harassment issue are likely not subject to dispute resolution measures described herein and are generally referred to department management for review and appropriate action. Fire Fighter performance evaluation ratings and merit increase issues (Appointed Positions) are not appealable to Human Resources under the complaint resolution processes described in this chapter unless the ratings or increase issues form the basis of a complaint of illegal discrimination or retaliation. Fire Fighters can discuss concerns about their performance evaluations with their supervision.

The Human Resources Director or designee ensures that complaints follow established procedures. The Human Resources Director or designee makes the final decisions pertaining to complaint resolution procedures, application, interpretation, and implementation.

If a Fire Fighter wants to appeal an action for which an appeal or review is provided by Chapter 143 of the Texas Local Government Code, the Fire Fighter must follow the procedures outlined in that chapter or those established by the then-applicable labor agreement.

For questions about this chapter, please call the Employee and Labor Relations Manager.

13.2 Complaints of Unfair Treatment

Fire Fighters who have complaints or disagreements with supervisors or general concerns of unfairness should first discuss their concerns with their supervisors and their departmental supervisory chain to resolve the matter. However, a Fire Fighter may bypass a supervisor to file a complaint against that supervisor.

Fire Fighters who have complaints (e.g. wage or overtime issues, workplace environment issues, FMLA issues, etc.), disagreements with supervisors or co-workers, or general concerns of unfairness should first utilize their chain of command or their designated bargaining representative if the issue involves the then-applicable labor agreement. The Employee and Labor Relations Division of the Human Resources Department shall consult with Professional Standards if a Fire Fighter initiates a complaint with the City's Human Resources Department. Only complaints of unfair treatment (i.e. those that do not rise to the level of a violation of the discrimination or harassment policy) involving matters that occurred within the three months before the report date will be reviewed. The investigators have discretion to review matters that occurred more than three months before the report date, taking into account the severity of the complaint and the reasons for the delay in filing a complaint. Complainants must cooperate in the investigation and provide timely, complete, and accurate information relevant to the complaint as requested by the investigators.

Failure of the complainant to cooperate may result in administrative closure of the complaint. Dependent upon the nature, frequency, and severity of the matters presented in the complaint, it may also be determined that the complaint should be referred back to the department for review and action as appropriate. If not referred back to the department, the Employee and Labor Relations Division of the Human Resources Department will provide notification of the outcome of the complaint to the complainant either verbally or in writing. If written notification of the outcome is provided, it will provide information on a need-to-know basis and details of any actions taken with individuals other than the complainant will not be included.

13.3 Discrimination, Retaliation, Harassment Complaints

For purposes of this policy, “discrimination” refers to illegal discrimination that is based on any of the protected classes as defined in the *Glossary*.

For purposes of this policy, “harassment” refers to frequent or severe behavior that is unwelcome, distressing, or unpleasant. For more information about harassment, please refer to the *Harassment-Free Workplace* policy in Chapter 12 and/or the *Glossary*.

For purposes of this policy, “retaliation” refers to an adverse employment action that is alleged to have been motivated by any of the following protected activities:

- The Fire Fighter has taken leave under the Family and Medical Leave Act (FMLA), or the Fire Fighter has filed a charge, instituted a proceeding, given information in connection with an investigation under the FMLA, or testified or prepared to testify in a proceeding related to the rights provided for under the FMLA.
- The Fire Fighter has filed a complaint or instituted any proceeding, either with the Human Resources Department or the Department of Labor, regarding payment of wages or overtime under the Fair Labor Standards Act (FLSA).
- The Fire Fighter has filed a discrimination charge or complaint based on a protected class (see *Glossary*) with the Equal Employment Opportunity Commission, Texas Workforce Commission, the Fort Worth Human Relations Commission, Professional Standards, or the Employee and Labor Relations Division of the Fort Worth Human Resources Department.
- The Fire Fighter has opposed an illegal discriminatory practice based on a protected class (see *Glossary*) by testifying, assisting, or participating in any manner in an investigation, proceeding, or hearing. The Fire Fighter alleging retaliation under this provision does not have to belong to a class protected by the underlying law.
- The Fire Fighter made a good faith report of sexual harassment as defined by these Personnel Rules and Regulations.

- The Fire Fighter exercised rights or made a complaint to the Fire Department or the Human Resources Department based on the Fire Fighter's veteran status under the Uniformed Services Employment and Reemployment Rights Act of 1994 (USERRA).
- Filing a workers' compensation claim in good faith; hiring a lawyer to represent the Fire Fighter in a workers' compensation claim; instituting or causing to be instituted in good faith a contested case under the Texas workers' compensation statute; testifying or preparing to testify in a contested case under the Texas workers' compensation statute.
- Making a whistleblower complaint. *

**While also a protected activity, this type of alleged retaliation has a different complaint process which is explained elsewhere in this chapter.*

The complaint process provides an avenue for Fire Fighters to report allegations of discrimination, retaliation, and/or harassment. It is against the policy of the City of Fort Worth for any supervisory personnel (or any personnel with the ability to do so) to retaliate (i.e. impose an adverse employment action) against any individual who reports discrimination or harassment, opposes a discriminatory practice, or participates in an investigation of such reports.

Any complaint alleging discrimination, retaliation, or harassment shall be construed as a claim against the City of Fort Worth. Any Fire Fighter may file a complaint with Professional Standards and the Employee and Labor Relations Division alleging discrimination or retaliation if that person has received an employment action that is perceived to be adverse (e.g. discipline, transfer, substandard performance appraisal). Fire Fighters who have resigned or who have been indefinitely suspended may also file retaliation and discrimination complaints.

Complaints filed by a Fire Fighter alleging discrimination, harassment, or retaliation may be filed with either the Human Resources Department (Employee and Labor Relations Division) or the Fire Department (Professional Standards). Given the nature of these complaints, Professional Standards should confer with Human Resources to investigate and resolve these complaints.

Individual supervisors shall not investigate complaints of discrimination, harassment, or retaliation; instead, a supervisor should refer all such complaints to Professional Standards or the Employee and Labor Relations Division as soon as they know of such complaints. Failure of a supervisor to timely refer a discrimination, harassment, or retaliation complaint to Professional Standards or the Employee and Labor Relations Division may result in disciplinary action for the supervisor up to and including indefinite suspension.

Filing and investigating complaints

Complaints must be filed in writing with Professional Standards or the Employee and Labor Relations Division. All reports must include the following information:

- Contact information, including name, address, and telephone number of the Complainant;
- The Complainant's employee number and position (or former position) with the City;
- The nature of the alleged adverse employment action taken against the Complainant;
- The date of the alleged adverse employment action taken against the Complainant;
- The name of the Fire Fighter's supervisor;
- The name of the individual who allegedly took an adverse employment action against the Complainant;
- The facts that are the basis for the complaint, including dates that incidents occurred; and
- Names of persons with knowledge of relevant facts, including a general statement of what each knows. If it is determined from the provided information that a person named does not have information relevant to the investigation, that person might not be contacted.

Complainants must cooperate in the investigation and provide timely and accurate information relevant to the complaint as requested by the investigators. Failure of the complainant to cooperate or provide accurate information during the investigation process impedes the ability of the investigators to conduct a thorough review and will be noted in the findings as appropriate. It is the Complainant's responsibility to update contact information in the event of a change.

During an investigation, the Employee and Labor Relations Division will maintain confidentiality of the complainant, witnesses, and the accused to the greatest extent possible to maintain the integrity of the investigation and to make participants in the process as comfortable as possible in their cooperation with the investigation process. However, the Employee and Labor Relations Division will notify investigation participants that, because the City is a public entity, there is a possibility that information gathered in the investigation may be released to the public, with or without a Public Information Request. A possible exception to this may be complaints involving sexual harassment, which are generally more protected because of the sensitive nature of the allegations and subject matter.

In appropriate circumstances, the Law Department may ask the Texas Attorney General's office to determine whether state law requires that information related to such an investigation can be withheld from public disclosure. Following the completion of the investigation, the City Manager's Office may share information from any employment investigations with the media and/or other parties, as appropriate. Information gathered during investigations of complaints against Fire Fighters will be subject to section 143.089 of the Texas Local Government Code and other protections that may exist under state law or a then-applicable labor agreement.

Professional Standards, the Human Resources Department, and the Law Department will determine on a case-by-case basis who leads investigations into complaints involving discrimination, retaliation, and harassment. Investigation findings, decisions, and

recommendations are also made on a case-by-case basis. Appropriate disciplinary action and or other remedial action will be taken when the findings warrant it. Generally, the disciplinary action or other remedial action will be discussed in an executive summary meeting including the Fire Chief or designee and representatives from the Law Department and the Employee and Labor Relations Division.

For any investigations conducted by the Employee and Labor Relations Division involving discrimination, retaliation, and harassment, the findings will be reported to the Law Department. The Law Department will report the findings to the Fire Chief or designee, unless the facts of the situation make that inappropriate, in which case the findings will be forwarded to the appropriate Assistant City Manager, who will take action appropriate to the findings. The Fire Chief or Assistant City Manager's response is final, concludes the complaint procedure, and may not be appealed.

Deadlines

A Fire Fighter must file a complaint of discrimination, harassment, or retaliation as defined in this policy within 300 days of the date the adverse employment action occurred or was discovered by the Fire Fighter through reasonable diligence. The date the written complaint is received by the Employee and Labor Relations Division or Professional Standards will be considered the date the complaint is filed.

13.4 Whistleblower Complaints

It is against the policy of the City of Fort Worth for any supervisor to take an adverse personnel action against a Fire Fighter because the Fire Fighter made a good faith report of a violation of law by a government entity or a public employee under the Texas Whistleblower Act, Section 554 of the Texas Government Code. This section applies to all current and former Fire Fighters. Fire Fighters who have resigned or who have been indefinitely suspended may also file a whistleblower complaint.

A Fire Fighter or former Fire Fighter must file a complaint of retaliation for reporting a violation of law by a public employee ("whistleblower" complaint) not later than the 90th day after the date on which the alleged adverse employment action occurred or was discovered by the Fire Fighter through reasonable diligence. The date the complaint is received by the Employee and Labor Relations Division or Professional Standards will be considered the date the complaint is filed.

Filing and investigation of complaints

Complaints must be filed in writing with the Employee and Labor Relations Division or Professional Standards.

All whistleblower complaints must include the following information:

- Contact information, including name, address, and telephone number of the Complainant;
- The Complainant's employee number and position (or former position) with the City;
- The nature of the alleged adverse employment action taken against the Complainant;
- The date of the alleged adverse employment action taken against the Complainant;
- The name of the Fire Fighter's supervisor (if applicable);
- The name of the individual who allegedly took an adverse employment action against the Complainant;
- The facts that are the basis for the complaint, including dates that incidents occurred and names of individuals who may have knowledge of the facts.
- The name of the governmental entity or public employee who allegedly violated a law
- The law, or a description of the law, that was allegedly violated
- The act or acts that allegedly constitute a violation of law
- The date the violation of law allegedly occurred
- The name of the entity to whom the alleged violation of law was reported
- The date the alleged violation was reported

Complainants must cooperate in the investigation and provide timely and accurate information relevant to the complaint as requested by the investigators. Failure of the complainant to cooperate or provide accurate information during the investigation process impedes the ability of the investigators to conduct a thorough review and will be noted in the findings as appropriate. It is the complainant's responsibility to update contact information in the event of a change. This is a prerequisite to suit under the Texas Whistleblower Act.

During an investigation, the Employee and Labor Relations Division will maintain confidentiality of the complainant, witnesses, and the accused to the greatest extent possible to maintain the integrity of the investigation and to make participants in the process as comfortable as possible in their cooperation with the investigation process. However, the Employee and Labor Relations Division will notify investigation participants that, because the City is a public entity, there is a possibility that information gathered in the investigation may be released to the public, with or without a public information request. A possible exception to this may be complaints involving sexual harassment, which are generally more protected because of the sensitive nature of the allegations and subject matter.

In appropriate circumstances, the Law Department may ask the Texas Attorney General's office to determine whether state law requires that information related to such an investigation can be withheld from public disclosure. Following the completion of the investigation, the City Manager's Office may choose to share information from any employment investigations with the media and/or other parties, as appropriate.

Information gathered during investigations of complaints against Fire Fighters will be subject to section 143.089 of the Texas Local Government Code and other protections that may exist under state law.

Investigation findings, decisions, and recommendations are made on a case-by-case basis. The Human Resources Department, Professional Standards, and the Law Department decide how the incident/allegation/complaint is investigated. Appropriate disciplinary action or other remedial action is taken when the findings warrant it. The disciplinary action is decided upon in an executive summary meeting with representatives from the Law Department, Professional Standards, Human Resources, and the Fire Chief or designee. If disagreement exists among the representatives, the Fire Department's Assistant City Manager determines the disciplinary action.

At the conclusion of the investigation, the Employee and Labor Relations Division or Professional Standards will report the findings to the Fire Chief or designee and the Law Department, unless the facts of the situation make that inappropriate, in which case the findings will be forwarded to the appropriate Assistant City Manager, who will take action appropriate to the findings and notify the Complainant in writing of the decision and action taken. The Fire Chief or Assistant City Manager's response is final, concludes the complaint procedure, and may not be appealed.

13.5 Appeals

An appeal is a formal protest over disciplinary suspensions without pay, demotions, promotional bypasses or an indefinite suspension. Removal from an appointed position to a Fire Fighter's last tested classification generally not appealable. Fire Fighters will not be subjected to retaliation, restraint, interference, discrimination, or reprisal for presenting appeals.

Eligible Fire Fighters may file appeals pursuant to the then-applicable labor agreement or, in the absence of a labor agreement, pursuant to the appeal procedures outlined in the chapter 143 of the Texas Local Government Code and the FW Civil Service Commission Rules.

13.6 Reinstatement and Back Pay

Reinstatement occurs when a Fire Fighter appeals a disciplinary suspension, the appeal is granted, and the Fire Fighter returns to work as a result of prevailing in the appeal. The service record of a reinstated Fire Fighter will reflect a break in service when full back pay is not awarded.

A Fire Fighter's break in service with the City will be given an adjusted service date (which is considered a new date of employment). The terms and conditions of the adjusted service date are outlined in the then-

applicable labor agreement.

Accrued leave benefits not paid at the time of indefinite suspension are reinstated and immediately available to the Fire Fighter, unless the terms of the reinstatement specify otherwise. If the reinstatement provisions are silent on relevant reinstatement matters, those matters are processed as if full back pay was not awarded. Fire Fighters who are indefinitely suspended are expected to make a good faith effort to find interim employment to mitigate any back pay liability.

If any back pay is awarded, the award will be reduced by the amount of income that the Fire Fighter received, or reasonably could have been expected to have earned, during the appeal as determined by the Commission or the hearing examiner. Also, if any back pay is awarded, the award will be reduced by the amount of paid leave for which the Fire Fighter was paid when indefinitely suspended, and the leave will be restored. All leave restored will be subject to any caps on accrual and “use it or lose it” provisions in the then-applicable labor agreement or applicable City regulations and policies. If the Fire Fighter was enrolled in City benefits before being indefinitely suspended, the Fire Fighter will be reinstated to those benefits under the same terms. In cases where a Fire Fighter has been reinstated following an appeal of an indefinite suspension, the Fire Department shall work in conjunction with the Human Resources and Financial Management Departments to ensure that any back-pay awards are accurately reported to the Fort Worth Employee’s Retirement Fund.

13.7 Reasonable Accommodation Review and Resolution for Persons with Disabilities

Individuals who believe the City is not in compliance with the Americans with Disabilities Act (ADA) or who have been denied a requested reasonable accommodation under the ADA may file a complaint with the Employee and Labor Relations Division (“ELRD”) of Human Resources.

The Employee and Labor Relations Division researches the facts related to the complaint and responds to the complainant in writing. If the Complainant is not satisfied with the outcome, a written request for further review by the City Manager’s Office must be submitted to the Human Resources Director within ten business days after receipt by the Complainant of the ELRD response. The City Manager or designee reviews the matter and prepares a final written response that is sent to the Complainant as soon as practicable.

13.8 Fire Fighter Representation

A Fire Fighter may have a representative present during a formal administrative investigation interview pursuant to the terms of the then-applicable labor agreement. The Fire Fighter cannot be punished for requesting representation.

Additional terms and conditions regarding Fire Fighters’ rights to representation during investigations may be found in the then-applicable labor agreement.

14. Glossary

Below is an alphabetical list of terms used in this manual along with their definitions.

Accredited school - an educational institution approved by the Southern Association of Colleges and Schools or its regional counterparts, or a technical training school or college approved by the Accrediting Commission of Career Schools and Colleges.

Actual Holiday – the calendar date that a holiday falls on and is generally recognized by law or societal custom as a holiday

Administrative leave - a type of paid leave used when a Fire Fighter is temporarily relieved of his or her normal responsibilities, continues to receive regular pay and benefits, and is normally required to remain at home during regular work hours. This leave type is not charged against the Fire Fighter's personal leave balances.

Adverse employment action - action that materially affects the terms, conditions, or privileges of employment.

Alcohol test - a scientifically recognized chemical test that establishes an individual's breath alcohol level.

Aliquot - a portion of a specimen used for testing.

Alternate duty assignment - For purposes of the Return to Work policy, "Alternate Duty Assignment" is a job redesign or a placement to meet the needs and abilities of the individual, with work restrictions as determined by their treating physicians. Alternate duty is a transitional duty assignment, temporary in nature, that is intended to bring an injured Fire Fighter back to work until the Fire Fighter is physically and mentally able to resume performance of his/her regular, full duty work.

Appeal - a formal protest involving an indefinite suspension, suspension, or demotion.

Appointed Positions-Assistant Chief and Deputy Chief

Average weekly wage (AWW) - the sum of all forms of remuneration paid to the injured Fire Fighter for personal services in the 13 consecutive weeks immediately preceding the date of the injury divided by 13.

Base Rate of Pay – pay received for a given work period that does not include overtime or special pays (such as holiday pay, acting pay, bilingual skills pay, emergency callback pay, on-call or standby duty pay, longevity pay, and clothing allowance).

Bona Fide Offer of Employment (BFOE) - an offer of employment to an injured Fire Fighter who is returning to work with restrictions to duty as determined by an examining doctor and the return to work is for a transitional duty assignment (light duty, limited duty, modified duty or alternate duty). The BFOE meets the requirements specified in Rule 129.6, "*Bona Fide Offers of Employment*," of the Texas Administrative Code.

Business days - Monday through Friday, between the hours of 8 a.m. and 5 p.m., excluding City holidays.

Certification incentive pay - extra Pay for successful completion of certified courses by the Texas Commission on Fire Protection Standards and Education (TCFPSE).

Chain of custody - procedures to account for the integrity of each urine specimen by tracing its handling and storage from point of specimen collection to final disposition of the specimen, utilizing an approved City chain of custody from the time of collection to receipt by the laboratory, and upon receipt by the laboratory, an appropriate laboratory chain of custody form(s) to account for the sample or sample aliquots within the laboratory (chain of custody forms, at a minimum, include an entry documenting date and purpose each time a specimen or aliquot is handled or transferred and identifying every individual in the chain of custody).

Chargeable collision - one in which the Fire Fighter negligence, driver's error, or traffic violation either caused or significantly contributed to the occurrence of the collision.

City - the City of Fort Worth.

City vehicle – a motor vehicle leased or owned by the City of Fort Worth.

Fort Worth Civil Service Commission Rules- These rules are controlling regarding many aspects of hiring, promotion, and discipline when not in conflict with any then-applicable labor agreement.

Coded hours - paid time that have payroll codes for other than actual "hours worked." Coded hours include pay for vacation leave, sick/family leave, occupational injury, jury or court duty, military leave, holidays that fall on a Fire Fighter's regular day off, holiday premium pay, donated leave or any other pay that is not for time worked. Coded hours also include time paid as a result of some "hours worked" such as emergency callback pay. Coded hours are not considered to be hours worked for the calculation of overtime hours unless otherwise authorized by a labor agreement. Paid time off on holidays, holiday leave, and personal holiday leave are an exception to coded hours. These hours are treated as "hours worked" for the calculation of overtime hours.

Collective Bargaining Agreement - A contract entered into under the TLGC, Chapter 143, Subchapter I, *Fire Fighter and Police Officer Employment Matters in Certain Municipalities* preempts any contrary personnel rule or regulation herein, unless otherwise provided for in such contract.

Commercial Driver's License (CDL) - a license issued by the State of Texas to authorize an individual to operate a class of commercial motor vehicle.

Communicable Disease - is defined by Texas Health & Safety Code Section 81.003(1) as an illness that occurs through the transmission of an infectious agent or its toxic products from a reservoir to a susceptible host, either directly, as from an infected person or animal, or indirectly through an intermediate plant or animal host, a vector, or the inanimate environment. This includes diseases other than COVID-19, including the flu, common cold, tuberculosis, and others. See the Department of State Health Services website for a current list of recognized "communicable diseases."

Commuting/Commute - direct travel in a City vehicle to or from the worksite(s) of a Fire Fighter, including to or from an off-site parking facility, including returns to the worksite(s) outside of the Fire Fighter's normal work hours. Commuting is not in the scope of employment.

Compensation - payment of an income benefit in accordance with the Texas Labor Code, Chapters 408, 409, and 504, and in accordance with Chapters 126 through 132 of the Rules.

Compensatory or "Comp" Time – paid time off earned by Non-exempt Fire Fighters at a rate of one and one-half times the hours worked in excess of 40 hours in a work week and earned by Exempt Fire Fighters at the rate of one-hour-worked, one-hour-accrued in excess of 40 hours in a work week. The FLSA allows non-exempt Fire Fighters to earn compensatory time in lieu of overtime pay. A non-exempt Fire Fighter may earn up to 120 hours of compensatory time and then any hours worked above 40 hours in that work week must be paid as overtime. Exempt Fire Fighters can earn a maximum of 120 hours of compensatory time and accrual of compensatory time ceases until the exempt Fire Fighter's compensatory time balance goes below 120 hours.

Compensable injury - an injury or occupational disease that arises out of and in the course and scope of employment for which compensation is payable in accordance with the Texas Labor Code.

Confirmatory test - a second analytical procedure conducted after the result of an initial test is positive, to identify the presence of a specific drug or metabolite (this test is independent of the initial test and uses a different technique and chemical principle from that of the initial test in order to ensure reliability and accuracy). At this time, gas chromatography/mass spectrometry (GC/MS) is the only authorized confirmation method for cocaine, marijuana, opiates, amphetamines, and phencyclidine.

Course and scope of employment - an activity of any kind or character that has to do with and originates in the work, business, trade, or profession of the employer (City of Fort Worth) and that is performed by a Fire Fighter while engaged in or about the furtherance of the affairs or business of the employer.

Covered service member - for the purposes of the FMLA, a member of the Armed Forces, including a member of the National Guard or Reserves, who is undergoing medical treatment, recuperation, or therapy, is otherwise in outpatient status, or is otherwise on the temporary disability retired list, for a serious injury or illness or a veteran who is undergoing medical treatment, recuperation, or therapy, for a serious injury or illness, and who was a member of the Armed Forces, including a member of the National Guard or Reserves, at any time during the period of five years preceding the date on which the veteran undergoes that medical treatment, recuperation, or therapy.

Customer - any person, firm, or business that purchases, obtains, or receives information, commodities, or services from the City.

Daughter - For the purposes of the FMLA, a daughter is a biological, adopted, or foster child, a stepchild, a legal ward, or a child of a person standing in place of a parent (in loco parentis) who is under 18 years of age or is 18 years or older and is incapable of self-care because of a mental or physical disability.

Day - a consecutive 24-hour period of time within a workweek beginning at 12:01 a.m. A day means 8 hours within the 24-hour period (or as otherwise defined in a then-applicable labor agreement) of time for the purpose of defining time not worked during a Fire Fighter's normal work shift. While a Fire Fighter may be scheduled to work any number of hours during a workday, a day for the purpose of leave, time off work, and compensation is up to a maximum of eight hours. For example, a day off work for a full-time Fire Fighter for vacation, military leave, holiday, disciplinary leave, etc. would be a maximum of eight hours (or as otherwise defined in a then-applicable labor agreement).

Demotion - movement into a classification having a salary grade with a lower entry pay amount than the previously held classification.

Department Director Designee - a City employee directly reporting to the Department Director and who has been designated for certain purposes by the Director as possessing the same authority as the Director. The Designee must be at least a management-level employee or above.

Disability supplement pay (DSP) - pay from the city for the purpose of supplementing an eligible Fire Fighter's weekly temporary income benefit for a compensable injury.

Disability layoff/termination - A disability layoff/termination occurs when the Fire Fighter terminates from the City because of an illness or accident that renders the Fire Fighter unable to perform the job. A disability layoff/termination can be from a job-related injury or disease or a non-job-related injury or disease. This layoff/termination will be done in accordance with Texas Local Government Code 143.073.

Discrimination complaint - when a Fire Fighter alleges disparate (unequal) treatment. The acceptable bases upon which to file a discrimination complaint include race, color, national origin, sex, pregnancy, transgender status, gender identity, gender expression, religious affiliation, political affiliation or belief, age (over 40), sexual orientation, genetic information, veteran status, and disability status (including contagious diseases such as tuberculosis in the non-contagious state and

HIV).

Doctor - a doctor of medicine, osteopathic medicine, optometry, dentistry, podiatry, or chiropractor who is licensed and authorized to practice in the State of Texas.

Domestic partner - A domestic partner is defined as an individual of the same or opposite gender as the Fire Fighter, who is 18 years of age or older, who has lived in the same household as the Fire Fighter for at least six months and shares resources of life in a close, personal intimate relationship with the City Fire Fighter, neither of whom is married or related by blood, if, under Texas law, the individual would not be prevented from marrying the Fire Fighter on account of consanguinity or prior undissolved marriage to another.

DOT position - a job where Fire Fighter may operate commercial-type vehicles and for which a commercial driver's license (CDL) is required.

Driving Under the Influence - driving a motor vehicle while in a state of intoxication. The Texas Penal Code, Chapter 49.01(2) defines intoxication as "not having the normal use of mental or physical faculties by reason of the introduction of alcohol, a controlled substance, a drug, a dangerous drug, a combination of two or more of those substances, or any other substance into the body; OR (b) having an alcohol concentration of .08 or more."

Drug - A narcotic drug, controlled substance, or marijuana as defined in the Comprehensive Drug Abuse Prevention and Control Act of 1970, 102, 21 United States Code 802, as amended; it also includes alcoholic beverages, prescription drugs not taken as directed, and illegal inhalants, as per the Texas Workers' Compensation Act of 1991 V.A.T.S. 8308-1 and the regulations promulgated there under.

Drug test - a scientifically recognized chemical test administered in accordance with Department of Health and Human Services guidelines which analyzes an individual's urine for evidence of marijuana, cocaine, opiates, phencyclidine (PCP), and amphetamines (this test consists of two parts, an initial test and a confirmatory test, conducted with portions of the same original specimen).

DWC-73 Work Status Report (DWC-73) - Texas Department of Insurance, Division of Workers' Compensation form that examining doctors are required to complete after a medical examination of an injured Fire Fighter. The form identifies the injured Fire Fighter's ability to work and any physical restrictions to work.

Fire Fighter - an individual who is post-probationary, sworn, and commissioned by the City to perform work for the City full-time. A contractor or volunteer is not a Fire Fighter.

Education Incentive Pay- extra Pay for successful completion of accredited educational coursework or degree program.

Emergency medical technician - an individual who is: (A) certified as an emergency medical technician under Chapter 773, Texas Health and Safety Code; and (B) employed by a political subdivision.

Employee Assistance Program (EAP) - a program that assists Fire Fighters and their family members in dealing with emotional and personal problems, including alcohol and drug abuse, affecting or potentially affecting the Fire Fighter's work performance and safety.

Equity Evaluation - an objective assessment of compensation taking into account the experience, tenure, and/or performance of similarly situated Fire Fighters in appointed positions.

Examining doctor - a treating doctor, referral doctor, required medical exam doctor, or designated doctor who is authorized by the Labor Code and Rules to examine the medical condition of an injured Fire Fighter. An opinion of a "designated doctor" is given presumptive weight when resolving questions about: (1) the impairment caused by a compensable injury; (2) the attainment of maximum medical improvement; (2) the extent of the Fire Fighter's compensable injury; (4) whether the injured Fire Fighter's disability is a direct result of the work-related injury; (5) the ability of the Fire Fighter to return to work; and (6) issues similar to those described by items (1) - (5) above.

Full City Contribution- the amount budgeted by the City to be paid toward healthcare benefits for the majority of Full-Time Fire Fighters.

Full duty - performance of the essential functions of the Fire Fighter's pre-injury job, with or without accommodation.

Functional Capacity Examination (FCE) - an in-depth, detailed, and technical medical assessment of a person's physical abilities to perform the person's job duties, administered by a licensed physical or occupational therapist. An FCE consists of a series of tests to measure physical strength, range of motion, and stamina. The FCE is used to evaluate work tolerance and the necessity for work restrictions. An evaluator skilled in functional capacity evaluation will use a battery of standardized tests designed around key factors that include diagnosis, impairment, pain and functional limitation, referral questions, and, in some instances, the case resolution goal. An FCE is more detailed and comprehensive than the Human Performance Evaluation (HPE).

Furlough - A furlough is a temporary layoff from work during which a Fire Fighter is without duties or pay because of a lack of work or funds or for other non-disciplinary reasons. For the purpose of calculating deadlines under the FD Personnel Rules and Regulations, a day that has been declared by the City Manager as a mandatory furlough day is not considered a working day. Allowable work hours are determined by reducing a 40-hour workweek by the number of mandated furlough hours for that week.

Gift - any benefit, favor, service, advantage, privilege, or thing of value that is transferred to a Fire Fighter's possession or use. Gifts could include but are not be limited to: trips, money of any amount, merchandise, foodstuffs, and tickets to sports, civic, or cultural events; also included are personal services or work provided by City suppliers or customers, as well as offers of future employment from City suppliers or customers. Gifts usually do not include items that would not ordinarily be interpreted as affecting a Fire Fighter's impartiality, such as an occasional, moderately priced business lunch, potted plants or flowers, boxes of candy for office personnel, "gimme caps," or advertising office supplies, such as pencils, calendars, pens, or other token gifts of small value. All gifts that are transferred to Fire Fighters might be subject to review by the City's Ethics Review Commission.

Harassment - negative, disrespectful, or oppressive actions of one person or group who mistreat another person or group. Harassment may include threats, insults, name calling, sabotage, and damage to property. Harassment may be based on sex, race, religion, or other protected categories and may include express or implied threats of personal harm, including threats and demands.

Health authority - a physician appointed under the provisions of Chapter 121 of the Texas Health and Safety Code to administer state and local laws relating to public health within the City of Fort Worth's jurisdiction.

Hostile work environment - a condition in the workplace in which harassment based on protected class occurs toward one or more Fire Fighters; the harassment typically must be intentional, severe, recurring, or pervasive, and interfere with a Fire Fighter's ability to perform his or her job whether victim or witness; the victim or witness typically must reasonably believe that tolerating the hostile work environment is a condition of continued employment. In other words, the victim or witness typically must reasonably believe that they have no choice but to endure a hostile workplace in order to keep their jobs.

Holiday - a period of eight hours (unless otherwise defined by a then-applicable labor agreement) designated by City Council as a day that nonessential City services and offices are closed and Fire Fighters may take off from work with pay.

Hours worked - the time a Fire Fighter is required to be on duty, on the employer's premises, or at a prescribed workplace.

Human Performance Evaluation (HPE) - a physical abilities test performed by a physical or

occupational therapist. The HPE is a scientifically valid simulation of physical work performed by Fire Fighters who are in moderate to heavy physical demands job classifications. The purpose of the HPE is to assess a Fire Fighter's ability to pass the simulated work test prior to returning to work. The HPE is administered by the City's contracted preferred provider of occupational health services. The Fire Fighter must attend and pass the HPE before returning to work after being off from a workers' compensation illness or injury. The HPE is less detailed and less comprehensive than the Functional Capacity Evaluation (FCE).

Illegal use of a prescription medicine - means taking medication that has been prescribed to someone else. It also means taking medication after the expiration date has passed or taking more medication than has been prescribed.

IME doctor - a doctor who performs an IME (Independent Medical Exam).

Immediate family member - In the case of all leave policies other than the Family and Medical Leave Act (FMLA), an **immediate family member** is defined as wife, husband, domestic partner, mother, father, grandmother, grandfather, brother, sister, son, daughter, mother-in-law, father-in-law, son-in-law, daughter-in-law, grandson, granddaughter, stepmother, stepfather, stepson, stepdaughter, stepbrother, stepsister, aunt, uncle, niece, nephew, sister-in-law, brother-in-law, grandmother-in-law and grandfather-in-law. This includes extended family members for domestic partners. For the purpose of Family Leave under the FMLA, immediate family members are limited to a Fire Fighter's spouse, children, and parents.

Income benefits - compensation made to a Fire Fighter for a Compensable Injury.

Indefinite Suspension - the equivalent of a dismissal/termination for civil service employees.

Independent medical exam (IME) - a medical examination by a doctor who is not the Fire Fighter's treating doctor or preferred medical provider under the City's health benefits program.

The IME is performed by a doctor who is neutral and performs the medical examination to determine factors such as whether the Fire Fighter can return to work, has temporary or permanent disabilities, or has reached MMI.

In loco parentis - For the purpose of the FMLA, "in loco parentis" may be established by providing day-to-day responsibilities to care for or financially support a child, or who had such responsibility for the Fire Fighter when the Fire Fighter was a child. Examples include a grandparent who assumes ongoing responsibility for raising a grandchild or a Fire Fighter who provides day-to-day care for his or her unmarried partner's child (with whom there is no legal or biological relationship) but does not financially support the child.

Insubordination - willful failure or refusal to follow specific orders or instructions of a supervisor.

Interactive Process - A request for reasonable accommodation or the recognition that a reasonable accommodation may be needed is the first step in an informal, interactive dialogue between the individual and the employer. In some instances, before addressing the merits of the accommodation request, the employer needs to determine if the individual's medical condition meets the ADA definition of "disability," which is a prerequisite for the individual to be entitled to a reasonable accommodation. This process should facilitate an open exchange of information between the Fire Fighter and employer. The goal is to ascertain the precise job-related limitations, how the limitations may be overcome with a reasonable accommodation, to identify potential accommodations, and to assess their effectiveness.

Job abandonment - when a Fire Fighter fails to come to work for three consecutive days without calling a supervisor or a medical records coordinator or giving any type of notification.

Labor Agreement - refers to any then-applicable labor agreement between the City of Fort Worth and a legally authorized bargaining agent for Fire Fighters working for the City of Fort Worth.

Labor code - the Texas Workers' Compensation Act as codified in the Texas Labor Code, Title 5, Subtitle A.

Lactation - expression of breast milk to store for a baby's later use.

Lateral transfer (or transfer) - the movement of a Fire Fighter from one position to another position in the same classification with the same pay grade.

Lateral hire- the employment of a fire applicant directly from another fire department agency.

Life-changing event - A life-changing event for the purpose of benefit eligibility and administration consists of one of the following:

- Death of the Fire Fighter;
- Death of the Fire Fighter's spouse;
- Death of a Fire Fighter's dependent;
- Marriage of the Fire Fighter;
- Divorce of the Fire Fighter;
- Birth or adoption of a child;
- Loss of outside health coverage;
- Change of Fire Fighter's employment status; or
- Change in spouse's employment status.

Limited duty – See “Transitional duty” below.

Long-term disability - type of insurance that protects income against a sudden loss due to a catastrophic illness or injury. It replaces lost wages due to the illness or injury.

Look-back Measurement Period - refers to the period used to calculate the average number of hours a Fire Fighter actually worked per work week in order to determine eligibility for health benefits and City contribution during the immediately ensuing “stability period” under provisions of the federal Patient Protection and Affordable Care Act (PPACA) that took effect January 1, 2015.

Maximum medical improvement (MMI) - the earlier of:

- 1) the earliest date after which, based on reasonable medical probability, further material recovery from or lasting improvement to an injury can no longer reasonably be anticipated;
- 2) the expiration of 104 weeks from the date on which income benefits begin to accrue;
or
- 3) the date a Commissioner of Insurance order for an extension of the 104-week period expires.

Medical records custodian (MRC) - staff person designated by the Fire Chief or designee to serve as the department's custodian of Fire Fighter medical records. The MRC performs the functions specified in Administrative Regulation D-10 “Protection of Medical Information.”

Normal scheduled hours - the hours of work scheduled by management that a Fire Fighter is required to work for the routine performance of duties. Normal scheduled hours do not include overtime hours worked, on-call duty, or stand-by duty.

Observed holiday – the day that the City designates as a holiday, which generally means that a Fire Fighter is not required to perform work on that day and that business offices may be closed even though the day would normally be a business/work day if the holiday was not acknowledged. Typically, when the actual holiday falls on Saturday the observed holiday will be on the previous Friday, and when the actual holiday falls on a Sunday the observed holiday will occur on the following Monday.

Occupational Leave/O Days- leave given a Fire Fighter injured in the line of duty. Fire Fighters receive 100 percent salary supplement payments directly from the City beginning with the first day of lost time.

Off-site parking facility - City facilities and other locations along the Fire Fighter's reasonable commute route to and from the worksite(s) that are determined to be adequately secure by the authorizing department and are approved for the purpose of parking a city vehicle during non-work hours. Selection of an off-site parking facility is made based in part on the convenience of the individual Fire Fighter. Travel between an off-site parking facility and a Fire Fighter's worksite(s) is not in the scope of employment.

Off-site parking vehicle - a City vehicle approved for use by authorized Fire Fighters for a portion of his/her commute from the workplace to another City or other approved facility for the purpose of parking during non-work hours.

On-call - occurs when a Fire Fighter is not required to remain on the City's premises but is asked to leave word at his/her home or with his/her supervisor as to where and how he/she might be reached for callback. Fire Fighters assigned to an "On-Call" status may be asked to have a cell phone or other communications device available to receive calls. On-Call time is not work time, therefore, it is not paid time.

Overtime- the time worked in excess of 40 hours in a defined FLSA workweek. Hours actually worked and leave categories that are counted as hours worked for the purpose of computing overtime include Holiday Leave, Holiday Leave Accrued, Personal Holiday Leave, Special Personal Holiday Leave.

Parent - the biological or adopted parent of a Fire Fighter or an individual who stands or stood in place of a parent (in loco parentis) to the Fire Fighter when the Fire Fighter was a child. This does not include "parents-in-law."

Pay period - regularly recurring period of 336 hours in the form of 14 consecutive 24-hour periods.

Person within the first degree of relation – spouse or domestic partner, father, mother, son, daughter, father-in-law, mother-in-law, son-in-law, daughter-in-law.

PIP - acronym for Performance Improvement Plan. This is a plan written by a supervisor for the purpose of counseling an under-performing Fire Fighter and assisting the Fire Fighter in improving the quantity and/or quality of the Fire Fighter's work.

Pre-decision meeting - a meeting that allows a Fire Fighter an opportunity to respond to the reasons being considered for issuing a disciplinary action.

Program - in regards to alcohol and drug misuse, refers to the City alcohol and drug abuse program that implements the policy and procedures for prevention, deterrence, and rehabilitation aimed at eliminating the possession, use, distribution, sale, or consumption of drugs or alcohol in the workplace.

Promotion - movement into a classification having a pay grade with a higher entry rate than the previously held classification.

Protected classes - race, color, national origin, sex, pregnancy, transgender status, gender identity, gender expression, religious affiliation, political affiliation or belief, age (over 40), sexual orientation, genetic information, veteran status, and disability status (including contagious diseases such as tuberculosis in the non-contagious state and HIV).

Regular rate of pay - Regular rate of pay includes: holiday pay, acting pay, bilingual skills pay, emergency callback pay, on-call or stand by duty pay, longevity pay, and clothing allowance.

Regular/Normal retirement - a termination type that occurs when the Fire Fighter terminates employment for the primary purpose of retiring from the City to receive a monthly pension.

Remote parking facility - a City facility or other approved location at which a Fire Fighter is directed to park a City vehicle due to limitations at the primary site or for the operational convenience of the City. Selection of a remote parking facility is made without regard to the convenience of the Fire Fighter. Travel between a remote parking facility and a Fire Fighter's worksite(s) is considered to be within the scope of employment.

Rule(s) - administrative rule(s) or regulation(s) promulgated and adopted by the Commissioner of Insurance, Department of Workers' Compensation, as necessary for the implementation and enforcement of the Labor Code. The applicable rule(s) are published in the Texas Register and are codified in the Texas Administrative Code, Title 28, Parts 2 and 6.

Sabotage - destruction of City property or equipment or a deliberate action taken to undermine a coworker or department's work or productivity, either by active means, such as vandalizing equipment, or by passive means, such as refusing to meet productivity goals, i.e., a work slow-down.

Scheduled hours - A timekeeper or manager may assign any work schedule with any number of hours to any Fire Fighter.

Scope of employment - has the same meaning as set out in the Texas Tort Claims Act, being Tex. Civ. Practice and Remedies Code, Chapter 101, as it may be amended from time to time.

Secondary employment - any job, work, or business, part-time or full-time, for self or another person, firm, company, or organization, for which salary, wages, or other economic benefits, including free or discounted goods or services, are received.

Shift - an assigned work schedule of consecutive regular hours that when worked, or when leave is used, result in the Fire Fighter earning pay for a 40-hour work week. The number of assigned shifts or shift hours will not exceed 40 hours in a week. An assigned shift may result in shift hours occurring in two consecutive days. Shift hours will be reported on the day the hours were worked for pay, leave, and benefits such as holiday time.

Solicitation - requests for support, usually financial, for an organization or cause, such as a charity, religious organization, Fire Fighter association, personal profit, or civic activity. Solicitations usually involve distribution of information and literature, and often include sales of products, and requests for donations of services, money, or goods.

Son - For the purposes of the FMLA, a son is biological, adopted, or foster child, a stepchild, a legal ward, or a child of a person standing in place of a parent (in loco parentis), who is under 18 years of age or is 18 years old or older but is incapable of self-care because of a mental or physical disability.

Spouse - a husband or wife as defined or recognized under State law for purposes of marriage or a common-law spouse as recognized by the State of Texas. Unmarried domestic partners are not spouses.

Stalking - repeated unwanted contact between two people that directly or indirectly communicates a threat or places the victim in fear. Stalking behaviors include but are not limited to: following a person; appearing at a person's home or place of business; excessive phone calls; sending letters or e-mails; leaving written messages or objects; or vandalizing a person's property.

Standard Operating Procedures (S.O.Ps) - Fire Department rules and regulations that may be more restrictive or controlling than policies in these FDPRRs so long as they do not conflict with federal, state, or local law, or any then-applicable labor agreement.

Straight-time - This term refers to a Fire Fighter's regular pay rate for the hours worked during a work week (as opposed to over time).

State Division of Workers' Compensation (DWC) - Texas Department of Insurance/Division of Workers' Compensation, the State of Texas agency authorized by the Texas Legislature to implement and enforce the Texas Workers' Compensation Act in Texas.

Substance abuse professional (SAP) - in regards to alcohol misuse, refers to an individual who has clinical experience in recognition and treatment of alcohol/drug dependency and meets all DOT qualifications.

Supplanting – to deliberately reduce or reallocate state, local, or agency funds because of the acceptance or anticipated acceptance of federal grant funds.

Supplier - any existing or potential City vendor, consultant, contractor, developer, regulatory agency, or any public utility corporation having a franchise granted by the City.

Suspension - a period of time during which a Fire Fighter is prohibited from reporting to work and/or performing any job duties. A suspension might be either paid or unpaid. Paid suspensions are usually issued during a time that an investigation is being conducted where it is necessary to remove the Fire Fighter from the workplace until a decision has been made about their employment. Unpaid suspensions are usually issued as disciplinary actions.

Tardiness – For timekeeping system purposes, clock-in times may be rounded up or down based on seven-minute increments. For example, arriving for an 8:00 am shift at 7:52 am (more than 7 minutes early for your shift) might result in the payroll system recording your arrival time at 7:45am. Clocking in at 8:08 am may result in your start time being recorded in the timekeeper system as 8:15 am. Regardless of timekeeping rounding, you are required to notify your supervisor and receive approval as needed for early or late start times that differ from your work schedule. For disciplinary purposes, attendance and tardiness will be addressed based on your assigned schedule and any failure to be ready to work at the scheduled times.

Temporary shift - a supervisor removes a Fire Fighter from his or her regular shift and temporarily assigns the Fire Fighter to a different shift for training, minimum staffing, meetings, or other reasons.

Temporary income benefits (TIBS) - wage replacement benefits to an injured Fire Fighter who loses wages because of time away from work due to a compensable injury. The amount of TIBS is equal to 70 percent of the Fire Fighter's average weekly wage, subject to the maximum benefit amount set by DWC.

TIBS waiting period - the first seven (7) calendar days of "disability" due to an injury. "Disability" under the Labor Code is defined as "the inability to obtain or retain employment" because of the injury. Disability is basically equivalent to days of lost time. The workers' compensation TIBS waiting period does not apply to injured Fire Fighters.

TPA - third party administrator - the organization under contract with the City of Fort Worth to provide workers' compensation claims administration services in accordance with the Labor Code and in accordance with the Insurance Code, Title 13, Subtitle D, Chapter 4151, Subchapter A, *Third Party Administrators*.

Transitional duty – formerly known as "limited duty." A temporary return-to-work assignment based on an examining doctor's assessment of the Fire Fighter's medical condition and identified restrictions to duty. Transitional duty may consist of: (1) temporary modifications to the Fire Fighter's normal job duties; (2) assignment to alternative duties within the department; or (3) assignment to alternative duties provided by another City department. A transitional-duty assignment is made through a bona fide offer of employment. A transitional-duty assignment is not a permanent work assignment or job. The transitional-duty assignment must be productive work, consistent with the evaluating doctor's identified restrictions to duty, and the Fire Fighter must possess the necessary skills to perform the assignment.

Unprofessional conduct - conduct contrary to reasonable behaviors or expectations for a Fire Fighter while at work or while conducting City business or representing oneself as a City Fire Fighter on or off the job.

Unscheduled absence - An absence is unscheduled when a Fire Fighter does not give advance notice and receive supervisory approval prior to the scheduled shift start time. Advance notice should typically be given at least 24 hours in advance of scheduled shift.

Use of alcohol or a drug - the consuming of an alcoholic beverage, the use of a drug (whether orally, by inhalation, or by injection), or being under the influence of alcohol or a drug.

Vacation leave – paid time used by a Fire Fighter to take care of personal matters, to relax, and to enjoy time off from work.

Workers' compensation coordinator (WCC) - staff person designated by the department director to assist Human Resources in administering the workers' compensation program.

Workers' compensation leave (WCL) - time away from work so that an injured Fire Fighter can attend a health care appointment for a compensable injury. The time is recorded as "WCL" and is paid at the Fire Fighter's regular pay rate.

Work schedule - the assigned, regularly reoccurring work shifts that a Fire Fighter is expected to work in a workweek.

Work time - See "hours worked."

Workday - for most Fire Fighters, the standard period of 24 hours, which begins at 12:01 a.m. and ends at midnight. Any schedule that is so unusual it will not allow the tracking of leave will be handled as an eight-hour day for purposes of determining leave.

Working day - days on which the affected Fire Fighter is regularly scheduled to work. For purposes of suspensions, a working day is eight hours in duration, even if the Fire Fighter is regularly scheduled to work more hours in a day. Therefore, a suspension of one day will equal eight hours without pay.

Workplace/Worksite - all City offices, facilities, construction sites, temporary laboratory sites, maintenance sites, vehicles, and any other location where a Fire Fighter is performing assigned duties.

Workweek - the time span of seven consecutive 24-hour periods within which the City calculates overtime hours and corresponding compensation for nonexempt Fire Fighters (hours over 40). The workweek begins at 12:01 a.m. on Saturday morning and ends at midnight on the following Friday for most Fire Fighters. This must not be confused with the "work schedule." The Fire Chief or designee may adjust the work schedule to adequately cover the work to be performed. Changes in the workweek must be approved by the Human Resources Department and implemented in the pay system.

Year - a calendar year beginning January 1 and ending December 31.